

GOVERNMENT OF KARNATAKA

CITY MUNICIPAL COUNCIL, UDUPI DISTRICT



Volume-I

**TECHNO COMMERCIAL TENDER DOCUMENT FOR
IMPROVEMENT OF WATER SOURCE FOR UDUPI CITY
(ITEM RATE BASIS) IN UDUPI DISTRICT UNDER AMRUT
PROJECT**

**Karnataka Urban Infrastructure Development and
Finance Corporation (KUIDFC)**

Commissioner, City Municipal Council

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Contents

SECTION 1: INVITATION FOR TENDERS (IFT)	3
SECTION 2: INSTRUCTIONS TO TENDERERS (ITT)	5
A. GENERAL	6
1. SCOPE OF TENDER	6
2. ELIGIBLE TENDERERS	6
3. QUALIFICATION OF THE TENDERER:	6
4. ONE TENDER PER TENDERER:	8
5. COST OF TENDERING:	8
6. SITE VISIT:	8
B. TENDER DOCUMENTS	9
7. CONTENT OF TENDER DOCUMENTS	9
8. CLARIFICATION OF TENDER DOCUMENTS	9
9. AMENDMENT OF TENDER DOCUMENTS	9
C. PREPARATION OF TENDERS	10
10. DOCUMENTS COMPRISING THE TENDER	10
11. TENDER PRICES	10
12. TENDER VALIDITY	11
13. EARNEST MONEY DEPOSIT	11
14. FORMAT AND SIGNING OF TENDER- DELETED	12
D. SUBMISSION OF TENDERS	12
15. TENDERING THROUGH E-PROCUREMENT SYSTEM	12
16. DEADLINE FOR SUBMISSION OF THE TENDERS	13
17. LATE TENDERS	13
18. MODIFICATION AND WITHDRAWAL OF TENDERS	13
E. TENDER OPENING AND EVALUATION	14
19. OPENING OF FIRST FOLDER (TECHNO-COMMERCIAL) OF ALL TENDERS AND EVALUATION TO DETERMINE QUALIFIED TENDERERS:	14
20. OPENING OF SECOND COVER OF QUALIFIED TENDERERS AND EVALUATION:	14
21. PROCESS TO BE CONFIDENTIAL	15
22. CLARIFICATION OF TENDERS	15
23. EXAMINATION OF TENDERS AND DETERMINATION OF RESPONSIVENESS	15
24. CORRECTION OF ERRORS	15
25. EVALUATION AND COMPARISON OF TENDERS	16
F. AWARD OF CONTRACT	17
26. AWARD CRITERIA	17
27. EMPLOYER'S RIGHT TO ACCEPT ANY TENDER AND TO REJECT ANY OR ALL TENDERS	17
28. NOTIFICATION OF AWARD AND SIGNING OF AGREEMENT	17
29. SECURITY DEPOSIT	17
30. ADVANCE PAYMENT AND SECURITY:	18
31. CORRUPT OR FRAUDULENT PRACTICES	18
SECTION 3: QUALIFICATION INFORMATION	19
SECTION 4: FORMS OF TENDER, EARNEST MONEY DEPOSIT FORM, LETTER OF ACCEPTANCE,	

NOTICE TO PROCEED WITH THE WORK AND AGREEMENT FORM.....	26
SECTION 5: CONDITIONS OF CONTRACT	33
A. GENERAL.....	33
1. DEFINITIONS	33
2. INTERPRETATION	34
3. LAW GOVERNING CONTRACT	34
4. EMPLOYER'S DECISIONS	34
5. DELEGATION.....	34
6. COMMUNICATIONS.....	34
7. SUBCONTRACTING	34
8. OTHER CONTRACTORS.....	34
9. PERSONNEL.....	34
10. EMPLOYER'S AND CONTRACTOR'S RISKS	35
11. EMPLOYER'S RISKS.....	35
12. CONTRACTOR'S RISKS.....	35
13. INSURANCE:	35
14. SITE INVESTIGATION REPORTS:	36
15. QUERIES ABOUT THE CONTRACT DATA	36
16. CONTRACTOR TO CONSTRUCT THE WORKS.....	36
17. THE WORKS TO BE COMPLETED BY THE INTENDED COMPLETION DATE	36
18. APPROVAL BY THE EMPLOYER:.....	36
19. SAFETY	36
20. DISCOVERIES	36
21. POSSESSION OF THE SITE.....	36
22. ACCESS TO THE SITE	37
23. INSTRUCTIONS	37
24. PROCEDURE FOR RESOLUTION OF DISPUTES:	37
B. TIME CONTROL.....	37
25. PROGRAM	37
26. EXTENSION OF THE INTENDED COMPLETION DATE.....	37
27. DELAYS ORDERED BY THE EMPLOYER	37
28. MANAGEMENT MEETINGS	37
29. IDENTIFYING DEFECTS	38
C. QUALITY CONTROL	38
30. TESTS.....	38
31. CORRECTION OF DEFECTS	38
32. UNCORRECTED DEFECTS.....	38
D. COST CONTROL	38
33. BILL OF QUANTITIES (BOQ)	38
34. VARIATIONS.....	38
35. PAYMENTS FOR VARIATIONS	39
36. SUBMISSION OF BILLS FOR PAYMENT	39
37. PAYMENTS.....	39
38. COMPENSATION EVENTS	40
39. TAX.....	40
40. PRICE ADJUSTMENT:.....	40
41. LIQUIDATED DAMAGES	41
42. ADVANCE PAYMENTS:	41
43. SECURITIES:	41

44.	COST OF REPAIRS:.....	41
45.	COMPLETION.....	42
E.	FINISHING THE CONTRACT	42
46.	TAKING OVER	42
47.	FINAL ACCOUNT.....	42
48.	AS BUILT DRAWINGS AND /OR OPERATING AND MAINTENANCE MANUALS	42
49.	TERMINATION	42
50.	PAYMENT UPON TERMINATION	43
51.	PROPERTY	43
52.	RELEASE FROM PERFORMANCE	43
F.	SPECIAL CONDITIONS OF CONTRACT	44
	SECTION 6: CONTRACT DATA.....	80
	SECTION 7: SPECIFICATIONS	97
	SECTION 8: DRAWINGS	98
	SECTION 9: BILL OF QUANTITIES.....	99
	SECTION 10: FORMAT OF BANK GUARANTEE FOR SECURITY DEPOSIT	101

GOVERNMENT OF KARNATAKA

Commissioner
City Municipal Council , ,
Udupi (District), Karnataka

Tender for the work of Improvement of Water Source for Udupi City In Udupi DISTRICT (2nd Call)

TENDER REFERENCE:

Date and time for commencement of downloading of tender document from the e-procurement portal https://eproc.karnataka.gov.in	: 16-07-2018:	Time: 15:00 Hrs.
Last date and time for seeking clarifications if any	: 24-07-2018	Time: 17:00 Hrs.
Date, time and venue of pre-bid meeting	: 27-07-2018	Time: 11:00 Hrs.
	Venue: Office of the Executive Engineer, PIU, Camp office at: KIUWMIP, Jalsari, 1 st floor, Mangaluru City Corporation Commercial complex Kadri Mangaluru	
Last date and time for downloading of the tender document From the e-procurement portal https://eproc.karnataka.gov.in	: 10-08-2018	Time: 17:00 Hrs
Time and date of opening of First Cover (Folder) of tenders	: 13-08-2018	Time: 11:00 Hrs
Time and date of opening of Second Cover (Folder) of tenders	: 20-08-2018	Time: 11:00 Hrs
Place of opening of second Cover (Folder) two of tenders	: Will be intimated to the Qualified Tenderers.	
Address for communication	: Office of the Executive Engineer, PIU, KIUWMIP- Jalsari, KUIDFC, Rajathadri Building, Manipal, Udupi - 576104, Near End Point. Ph: 0820 2574949 Email: jalsiritranche2eudp@gmail.com	

Contents

Section	Description	Page No.
1	INVITATION FOR TENDERS (IFT)	3
2	INSTRUCTIONS TO TENDERERS (ITT)	5
3.	QUALIFICATION INFORMATION	19
4.	FORM OF TENDER, LETTER OF ACCEPTANCE, NOTICE TO PROCEED WITH THE WORK AND AGREEMENT FORM	26
5.	CONDITIONS OF CONTRACT (CC)	45
6.	CONTRACT DATA	81
7	SPECIFICATIONS	90
8	DRAWINGS	91
9.	BILL OF QUANTITIES	92
10.	FORMAT OF BANK GUARANTEE FOR SECURITY DEPOSIT	93

SECTION 1: INVITATION FOR TENDERS (IFT)

Date: 16.07.2018

IFT No: CMC/UDUPI/KUIDFC/AMRUT-UDP 01/2017-18

1. The Commissioner, City Municipal Council, Udupi invites tenders (as per rule 18-A of the KTTP Act) from eligible tenderers, for the construction of works detailed in the Table below. The tenderers may submit tenders for any or all of the works given in the Table. ***Two Cover Tender procedure as per Rule 28 of the KTTP Act shall be followed. The Tenders are required to submit two separate sealed covers(online), one containing the Earnest money deposit and the details of their capability to undertake the tender (as detailed in ITT Clause 3 and 6), which will be opened first and the second cover containing the price tender which will be opened only if the Tenderer is found to be qualified as per the tender document to execute the tendered works. The Tenderers are advised to note the minimum qualification criteria specified in Clause 3 of the Instructions to Tenderers to qualify for award of the contract.***
2. Tender documents are available on line in the Government of Karnataka e-procurement portal from.. **16-07-2018 to 10-08-2018 up to 17:00 Hrs.** and the tenders are to be submitted online through the e-procurement portal <https://eproc.karnataka.gov.in> only. Tenders submitted in any other manner will not be accepted. Tenderers are required to obtain Level III digital signature from designated firms (available on the e-procurement portal) and then register with the Government of Karnataka e-procurement platform and submit tenders by using their ID and digital signature.
3. Tenderer are required to pay **Rs. 118.00 Lakhs** in the form of Bank Guarantee as earnest money deposit in favour of “The Commissioner, City Municipal Council payable at Udupi “ before the last date and time for online receipt of tendered. Upload the receipt along with the Technical bid and Original Bank guarantee should be submitted at the time of opening of tender i.e **13-08-2018 at 11.00 Hrs.** and shall have to be valid for 45 days beyond the validity of the tender.
4. Tenders along with necessary information/documents must be uploaded to the e-procurement portal <https://eproc.karnataka.gov.in> as per tender document on or before **17:00 hours on 10-08-2018** and First Folder containing the Techno-Commercial tender will be opened on **13-08-2018 after 11:00 hours** at the stipulated venue, in the presence of the Tenderers or their authorized representatives who wish to attend. If the office happens to be closed on the date of opening of the tenders as specified, the tenders will be opened on the next working day at the same time and venue.
5. A Pre-tender meeting will be held on **27-07-2018 at 11:00 hours** at the Office of the Executive Engineer, PIU, Camp office at: KIUWMIP, Jalsari, 1st floor, Mangaluru City Corporation Commercial complex Kadri Mangaluru to clarify the issues if any, and to answer questions on any matter that may be raised at that stage as stated in Clause 8.2 of ‘Instructions to Tenderers’ of the tender document. A site visit will be conducted on 26-07-2018.
6. Other details can be seen in the tender documents.

Note: The Employer shall not be held liable for any delays due to system failure beyond its control. Even though the system will attempt to notify the tenderers of any tender updates. The Employer shall not be liable for any information not received by the tenderers. It is the tenderers responsibility to verify the website for the latest information related to the tender. The Tenderer required ensuring browser computability of the computer well in advance to the last date and time for receipt of the tenders. The department shall not be responsible for non-accessibility of e-procurement portal due to the technical error of the server.

TABLE

Package No.	Name of the work	Approximate value of work (Rs.Lakhs)	Earnest money Deposit (Rs. Lakhs)	Tender Processing fee	Period of completion (Including Monsoon)
1	2	3	4	5	6
AMRUT UDP 01	Improvement of Water Source for Udupi City	11800.00	118.00	as per stipulation in the e-procurement Portal	33 months including 3 months trial run

Sd/-
 COMMISSIONER
 City Municipal Council
 Udupi

SECTION 2: INSTRUCTIONS TO TENDERERS (ITT)

Table of Contents

A. General	Page No.
1. Scope of Tender	6
2. Eligible Tenderers	6
3. Qualification of the Tenderer	6
4. One Tender per Tenderer	8
5. Cost of Tendering	8
6. Site Visit	8
B. Tender Documents	
7. Content of Tender documents	9
8. Clarification of Tender Document	9
9. Amendment of Tender documents	9
C. Preparation of Tenders	
10. Documents comprising the Tender	10
11. Tender prices	10
12. Tender validity	10
13. Earnest money deposit	10
14. Format and signing of Tender	11
D. Submission of Tenders	
15. Sealing and marking of Tenders	12
16. Deadline for submission of Tenders	12
17. Late Tenders	12
18. Modification and Withdrawal of Tenders	12
E. Tender opening and evaluation	
19. Opening of First Cover of all Tenders and evaluation to determine qualified Tenderers	14
20. Opening of Second Cover Tenders of qualified Tenders and evaluation	14
21. Process to be confidential	14
22. Clarification of Tenders	15
23. Examination of Tenders and determination of responsiveness	15
24. Correction of errors	15
25. Evaluation and comparison of Tenders	15
F. Award of contract	
26. Award criteria	17
27. Employer's right to accept any Tender and to reject any or all Tenders	17
28. Notification of award and signing of Agreement	17
29. Security deposit	17
30. Advance payment and Security	17
31. Corrupt or Fraudulent Practices	18

A. General

1. Scope of Tender

- 1.1 The Commissioner, City Municipal Council, Udupi, Udupi District (Referred to as Employer in these documents) invites tenders following Two Cover tender procedure, from eligible Tenderers, for the construction of works (as defined in these documents and referred to as "the works") detailed in the Table given in the Invitation for Tenders (IFT). The Tenderers may submit tenders for any or all of the works detailed in the table given in IFT.

2. Eligible Tenderers

- 2.1 Tenderers shall not be under a declaration of ineligibility for corrupt and fraudulent practices issued by the Government of Karnataka
- 2.2 Tenders from Joint ventures are not acceptable.

3. Qualification of the Tenderer:

- 3.1 All Tenderers shall upload to the e-procurement portal <https://eproc.karnataka.gov.in>. The requested information shall be provided accurately and in sufficient detail in Section 3: Qualification information.
- 3.2 To qualify for award of this contract, each Tenderer in its name should have in the last five years i.e. 2012-2013 to 2016-2017)
- (a) Achieved in at least two financial years a minimum financial turnover (in all classes of civil engineering construction works only) of **Rs 9440 Lakhs**¹
 - (b) Satisfactorily completed (at least 90% of the contract value) as prime contractor, at least one Similar work such as Water supply works consisting of components of raising main / Jack well/ Intake well/ Pumping house/ Pumping machinery and allied electrical works / WTP of value not less than **Rs. 5900 lakhs**²
 - (c) Executed³ in any one year, the following minimum quantities of work:

- Providing, laying, jointing and commissioning of MS/DI/Pipe line of dia not less than 700mm (Combined quantities) for a length of	- 12630 meters
- Earth work in both excavation and embankment (Combined quantities)	- 64000 Cum
- Cement Concrete work (including RCC and PSC)	- 6300 Cum
- Reinforcement steel	- 300 MT
 - (d) The tender should have successfully executed following work in any one year

- Supply, erection, commissioning of VT/DWT/Centrifugal/ Submersible pump atleast 200 LPS of any head	- 1 Nos
- Jack well of atleast 8m dia	- 1 Nos

¹ To bring to the FY in which the tenders are invited. Financial turnover of previous years shall be given a weight of 10% per year to bring them to the price level of the FY in which the tenders are invited.

² To bring to the FY in which the tenders are invited. The value of the completed works in previous years shall be given a weight of 10% per year to bring them to the price level of the FY in which the tenders are invited.

³ The quantity could be in one or more contracts. However it has to be in one financial year.

Personnel Capabilities:

The Tenderer shall supply general information on the management structure of the firm, and shall make provision for suitably qualified personnel to fill the key positions listed below. The Tenderer must have qualified employed personnel to fill the following positions. The Tenderer shall supply information, of the personnel with relevant experience, on a prime experience requirements specified below: candidate and on an alternate for each position; both of whom shall meet the minimum experience requirements specified below:

Sl.No.	Position	No. of Position	Total Experience (years)	In Similar Works (years)	Min Educational Qualification
1	Project/Construction Manager –	1	10	7	BE/B.Tech (Civil)
2	Water Supply Engineer	1	5	3	BE/B.Tech (Civil)
3	Mechanical / Electrical Engineer	1	5	3	BE/B.Tech/Diploma (Mechanical/Electrical)
6	Site Engineers	2	5	2	BE/B.Tech/Diploma (Civil)

3.3 Each Tenderer should further demonstrate:

- (a) Availability by owning the following at least 50% of the required key and critical equipment for this work:

-	Excavator Wheel Mounted and Tyre Mounted	-	4
-	Concrete mixer with Hopper	-	3
-	Road Roller (Tandem Vibrator)	-	2
-	Needle Vibrator	-	5
-	Tipper	-	4
-	Total station leveling instrument	-	3
-	Lifting crane	-	2
-	Dewatering equipment's (Diesel & electric)	-	3

- (b) The remaining 50% can be deployed on lease/hire basis, provided, the relevant documents (commitment agreements etc.) for availability for this work are furnished along with qualification information.

Note:

Based on the studies, carried out by the Employer the minimum suggested major equipment to attain the completion of works in accordance with the prescribed construction schedule are shown in the above list.

The bidders should, however, undertake their own studies and furnish with their tender, a detailed construction planning and methodology supported with layout and necessary drawings and calculations (detailed) to allow the employer to review their proposals. The numbers, types and capacities of each plant/equipment shall be shown in the proposals along with the cycle time for each operation for the given production capacity to match the requirements. **(This should be uploaded in the First Folder Techno-Commercial tender in the e-procurement portal. Failure to furnish the information as above may result in rejection of the tenders)**

- (c) **liquid assets** and /or availability of credit facilities of no less than **Rs 1180 Lakhs** (Credit lines/ letter of credit/ certificates from banks for meeting the fund requirement etc. (usually the equivalent of the estimated cash flow for three months in the peak construction period) *)

3.4 **To qualify for a package of contracts made up of this and other contracts for which tenders are invited in this IFT, the Tenderer must demonstrate having experience and resources to meet the aggregate of the qualifying criteria for the individual contracts.**

3.5 Sub-contractors' experience and resources shall not be considered in determining the Tenderer's compliance with the qualifying criteria except to the extent stated in 3.2 (d) and (e) above.

3.6 Tenderers who meet the above specified minimum qualifying criteria, will only be qualified, if their available tender capacity is more than the total tender value. The available tender capacity will be calculated as under:

Assessed available tender capacity = (A*N*1.5 - B)

A = Maximum value of civil engineering works executed in any one year during the last five years (updated to 2017-18 price level) taking into account the completed as well as works in progress.

N = Number of years prescribed for completion of the works for which tenders are invited.

B = Value, at 2017-18 price level, of existing commitments and on-going works to be completed during the next 2.5 years (period of completion of the works for which tender are invited).

Note: *The statements showing the value of existing commitments and on-going works as well as the stipulated period of completion remaining for each of the works listed should be countersigned by the Employer in charge, not below the rank of an Executive Engineer or equivalent.*

- 3.7 Even though the Tenderers meet the above criteria, they are subject to be disqualified if they have:
- made misleading or false representations in the forms, statements and attachments submitted in proof of the qualification requirements; and/or
 - record of poor performance such as abandoning the works, not properly completing the contract, inordinate delays in completion, litigation history, or financial failures etc.; and/or
 - participated in the previous Tender for the same work and had quoted unreasonably high tender prices and could not furnish rational justification.

3.8 In the case of the death of a Contractor after executing the agreement/commencement of the work, his legal heir, if an eligible registered Contractor and willing, can execute and complete the work at the accepted tender rates irrespective of the cost of the work.

4. One Tender per Tenderer:

4.1 Each tenderer shall submit only one tender for one package. A tenderer who submits or participates in more than one Tender (other than as a sub-contractor or in cases of alternatives that have been permitted or requested) will cause all the proposals with the Tenderer's participation to be disqualified.

5. Cost of Tendering:

5.1 The tenderer shall bear all costs associated with the preparation and submission of his tender, and the Employer will in no case be responsible and liable for those costs.

6. Site visit:

6.1 The Tenderer at his own responsibility and risk is encouraged to visit and examine the Site of Works and its surroundings and obtain all information that may be necessary for preparing the Tender and entering a contract for construction of the Works. The cost of visiting the Site shall be at the Tenderer's own expense.

B. Tender documents

7. Content of Tender documents

- 7.1 The set of tender documents shall have all the Sections given in Page 2:
- 7.2 The tender documents are available on line on the website <http://eproc.karnataka.gov.in> The tender documents can be **downloaded free of cost**.

8. Clarification of Tender Documents

- 8.1 A prospective tenderer requiring any clarification of the tender documents may notify the Employer in writing or by cable (hereinafter “cable” includes telex and facsimile) or by E-mail at the Employer’s address indicated in the invitation to tender. The Employer will respond to any request for clarification which he receives earlier than 5 days prior to the pre-tender meeting. Copies of the Employer’s response will be forwarded to all purchasers of the tender documents, including a description of the enquiry but without identifying its source.

8.2 Pre-tender meeting:

- 8.2.1 The tenderer or his authorized representative is invited to attend a pre-tender meeting which will take place at **Office of the Executive Engineer, PIU, Camp office at: KIUWMIP, Jalasiri, 1st floor, Mangaluru City Corporation Commercial complex Kadri Mangaluru at 11:00 on 27-07-2018.**
- 8.2.2 The purpose of the meeting will be to clarify issues and to answer questions on any matter that may be raised at that stage
- 8.2.3 The tenderer is requested to submit any questions online through the e-procurement portal not later than one week before the meeting.
- 8.2.4 Minutes of the meeting, including the text of the questions raised (without identifying the source of enquiry) and the responses given will be uploaded on the web site <https://eproc.karnataka.gov.in> for the information all the prospective tenderers without identifying the source of questions raised. Any modification of the tender documents listed in Sub-Clause 7.1 which may become necessary as a result of the pre-tender meeting shall be made by the Employer exclusively through the issue of an Addendum pursuant to Clause 9 and not through the minutes of the pre-tender meeting.
- 8.2.5 Non-attendance at the pre-tender meeting will not be a cause for disqualification of a tenderer.

9. Amendment of Tender documents

- 9.1 Before the deadline for submission of tenders, the Employer may modify the tender documents by issuing addenda.
- 9.2 Any addendum thus issued shall be part of the tender documents, which shall be posted on the e-procurement portal <https://eproc.karnataka.gov.in> and efforts would be made to send e-mail communications to all the registered tenderers.
- 9.3 To give prospective Tenderers reasonable time in which to take an addendum into account in preparing their tenders, the Employer shall extend as necessary the deadline for submission of tenders, in accordance with Sub-Clause 16.2 below. This shall be notified in the e-procurement portal.

C. Preparation of Tenders

10. Documents comprising the Tender

10.1 The tender submitted by the Tenderer shall be in two covers and shall contain the documents as follows:

10.1.1 First Folder:

- (a) Details of Tender Processing and Earnest Money Deposit in accordance with Clause 13 of ITT and in the form given in Section 4;
- (b) Scanned copy of the DD/CC/BC/BG or other financial instruments
- (c) Qualification Information as per formats given in Section 3;
- (d) Subcontractor's qualification and experience in support of their meeting the prescribed qualification criteria;
- (e) Affidavit testifying the correctness of the information furnished and correctness of the documents uploaded by the tenderer in support of the qualification information in the format as given in Section 4. Earnest Money Deposit;

10.1.2 Second Folder:

- (a) The Tender (in the format indicated in Section 4)
- (b) Priced Bill of Quantities (Section 9); online through E-Procurement portal, no hardcopy of commercial should be attached or disclosed.

and any other materials required be completing and submitting by Tenderers in accordance with these instructions. The documents listed under Sections 3, 4, 6 and 9 shall be filled in without exception.

10.2 Tenderers submitting tenders together with other contracts stated in the IFT to form a package will be indicated in the tender together with any discounts offered for the award of more than one contract.

10.3 Only the originals of the tender security (if it is in the form of Demand draft/Cashier's cheque/Banker's cheque/bank guarantee) and the original affidavit regarding correctness of information furnished and documents uploaded shall be produced or delivered by post/courier to the Office of Employer within 2 days after the last date of submission/uploading of the tender which shall be verified and retained by the Employer. The Employer shall not be held responsible for any delays in the receipt of the aforesaid documents. During this period the verification of the receipt of the tender processing fee shall be completed. The Bank Guarantee/DD/CC/BC (for earnest money deposit) would be checked for their adequacy with respect to amount, validity and acceptability. The tenders of only those tenderers who have produced the original of tender security (if it is in the form of BG/DD/CC/BC) and the original affidavit regarding correctness of information/ document for verification and those who have paid the stipulated tender processing fee and adequate earnest money deposit in an acceptable form and duly valid as stipulated shall be opened at the appointed time to be notified on the e-procurement portal.

10.4 In case of any discrepancy between the uploaded documents of (BG/DD/CC/BC) and the affidavit of correctness of information/documents and the originals of these documents, the originals that are duly verified by the Employer shall prevail.

11. Tender prices

11.1 The contract shall be for the whole works as described in Sub-Clause 1.1, based on the priced Bill of Quantities submitted by the Tenderer. **The Tender prices should be exclusive of excise and custom duties as detailed in the Note below Sub-Clause 11.3.**

- 11.2 The Tenderer shall make online entries to fill in rates in the Bill of Quantities. Upon numerical entry of the rates for the various items of Bill of Quantities, the amount in words would automatically appear and the total tender price would automatically be calculated by the system and would be displayed. **Items for which no rate or price is entered by the Tenderer will not be paid for by the Employer when executed and shall be deemed covered by the other rates and prices in the Bill of Quantities.**
- 11.3 All duties, GST, taxes, and other levies payable by the contractor under the contract (such as Royalty for minor minerals, Karnataka Building and other Construction Workers Welfare Cess), or for any other cause, shall be included in the rates, prices and total Tender Price submitted by the Tenderer.
- 11.4 The rates and prices quoted by the Tenderer shall be subject to adjustment during the performance of the Contract in accordance with the provisions of Clause 40 of the Conditions of Contract.
- 11.5 The tenderer shall complete the Contractor's Tender using the Form as given in Section 4. The completed Contractor's Tender shall be uploaded through the procurement portal.

12. Tender validity

- 12.1 Tenders shall remain valid for a period not less than 120 (one hundred and twenty) days after the deadline date for tender submission specified in Clause 16. A tender valid for a shorter period shall be rejected by the Employer as non-responsive.
- 12.2 In exceptional circumstances, prior to expiry of the original time limit, the Employer may request that the Tenderers may extend the period of validity for a specified additional period. The request and the Tenderers' responses shall be made in writing or by cable. A Tenderer may refuse the request without forfeiting his earnest money deposit. A Tenderer agreeing to the request will not be required or permitted to modify his tender, but will be required to extend the validity of his earnest money deposit for a period of the extension, and in compliance with Clause 13 in all respects.

13. Earnest money deposit

- 13.1 The Tenderers are required to pay (in the method as detailed in ITT Clause 13.2) as a part of its tender the requisite tender processing fee as per details available on the e-procurement portal. The tenderers shall also furnish, as part of his tender, earnest money deposit in the amount as shown in column 4 of the Table of IFT for this particular work. This earnest money deposit amount could (at the tender's option) be made either in full in the method as detailed in ITT Clause 13.2 or partly through the method as detailed in ITT Clause 13.2 or partly through financial instruments such as Demand Draft, or Banker's cheque/Bank Guarantee. However the minimum amount of tender security that has to be paid in the method as detailed in ITT Clause 13.2 shall be Rs. 118.00 lakh. The DD/BC/BG should be issued by Nationalized/ Scheduled banks. DD/BC should be drawn in favour of The Commissioner, City Municipal Council, Udupi payable at Udupi or specified Small Savings Instruments pledged to The Commissioner, City Municipal Council, Udupi. **The details of payment of tender processing fee and earnest money deposit shall be filled in the Form given in Section 4 and uploaded in the First Folder.**
- 13.2 The tender processing fee and the cash portion of the tender security as specified in the Table of IFB shall be denominated in Indian Rupees and shall be paid in the e-procurement portal using any of the following payment modes:
- DD/BC/BG
 - Credit Card
 - Direct Debit
 - National Electronic Funds Transfer (NEFT)
 - Over the Counter payment (OTC)

The OTC payment facility will be available at the designated ICICI Bank branches for making payment from the date of notification of the IFB in the e-procurement portal.

- 13.3 Bank Guarantees shall be issued by Nationalized/Scheduled banks, as earnest money deposit shall be unconditional and should be in the format as given in Section 10 and shall be valid for 45 days **beyond** the validity of the tender.
- 13.4 The tenders of those tenderers who have not paid the tender processing fee and as well as DD/BC/BG should be issued by Nationalized/ Scheduled banks. DD/BC should be drawn in favour of The Commissioner, City Municipal Council, Udupi payable at Udupi or specified Small Savings Instruments pledged to The Commissioner, City Municipal Council, Udupi of Rs.118.0 lakh in the method as detailed in Clause 13.2 of the ITT will be rejected by the system and tenderers would not be able to submit their tenders. Any tender not accompanied by an acceptable earnest money deposit and not secured as indicated in Sub-Clauses 13.1, 13.2 and 13.3 above shall be rejected by the Employer as non-responsive.
- 13.5 The earnest money deposit of unsuccessful Tenderers will be returned within 60 days after the expiry of the tender validity period specified in Sub-Clause 12.1.
- 13.6 The earnest money deposit of the successful Tenderer will be discharged when the Tenderer has signed the Agreement and furnished the required Performance Security.
- 13.7 The earnest money deposit may be forfeited:
- (a) if the Tenderer withdraws the Tender after tender opening during the period of tender validity;
 - (b) if the Tenderer does not accept the correction of the Tender Price; or
 - (c) in the case of a successful Tenderer, if the Tenderer fails within the specified time limit to
 - (i) sign the Agreement; or
 - (ii) furnish the required Security deposit

14. Format and signing of Tender - Deleted

- 14.1 ~~The Tenderer shall prepare one original and a copy of the documents comprising the Tender as described in Clause 10 of these Instructions to Tenderers, and clearly marked "ORIGINAL" and "COPY" as appropriate. In the event of discrepancy between them, the original shall prevail.~~
- 14.2 ~~The original and a copy of the Tender shall be typed or written in indelible ink and shall be signed by a person or persons duly authorized to sign on behalf of the Tenderer. All pages of the tender where entries or amendments have been made shall be initialed by the person signing the tender.~~
- 14.3 ~~The Tender shall contain no alterations or additions, except those to comply with instructions issued by the Employer, or as necessary to correct errors made by the Tenderer, in which case such corrections shall be initialed by the person signing the Tender.~~

D. Submission of Tenders

15. Tendering through E-procurement system

- 15.1 The Tenderers shall upload their tenders through e-procurement platform. No other modes of submission are permitted. The tendering is through website <https://eproc.karnataka.gov.in> . Detailed guidelines for viewing of tenders and submission of online tenders are given in the website. The prospective tenderers can submit their tender online. However, the tenderers are required to have enrolment/registration in the web site and should have valid Digital Signature Certificate (DSC). The DSC can be obtained from any authorized certifying agencies as given in the e-procurement portal. The tenderers should register in the web site <https://eproc.karnataka.gov.in>. After this, the tenderers can log in the site through the secured login.
- 15.2 The tenderers are requested to go through the tender documents carefully and submit the required information and documents without exception to avoid risk of rejection of tenders.
- 15.3 The tenders shall submit online all the requirements under two separate folders, **First folder** containing Techno- Commercial information and documents as stipulated in Clause 10.1 of ITT. The financial tender shall be in the **Second folder**. All the documents are to be signed digitally by the tenderer. After electronic online tender submission, the system generates a unique tender reference number which is time stamped. This shall be treated as acknowledgement of tender submission.

- 15.4 ~~If the outer envelope is not sealed and marked as above, the Employer will assume no responsibility for the misplacement or premature opening of the Tender. Deleted~~

16. Deadline for submission of the Tenders

- 16.1 Tenders must be uploaded by the Tenderer no later than **17:00 hours on 10-08-2018**. The e-procurement platform will not accept the tenders after the stipulated date and time (as per the clock of the e-procurement platform)
- 16.2 The Employer may extend the deadline for submission of tenders by issuing an amendment in accordance with Clause 9, in which case all rights and obligations of the Employer and the Tenderers previously subject to the original deadline will then be subject to the new deadline. The amendment/notification shall be notified in the e-procurement platform.

17. Late Tenders

- 17.1 Tenders cannot be uploaded by the tenderers after the deadline for submission/uploading of tenders (as per the clock of the e-procurement platform) prescribed by the Employer.

18. Modification and Withdrawal of Tenders

- 18.1 In the “My Tenders” section of the e-procurement portal, the tenderers can view the status of their tenders and decrypt tender (i.e. in cases where the Tenderer has chosen to encrypt the tender using his own public key) for modification or withdrawal before the stipulated date and time for submission/uploading.
- 18.2 Tenderers may cancel/modify their tenders before the deadline for submission of the tenders.
- 18.3 For modification of tenders, the tenderers need not make any additional payment towards the cost of tendering process. For tender modification and consequent re-submission, the tenderer is required to cancel his bid submitted earlier (only the financial is cancelled. All the uploaded documents would be there). The last modified tender submitted by the tenderer within the tender submission time shall be considered as the tender. For this purpose, modifications/withdrawal by other means will not be accepted. In online system of tender submission, the modification/cancellations is allowed any number of times. The tenderers may cancel its bid by clicking on the cancel button in the MY Bids Section before the deadline for submission of tenders, however if the tender is cancelled and not resubmitted within the stipulated time on the last date of submission of tenders, it would deemed to be withdrawn.
- 18.4 As per the portal design, in case a tenderer wishes to modify his tender before the last date and time for submission of tenders and after submission of the tender, then the tenderer is required to withdraw his bid first. In order to provide a quick reference to his financial tender entered by the tenderer in the e-procurement system, a provision has been made in the e-procurement system wherein the tenderer can retain a copy of the financial tender in his local machine prior to his submission of tender. The values as available in the copy of the financial tender can subsequently be copied into the financial tender screen which then is made available to the tenderer on withdrawal of his tender price to last date and time of tender submission.
- 18.5 No tender may be modified/ cancelled online after the deadline for submission of tenders.

- 18.6 Withdrawal or modification of a Tender between the deadline for submission of Tenders and the expiration of the original period of Tender validity specified in Clause 12.1 above or as extended pursuant to Clause 12.2 is not allowed in the e-procurement system. If the tenderer does the same through any other medium, then it may result in the forfeiture of the earnest money deposit pursuant to Clause 13.

E. Tender opening and evaluation

19. Opening of First Folder (Technical) of all Tenders and evaluation to determine qualified Tenderers:

- 19.1 The Employer will open/unlock the First Folders of all the Tenderers uploaded through e-procurement platform as specified above, including modifications made pursuant to Clause 18 online at 11:00 Hours on 13.08.2018 in the presence of tenderers or their authorized representatives, who choose to be present at the stipulated place as notified in the procurement portal. In the event of the specified date of Tender opening being declared a holiday for the Employer, the Tenders will be opened at the appointed time and location on the next working day. The tenderers can also view the contents of first folder after the opening of the tenders. The tenderer's representatives who are present shall produce authorization letter and shall sign evidencing their attendance.
- 19.2 The Tenderer's names, the presence or absence of earnest money deposit (amount, format and validity), the submission of qualification information and such other information as the Employer may consider appropriate will be announced by the Employer at the opening.
- 19.3 The Employer shall prepare minutes of the Tender opening, including the information disclosed to those present in accordance with Sub-Clause 19.2 and the same shall be uploaded on the e-procurement portal.
- 19.4 The Employer will evaluate and determine whether each tender (a) meets the eligibility criteria defined in ITT Clause 2; (b) is accompanied by the required earnest money deposit as per stipulations in ITT Clause 13 and (c) meets the minimum qualification criteria stipulated in ITT Clause 3.
- 19.5 To assist in the examination, evaluation the Employer may at his discretion, ask any tenderer for clarification regarding the information/documents uploaded. The request for clarification and the response shall be in writing, but no change in the information/document uploaded shall be sought, offered.
- 19.6 After completion of evaluation of the techno-economic tender, the Employer shall draw out a list of qualified Tenderers and upload the same on the e-procurement portal.

20. Opening of Second Folder (Financial) of qualified Tenderers and evaluation:

- 20.1 The Employer will notify all the Qualified Tenderers on the e-procurement portal, the time, date and venue fixed for the opening of the Second Folder containing the Financial Tenders. The Employer will open the Second Folders of Qualified Tenderers at the appointed time and date (as notified in the procurement portal) in the presence of the Tenders or their authorized representatives who choose to attend. In the event of the specified date of Second Cover opening being declared a holiday for the Employer, the Second Covers will be opened at the appointed time and location on the next working day.
- 20.2 ~~Envelopes marked "MODIFICATION FOR SECOND COVER" shall be opened and the submissions therein read out in appropriate detail (Deleted)~~
- 20.3 The Tenderers' names, the Tender prices, the total amount of each Tender, any discounts, such other details as the Employer may consider appropriate, will be announced by the Employer at the opening. No Tender shall be rejected at Tender opening.

- 20.4 The Employer shall prepare minutes of the Second Folder Tender opening, including the information disclosed to those present in accordance with Sub-Clause 20.3 and upload the same on the e-procurement portal for information of the tenderers.

21. Process to be confidential

- 21.1 Information relating to the examination, clarification, evaluation, and comparison of Tenders and recommendations for the award of a contract shall not be disclosed to Tenderers or any other persons not officially concerned with such process until the award to the successful Tenderer has been announced. Any effort by a Tenderer to influence the Employer's processing of Tenders or award decisions may result in the rejection of his Tender.

22. Clarification of Tenders

- 22.1 To assist in the examination, evaluation, and comparison of Tenders, the Employer may, at his discretion, ask any Tenderer for clarification of his Tender, including breakdowns of unit rates. The request for clarification and the response shall be in writing or by cable, but no change in the price or substance of the Tender shall be sought, offered, or permitted except as required to confirm the correction of arithmetic errors discovered by the Employer in the evaluation of the Tenders in accordance with Clause 24.
- 22.2 Subject to sub-clause 22.1, no Tenderer shall contact the Employer on any matter relating to its Tender from the time of the Tender opening to the time the contract is awarded. If the Tenderer wishes to bring additional information to the notice of the Employer, it should do so in writing. Tenderer also can submit on line clarification through e-Procurement portal through query option.
- 22.3 Any effort by the Tenderer to influence the Employer in the Employer's Tender evaluation, Tender comparison or contract award decisions may result in the rejection of the Tenderers' Tender.

23. Examination of Tenders and determination of responsiveness

- 23.1 Prior to the detailed evaluation of Tenders, the Employer will determine whether each Tender; (a) has been properly signed; and; (b) is substantially responsive to the requirements of the Tender documents.
- 23.2 A substantially responsive Tender is one which conforms to all the terms, conditions, and specifications of the Tender documents, without material deviation or reservation. A material deviation or reservation is one (a) which affects in any substantial way the scope, quality, or performance of the Works; (b) which limits in any substantial way, inconsistent with the Tender documents, the Employer's rights or the Tenderer's obligations under the Contract; or (c) whose rectification would affect unfairly the competitive position of other Tenderers presenting substantially responsive Tenders.
- 23.3 If a Tender is not substantially responsive, it will be rejected by the Employer, and may not subsequently be made responsive by correction or withdrawal of the nonconforming deviation or reservation.

24. Correction of errors

- 24.1 (a) ~~Once the Tenderer key in the rates in figures, in the Bill of quantities provided, rate in words will be auto-generated by the system. (Deleted)~~

- (b) ~~Once the Tenderer key in the rates in figures, in the Bill of quantities provided, the system will automatically calculate the amount of that item as well as the total Bid value. (Deleted)~~

- 24.2 ~~The amount stated in the Tender will be adjusted by the Employer in accordance with the above procedure for the correction of errors and, with the concurrence of the Tenderer, shall be considered as binding upon the Tenderer. If the Tenderer does not accept the corrected amount the Tender will be rejected, and the earnest money deposit may be forfeited in accordance with Sub Clause 13.6 (b). (Deleted)~~

25. Evaluation and comparison of Tenders

- 25.1 The Employer will evaluate and compare only the Tenders determined to be substantially responsive in accordance with Clause 23.
- 25.2 In evaluating the Tenders, the Employer will determine for each Tender the evaluated Tender Price by adjusting the Tender Price as follows:
- (a) making any correction for errors pursuant to Clause 24; and
 - (b) making appropriate adjustments to reflect discounts or other price modifications offered in accordance with Sub Clause 18.
- 25.3 The Employer reserves the right to accept or reject any variation, deviation, or alternative offer. Variations, deviations, and alternative offers and other factors which are more than the requirements of the Tender documents or otherwise result in unsolicited benefits for the Employer shall not be considered in Tender evaluation.
- 25.4 The estimated effect of the price adjustment conditions under Clause 41 of the Conditions of Contract, during the implementation of the Contract, will not be taken into account in tender Evaluation
- 25.5 If the tender of the successful tenderer is seriously unbalanced in relation to the Employer's estimate of the cost of the work to be performed under the contract, the Employer may require the Tenderer to produce detailed price analyses for any or all items of the Bill of Quantities, to demonstrate the internal consistency of those prices with the construction methods and schedule proposed. After evaluation of the price analyses, the Employer may require that the amount of the performance security set forth in Clause 29 be increased at the expense of the successful Tenderer to a level sufficient to protect the Employer against financial loss in the event of default of the successful under the contract. The Format of the Bank Guarantee is given in Section 10. The Bank Guarantee shall be valid until 28 days from the date of issue of certificate of completion of works.

F. Award of Contract

26. Award criteria

- 26.1 Subject to Clause 27, the Employer will award the Contract to the Tenderer whose Tender has been determined to be substantially responsive to the Tender documents and who has offered the lowest evaluated Tender Price, provided that such Tenderer has been determined to be (a) eligible in accordance with the provisions of Clause 2, and (b) qualified in accordance with the provisions of Clause 3.

27. Employer's right to accept any Tender and to reject any or all Tenders

- 27.1 Notwithstanding Clause 26, the Employer reserves the right to accept or reject any Tender, and to cancel the Tender process and reject all Tenders, at any time prior to the award of Contract, without thereby incurring any liability to the affected Tenderer or Tenderers or any obligation to inform the affected Tenderer or Tenderers of the grounds for the Employer's action.

28. Notification of award and signing of Agreement

- 28.1 The Tenderer whose Tender has been accepted will be notified of the award by the Employer prior to expiration of the Tender validity period by cable, telex, e-mail or facsimile confirmed by registered letter. This letter (hereinafter and in the Conditions of Contract called the "Letter of Acceptance") will state the sum that the Employer will pay the Contractor in consideration of the execution, completion, and maintenance of the Works by the Contractor as prescribed by the Contract (hereinafter and in the Contract called the "Contract Price").
- 28.2 The notification of award will constitute the formation of the Contract, subject only to the furnishing of Security deposit in accordance with the provisions of Clause 29.
- 28.3 The Agreement will incorporate all agreements between the Employer and the successful Tenderer. It will be kept ready for signature of the successful Tenderer in the office of Employer within 20 days following the notification of award along with the Letter of Acceptance. Within 20 days of receipt, the successful Tenderer will sign the Agreement and deliver it to the Employer.
- 28.4 Upon the furnishing by the successful Tenderer of the Performance Security, the Employer will promptly notify the other Tenderers that their Tenders have been unsuccessful.

29. Security deposit

- 29.1 Within 28 days of receipt of the Letter of Acceptance, the successful Tenderer shall deliver to the Employer a Security deposit in any of the forms given below for an amount equivalent to 5% of the Contract price plus additional security for unbalanced tenders in accordance with Clause 25.5 of ITT and Clause 43 of the Conditions of Contract for all works :
- Demand draft,/ Pay Order in favour of The Commissioner, City Municipal Council, Udupi or
 - A bank guarantee in the form given in Section 10; or
 - Specified Small Savings Instruments pledged to The Commissioner, City Municipal Council, Udupi

- 29.2 If the security deposit is provided by the successful Tenderer in the form of a Bank Guarantee, it shall unconditional and issued either by a Nationalized/Scheduled bank in the format as given in Section10.
- 29.3 The security deposit if furnished in cash or demand draft can, if requested, be converted to interest bearing securities at the cost of the contractor.
- 29.4 Failure of the successful Tenderer to comply with the requirements of Sub-Clause 29.1 shall constitute sufficient grounds for cancellation of the award and forfeiture of the earnest money deposit.
- 29.5 If the Bid for an admeasurement contract, which results in the lowest Evaluated Bid Price, is seriously unbalanced, front loaded or substantially below updated estimates in the opinion of the Employer, the Employer may require the Bidder to produce detailed price analyses for any or all items of the Bill of Quantities, to demonstrate the internal consistency of those prices with the construction methods and schedule proposed. After evaluation of the price analyses, taking into consideration the schedule of estimated Contract payments, the Employer may require that the amount of the performance security be increased at the expense of the Bidder to a level sufficient to protect the Employer against financial loss in the event of default of the successful Bidder under the Contract

30. Advance Payment and Security:

- 30.1 The Employer will provide an advance payment (for mobilization) on the contract price as stipulated in the Conditions of Contract, subject to the maximum amount as stated in the Contract Data. The advance payment shall be made on submission of the Unconditional Bank Guarantee for an equal amount in the Form as given in Section10 of any scheduled bank/ Nationalized bank acceptable to the employer.

31. Corrupt or Fraudulent practices

- 31.1 The GOK requires that the Tenderers/Suppliers/Contractors, observe the highest standard of ethics during the procurement and execution of such contracts. In pursuance of this policy, Employer :
 - (a) will reject a proposal for award if it determines that the Tenderer recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question;
 - (b) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a Employer contract if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for, or in executing, a Employer contract.
- 31.2 Furthermore, Tenderers shall be aware of the provision stated in sub-clause 50.2 of the Conditions of Contract.
- 32. The Contractor is required to follow the instruction given by PMC staff in addition to the departmental engineers to advice for safe and speedy quality work. However, the decision of engineer-in charge of the work will be final.

SECTION 3: QUALIFICATION INFORMATION

The information to be filled in by the Tenderer hereunder will be used for purposes of computing Tender capacity as provided for in Clause 3 of the Instructions to Tenderers. The information shall be uploaded in the first folder (Techno-Commercial part). This information will not be incorporated in the Contract.

- 1.1 Constitution or legal status of Tenderer [Attach copy]
 Certification of Registration/Incorporation
- Place of Registration
 Principal place of business: _____
 Details of PAN Card (Attach Copy) _____
- 1.2 Total value of civil engineering construction works executed and payments received in the last five years (in Rs. Lakhs)¹
- 2012 – 13 _____
 2013 - 14 _____
 2014 - 15 _____
 2015 - 16 _____
 2016- 17 _____
- 1.3 Work performed as Prime Contractor (in the same name) on works of similar nature over during the five years specified in 1.2 above².

Project Name	Name of the Employer	Description of work	Contract Number	Value of contract Rs.Lakhs	Date of issue of work order	Specified period of completion	Original date of completion	Extended date of completion	Actual date of completion	Remark explaining reasons for delay in completion of work
1	2	3	4	5	6	7	8	9	10	11

- 1.4 Quantities of work executed as prime contractor (in the same name) during the last five years specified in 1.2 above:

Year	Name of Work	Name of Employer	Quantity of work performed							Remarks (Indicate contract reference)
									Others	
2012-13										
2013-14										
2014-15										
2015-16										
2016-17										

- 1.5 Information on works for which Tenders have been submitted and works which are yet to be completed as on the date of this Tender.

¹ Attach Certificate from Chartered Accountant

² Items of work for which data is requested should tally with that specified in ITT Clause 3

(A) Existing commitments and on-going works:

Description of Work	Place & State	Contract No. & Date	Name and Address of Employer	Value of Contract (Rs. lakhs)	Stipulated period of completion	Extended date of completion (if applicable)	Value of works ³ remaining to be completed (Rs. lakhs)	Anticipated date of completion
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)

(B) Works for which Tenders already submitted:

Description of Work	Place & State	Name and Address of Employer	Estimated value of works (Rs. lakhs)	Stipulated period of completion	Present Status of the tender	Date when decision is expected	Remarks if any
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)

- 1.6. The following items of equipment are considered essential for successfully carrying out the works. The Tenderer should furnish all the information listed below.

Item of Equipment	Requirement ⁴		Owned and available		Remarks
	No.	Capacity	Owned	Number/ Capacity	Age/ Condition

- 1.7 Reports on the financial standing of the tenderer, such as profit and loss statements and auditor's reports for the last five years;
- 1.8 Qualification and experience of the key technical and management personnel in permanent employment with the tenderer and those that are proposed to be deployed on this contract, if awarded.
- 1.9 Name, address, and telephone, telex, and fax numbers of the Tenderers' bankers who may provide References if contacted by the Employer.
- 1.10 Evidence of access to financial resources to meet the qualification requirement specified in ITT Clause 3.3 (c): Cash in hand, Letter of Credit etc. List them below and attach certificate from the Banker in the suggested format as under:

³ Attach Certificates from Engineers –in- Charge and not below the rank of Executive Engineer

⁴ The item of equipment, required number and capacity should match with those specified in ITT Clause 3.3 (a)

BANKER'S CERTIFICATE

This is to certify that M/s. is a reputed company with a good financial standing. If the contract for this work, namely (*name of the work*) is awarded to the above firm, we shall be able to provide overdraft/credit facilities to the extent of Rs.

..... to meet the working capital requirements for executing the above contract

Sd/-

Name of the Bank, Senior Bank Manger

Address:.....

- 1.11 Proposals for subcontracting components of works amounting to more than 20% of the contract price .

Item of Work	Value of Sub-Contract	Identified Sub-Contractor (Name and address)	Experience of similar work ⁵
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- 1.12 Information on litigations in which the Tenderer is involved:

Other Party (ies)	Employer	Details of dispute	Amount involved	Remarks showing present status
-------------------	----------	--------------------	-----------------	--------------------------------

- 1.13 The proposed methodology and program of construction, backed with equipment planning and deployment, duly supported with broad calculations and quality control procedures proposed to be adopted, justifying their capability of execution and completion of the work as per technical specifications within the stipulated period of completion as per milestones.

⁵ Attach certificates from the respective Employers

Litigation History

Each shall provide information on any history of litigation or arbitration resulting from contracts executed in the last five years or currently under execution.

Form A

Year	Award for or Against the applicant	Name of client, cause of litigation, and matter in dispute	Disputed amount current value, INR lakhs)

Personnel

Tenderer should provide the names of suitably qualified personnel to meet the requirements specified in as per qualification criteria of ITT. The data on their experience should be supplied using the Form below for each candidate.

Form B1:**Proposed Personnel**

1.	Title of position*
	Name
2.	Title of position*
	Name
3.	Title of position*
	Name
4.	Title of position*
	Name

Form B2: Resume of Proposed Personnel

Position	
Personnel information	Name
	Date of birth
Present employment	Professional qualifications
	Name of employer
	Address of employer
	Telephone
	Contact (manager / personnel officer)
Fax	E-mail
Job title	Years with present employer

K/W-4

Equipment

The Tenderer shall provide adequate information to demonstrate clearly that it has the capability to meet the requirements for the key equipment listed in qualification criteria. **of ITT**. A separate Form shall be prepared for each item of equipment listed, or for alternative equipment proposed by the Bidder.

Form C

Item of Equipment		
Equipment Information	Name of manufacturer	Model and power rating
	Capacity	Year of manufacture
Current Status	Current location	
	Details of current commitments	
Source	Indicate source of the equipment ☐ Owned ☐ Rented ☐ Leased ☐ Specially manufactured	

Omit the following information for equipment owned by the Tenderer.

Owner	Name of owner	
	Address of owner	
	Telephone	Contact name and title
	Fax	Telex
Agreements	Details of rental / lease / manufacture agreements specific to the project	

**SECTION 4: FORMS OF TENDER, EARNEST MONEY DEPOSIT FORM, LETTER OF
ACCEPTANCE, NOTICE TO PROCEED WITH THE WORK AND AGREEMENT FORM**

**SECTION 4: FORMS OF TENDER, EARNEST MONEY DEPOSIT FORM, LETTER OF
ACCEPTANCE, NOTICE TO PROCEED WITH THE WORK AND
AGREEMENT FORM**

Form of Tender

Description of the Works: Improvement of Water Source for Udupi City

Tender

To : Commissioner,
City Municipal Council, Udupi
Udupi District.

GENTLEMEN,

We offer to execute the Works described above in accordance with the Conditions of Contract accompanying this Tender for the Contract Price of as per BoQ. *[in figures]*

(As per uploaded BOQ) [in letters].⁶

This Tender and your written acceptance of it shall constitute a binding contract between us. We understand that you are not bound to accept the lowest or any tender you receive.

The mobilization advance payment required is Rs...as per Contract.....

We undertake that, in competing for (and, if the award is made to us, in executing) the above contract, we will strictly observe the laws against fraud and corruption in force in India namely "Prevention of Corruption Act 1988".

We hereby confirm that this Tender complies with the Tender validity and Earnest money deposit required by the Tender documents.

We attach herewith our current income-tax clearance certificate.

Yours faithfully,

Authorized Signature:

Name & Title of Signatory: _____

Name of Tenderer _____

Address: _____

Note: This form has to be duly completed, signed and uploaded on the e-procurement portal in the first folder-Technical bid.

⁶ To be filled in by the Tenderer, together with his particulars and date of submission at the bottom of the Form of Tender

DETAILS OF PAYMENT OF TENDER PROCESSING FEES AND EARNEST MONEY DEPOSIT

From: (Tenderer)

.....

.....

.....

To:

Commissioner
City Municipal Council,
Udupi

Sir:

1. I/ We have made the payment of the tender processing fees of Rs./- Rupees.....only (*in words*) through Credit Card/Direct Debit/ National Electronic Funds Transfer (NEFT)/ over the counter in branch of bank on..... (*Strike the modes not used*)
2. I/We have made the payment of the Earnest Money of Rs..... Rupees..... only (*in words*) through Credit Card/Direct Debit/National Electronic Funds Transfer (NEFT)/ over the counter in branch of bank on (*Strike the modes not used as per IFT.*)
3. We agree that the Earnest Money deposited by us as detailed above may be forfeited by the Employer if we:
 - i) Withdraw our bid during the period of validity specified in the bidding document;
 - ii) Do not sign the Agreement within the specified time limit in case we are successful and letter of acceptance has been communicated;
 - iii) Do not furnish the required Performance Security deposit as required in Clause 29 of ITT

(Signature and Name of Tenderer)

Date:

Note: This Form must be duly completed, signed and uploaded on the e-procurement portal in the First Folder – Technical Tender.

Letter of Acceptance
(letter head paper of the Employer)

_____ [date]

To: _____ [name and
address of the Contractor]

Dear Sirs,

This is to notify you that your Tender dated _____ for execution of the Improvement of Water Source for Udupi City Package AMRUT UDP 01 for the Contract Price of Rupees _____ (_____) [amount in words and figures], as corrected and modified in accordance with the Instructions to Tenderers is hereby accepted by our Agency.

You are hereby requested to furnish Security deposit plus additional security for unbalanced tenders in terms of Clause 25.5 of ITT, in the form detailed in Clause 29.1 of ITT for an amount of Rs. _____ within 28 days of the receipt of this letter of acceptance valid up to 30 days from the date of expiry of Defects Liability Period i.e. up to and sign the contract, failing which action as stated in Para 29.4 of ITT will be taken.

Yours faithfully,

COMMISSIONER,
City Municipal Council,
Udupi.

(Signature, name and title of signatory authorized to sign on behalf of Employer)

Issue of Notice to proceed with the work
(Letterhead of the Employer)

To

_____ (name and address of the Contractor)

Dear Sirs:

Pursuant to your furnishing the requisite security deposit as stipulated in ITT Clause 29.1 and signing of the contract agreement for the Improvement of Water Source for Udupi City, Udupi District a Tender Price of Rs._____, you are hereby instructed to proceed with the execution of the said works in accordance with the contract documents.

Yours faithfully,

Commissioner,
City Municipal Council, Udupi.

(Signature, name and title of signatory authorized to sign on behalf of Employer)

Agreement Form

Agreement

This agreement, made the _____ day of _____ 2018,
Between Commissioner, City Municipal Council, Udupi District (hereinafter called "the Employer") of the one
part and _____

_____ [name and address of contractor]
(Hereinafter called "the Contractor") of the other
part.

Whereas the Employer is desirous that the Contractor execute Improvement of Water Source for Udupi City
AMRUT UDP 01 (hereinafter called "the Works") and the Employer has accepted the Tender by the Contractor
for the execution and completion of such Works and the remedying of any defects therein at a contract price of
Rupees.....

NOW THIS AGREEMENT WITNESSETH as follows:

1. In this Agreement, words and expression shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to, and they shall be deemed to form and be read and construed as part of this Agreement.
2. In consideration of the payments to be made by the Employer to the Contractor as hereinafter mentioned, the Contractor hereby covenants with the Employer to execute and complete the Works and remedy any defects therein in conformity in all aspects with the provisions of the Contract.
3. The Employer hereby covenants to pay the Contractor in consideration of the execution and completion of the Works and the remedying the defects wherein the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.
4. The following documents shall be deemed to form and be read and construed as part of this Agreement, viz:
 - i) Letter of Acceptance;
 - ii) Notice to proceed with the works;
 - iii) Contractor's Tender;
 - iv) Contract Data;
 - v) Conditions of contract (including Special Conditions of Contract);
 - vi) Specifications;
 - vii) Drawings;
 - viii) Bill of Quantities; and
 - ix) Any other document listed in the Contract Data as forming part of the contract.

In witness whereof the parties thereto have caused this Agreement to be executed the day and year first before written.

The Common Seal of _____
was hereunto affixed in the presence of:
Signed, Sealed and Delivered by the said _____

in the presence of:

Binding Signature of Employer _____
Binding Signature of Contractor _____

SECTION 5: CONDITIONS OF CONTRACT

Table of Contents

A.	General	Page No.
	1. Definitions	33
	2. Interpretation	33
	3. Law governing contract	34
	4. Employers decisions	34
	5. Delegation	34
	6. Communications	34
	7. Subcontracting	34
	8. Other Contractors	34
	9. Personnel	34
	10. Employer's and Contractor's risks	34
	11. Employer's risks	34
	12. Contractor's risks	35
	13. Insurance	35
	14. Site Investigation Report	35
	15. Query about Contract Data	35
	16. Contractor to construct the Works	35
	17. The Works to be completed by Intended Completion Date	35
	18. Approvals by the Employer	36
	19. Safety	36
	20. Discoveries	36
	21. Possession of the Site	36
	22. Access to the Site	36
	23. Instructions	36
	24. Procedure for resolution of disputes	36
B.	Time Control	
	25. Program	37
	26. Extension of the Intended Completion Date	37
	27. Delays ordered by the Employer	37
	28. Management meetings	37
C.	Quality Control	
	29. Identifying defects	38
	30. Tests	38
	31. Correction of defects	38
	32. Uncorrected defects	38
D.	Cost Control	
	33. Bill of Quantities (BOQ)	39
	34. Variations	39
	35. Payment for Variations	39
	36. Submission of bills for payment	40
	37. Payments	40
	38. Compensation events	40
	39. Tax	40

	40	Price Adjustment	41
	41.	Liquidated damages	42
	42.	Advance Payments	42
	43.	Securities	42
	44.	Cost of repairs	43
E		Finishing of Contract	
	45.	Completion	43
	46.	Taking Over	43
	47.	Final account	43
	48.	As built drawings and/or Operating and Maintenance Manuals	43
	49.	Termination	43
	50	Payment upon termination	44
	51.	Property	44
	52.	Release from performance	44
F		Special Conditions of Contract	45

Section 5: Conditions of Contract

A. General

1. Definitions

- 1.1 Terms which are defined in the Contract Data are not also defined in the Conditions of Contract but keep their defined meanings. Bold letters are used to identify defined terms.

Bill of Quantities means the priced and completed Bill of Quantities forming part of the Tender.

Compensation events are those defined in Clause 38 hereunder.

The **Completion Date** is the date of completion of the Works as certified by the Employer in accordance with Sub Clause 45.1.

The **Contract** is the contract between the Employer and the Contractor to execute, complete and maintain the Works. It consists of the documents listed in Clause 2.2 below.

The **Contract Data** defines the documents and other information which comprise the Contract.

The **Contractor** is a person or corporate body who's Tender to carry out the Works has been accepted by the Employer.

The **Contractor's Tender** is the completed Tender document submitted by the Contractor to the Employer.

The **Contract price** is the price stated in the Letter of Acceptance and thereafter as adjusted in accordance with the provisions of the Contract.

Days are calendar days; **months** are calendar months.

A **Defect** is any part of the Works not completed in accordance with the Contract.

The **Defects liability period** is the period named in the Contract Data and calculated from the Completion Date.

The **Employer** is the party who will employ the Contractor to carry out the Works.

Equipment is the Contractor's machinery and vehicles brought temporarily to the Site to construct the Works.

The **Initial Contract price** is the Contract Price listed in the Employer's Letter of Acceptance.

The **Intended Completion Date** is the date on which it is intended that the Contractor shall complete the Works. The Intended Completion Date is specified in the Contract Data. The Intended Completion Date may be revised only by the Employer by issuing an extension of time.

Materials are all supplies, including consumables, used by the contractor for incorporation in the Works.

Plant is any integral part of the Works which is to have a mechanical, electrical, electronic or chemical or biological function.

The **Site** is the area defined as such in the Contract Data.

Specification means the Specification of the Works included in the Contract and any modification or addition made or approved by the Employer.

The **Start Date** is given in the Contract Data. It is the date when the Contractor shall commence execution of the works. It does not necessarily coincide with any of the Site Possession Dates.

A **Subcontractor** is a person or corporate body who has a Contract with the Contractor to carry out a part of the work in the Contract which includes work on the Site.

A **Variation** is an instruction given by the Employer which varies the Works.

The **Works** are what the Contract requires the Contractor to construct, install, and turn over to the Employer, as defined in the Contract Data.

2. Interpretation

- 2.1 In interpreting these Conditions of Contract, singular also means plural, male also means female or neuter, and the other way around. Headings have no significance. Words have their normal meaning under the language of the Contract unless specifically defined. The Employer will provide instructions clarifying queries about the Conditions of Contract.
- 2.2 The documents forming the Contract shall be interpreted in the following order of priority:
- (1) Agreement
 - (2) Letter of Acceptance, notice to proceed with the works
 - (3) Contractor's Tender
 - (4) Contract Data
 - (5) Conditions of Contract
 - (6) Specifications
 - (7) Drawings
 - (8) Bill of quantities and
 - (9) any other document listed in the Contract Data as forming part of the Contract.

3. Law governing contract

- 3.1 The law governing the Contract is the Laws of India supplanted by the Karnataka Local Acts.

4. Employer's decisions

- 4.1 Except where otherwise specifically stated, the Employer will decide contractual matters between the Employer and the Contractor.

5. Delegation

- 5.1 The Employer may delegate any of his duties and responsibilities to other people after notifying the Contractor and may cancel any delegation after notifying the Contractor.

6. Communications

- 6.1 Communications between parties which are referred to in the conditions are effective only when in writing. A notice shall be effective only when it is delivered (in terms of Indian Contract Act).

7. Subcontracting

- 7.1 Deleted.

8. Other Contractors

- 8.1 The Contractor shall cooperate and share the Site with other contractors, public authorities, utilities, and the Employer.

9. Personnel

- 9.1 The Contractor shall employ the technical personnel (of number and qualifications) as may be stipulated by GOK from time to time during the execution of the work. The technical staff so employed shall be available at site as may be stipulated by the Employer.

- 9.2 If the Employer asks the Contractor to remove a person who is a member of the Contractor's staff or his work force stating the reasons, the Contractor shall ensure that the person leaves the Site within seven days and has no further connection with the work in the Contract.

10. Employer's and Contractor's risks

- 10.1 The Employer carries the risks which this Contract states are Employer's risks, and the Contractor carries the risks which this Contract states are Contractor's risks.

11. Employer's risks

- 11.1 The Employer is responsible for the excepted risks which are:

- (a) rebellion, riot commotion or disorder unless solely restricted to employees of the Contractor or his Sub-Contractors arising from the conduct of the Works; or
- (b) a cause due solely to the design of the Works, other than the Contractor's design; or
- (c) any operation of the forces of nature (in so far as it occurs on the Site) which an experienced contractor:
 - (i) could not have reasonably foreseen; or
 - (ii) could reasonably have foreseen, but against which he could not reasonably have taken at least one of the following measures;
 - (A) prevent loss or damage to physical property from occurring by taking appropriate measures or
 - (B) insure against such loss or damage

12. Contractor's risks

- 12.1 All risks of loss of or damage to physical property and of personal injury and death which arise during and in consequence of the performance of the Contract other than the excepted risks are the responsibility of the Contractor.

13. Insurance:

- 13.1 The Contractor shall prior to commencing the works, effect and thereafter maintain insurances, in the joint names of the Employer and the Contractor, (cover from the first working day after the Start Date to the end of Defects Liability Period), in the amounts stated in the Contract Data :
- (a) for loss of or damage to the Works, Plants and Materials and the Contractor's equipment;
 - (b) for liability of both Parties for loss, damage, death and injury to third parties or their property arising out of the Contractor's performance of the Contract including the Contractor's liability for damage to the Employer's property other than the Works and
 - (c) for liability of both Parties and of any Employer's representative for death and injury to the Contractor's personnel except to the extent that liability arises from the negligence of the Employer, any Employer's representative or their Employees.
- 13.2 Policies and certificates for insurance shall be delivered by the Contractor to the Employer for his approval before the Start Date. All such insurance shall provide for compensation to be payable to rectify the loss or damage incurred. All payments received from insurers relating to loss or damage shall be held jointly by the Parties and used for the repair of the loss or damage or as compensation for loss or damage that is not to be repaired.
- 13.3 If the Contractor fails to effect or keep in force any of the insurances referred to in the previous sub-clauses or fails to provide satisfactory evidence, policies or receipts, the Employer may without prejudice to any other right or remedy, effect insurance for the cover relevant to such default and pay the premiums due and recover the same as a deduction from any other monies due to the Contractor. If no payment is due, the payment of the premiums shall be a debt due.

- 13.4 Alterations to the terms of insurance shall not be made without the approval of the Employer.
- 13.5 Both Parties shall comply with any conditions of the insurance policies.

14. Site Investigation Reports:

- 14.1 The Contractor, in preparing the tender, shall rely on any site investigation reports referred to in the Contract data, supplemented by any information available to the Tenderer.

15. Queries about the Contract Data

- 15.1 The Employer will clarify queries on the Contract Data.

16. Contractor to construct the Works

- 16.1 The Contractor shall construct the Works in accordance with the Specification and Drawings.

17. The Works to be completed by the Intended Completion Date

- 17.1 The Contractor may commence execution of the Works on the Start Date and shall carry out the Works in accordance with the program submitted by the Contractor, as updated with the approval of the Employer, and complete them by the Intended Completion Date.

18. Approval by the Employer:

- 18.1 The Contractor shall submit Specification and drawings showing the proposed Temporary Works to the Employer, who is to approve them if they comply with the Specifications and Drawings.
- 18.2 The Contractor shall be responsible for the design of Temporary Works
- 18.3 The Employer's approval shall not alter the Contractor's responsibility for design of the Temporary Works.
- 18.4 The Contractor shall obtain approval of third parties to the design of third parties to the design of the temporary Works where required.
- 18.5 All Drawings prepared by the Contractor for the execution of the temporary or permanent Works, are subject to prior approval by the Employer before their use.

19. Safety

- 19.1 The Contractor shall be responsible for the safety of all activities on the Site.

20. Discoveries

- 20.1 Anything of historical or other interest or of significant value unexpectedly discovered on the Site is the property of the Employer. The Contractor is to notify the Employer of such discoveries and carry out the Employer's instructions for dealing with them.

21. Possession of the Site

- 21.1 The Employer shall give possession of all parts of the Site to the Contractor. If possession of a part is not given by the date stated in the Contract Data the Employer is deemed to have delayed the start of the relevant activities and this will be Compensation Event.

22. Access to the Site

- 22.1 The Contractor shall allow the Employer and any person authorized by the Employer access to the Site, to any place where work in connection with the Contract is being carried out or is intended to be carried out and to any place where materials or plant are being manufactured / fabricated / assembled for the works.

23. Instructions

- 23.1 The Contractor shall carry out all instructions of the Employer which comply with the applicable laws where the Site is located.

24. Procedure for resolution of Disputes:

- 24.1 If the Contractor is not satisfied with the decision taken by the Employer, the dispute shall be referred by either party to Arbitration within 30 days of the notification of the Employer's decision.
- 24.2 If neither party refers the dispute to Arbitration within the above 30 days, the Employer's decision will be final and binding.
- 24.3 The Arbitration shall be conducted in accordance with the arbitration procedure stated in the Special Conditions of Contract.

B. Time Control**25. Program**

- 25.1 Within the time stated in the Contract Data the Contractor shall submit to the Employer for approval a Program showing the general methods, arrangements, order, and timing for all the activities in the Works.
- 25.2 The Employer's approval of the Program shall not alter the Contractor's obligations. The Contractor may revise the Program and submit it to the Employer again at any time. A revised Program is to show the effect of Variations and Compensation Events.

26. Extension of the Intended Completion Date

- 26.1 The Employer shall extend the Intended Completion Date if a Compensation Event occurs or a Variation is issued which makes it impossible for Completion to be achieved by the Intended Completion Date.
- 26.2 The Employer shall decide whether and by how much to extend the Intended Completion Date within 21 days of the Contractor asking the Employer for a decision upon the effect of a Compensation Event or Variation and submitting full supporting information.

27. Delays ordered by the Employer

- 27.1 The Employer may instruct the Contractor to delay the start or progress of any activity within the Works.

28. Management meetings

- 28.1 The Employer may require the Contractor to attend a management meeting. The business of a management meeting shall be to review the progress achieved and the plans for remaining work.
- 28.2 The responsibility of the parties for actions to be taken is to be decided by the Employer either at the management meeting or after the management meeting and stated in writing to be distributed to all who attended the meeting.

C. Quality Control

29. Identifying defects

29.1 The Employer shall check the Contractor's work and notify the Contractor of any Defects that are found. Such checking shall not affect the Contractor's responsibilities. The Employer may instruct the Contractor to search for a Defect and to uncover and test any work that the Employer considers may have a Defect

30. Tests

30.1 If the Employer instructs the Contractor to carry out a test not specified in the Specification to check whether any work has a Defect and the test shows that it does, the Contractor shall pay for the test and any samples. If there is no Defect the test shall be a Compensation Event.

31. Correction of defects

31.1 The Employer shall give notice to the Contractor of any Defects before the end of the Defects Liability Period, which begins at Completion and is defined in the Contract Data. The Defects Liability Period shall be extended for as long as Defects remain to be corrected.

31.2 Every time notice of a Defect is given, the Contractor shall correct the notified Defect within the length of time specified by the Employer's notice.

32. Uncorrected defects

32.1 If the Contractor has not corrected a Defect within the time specified in the Employer's notice, the Employer will assess the cost of having the Defect corrected, and the Contractor will pay this amount.

D. Cost Control

33. Bill of Quantities (BOQ)

33.1 The BOQ shall contain items for the construction, installation, testing, and commissioning work to be done by the Contractor.

33.2 The BOQ is used to calculate the Contract Price. The Contractor is paid for the quantity of the work done at the rate in the BOQ for each item

34. Variations

34.1 The Employer shall have power to order the Contractor to do any or all of the following as considered necessary or advisable during the progress of the work by him

- (a) Increase or decrease of any item of work included in the Bill of Quantities (BOQ);
- (b) Omit any item of work;
- (c) Change the character or quality or kind of any item of work;
- (d) Change the levels, lines, positions and dimensions of any part of the work;
- (e) Execute additional items of work of any kind necessary for the completion of the works; and
- (f) Change in any specified sequence, methods or timing of construction of any part of the work.

34.2 The Contractor shall be bound to carry out the work in accordance with any instructions in this connection, which may be given to him in writing by the Employer and such alteration shall not vitiate or invalidate the contract.

34.3 Variations shall not be made by the Contractor without an order in writing by the Employer, provided that no order in writing shall be required for increase or decrease in the quantity of an item appearing in the BOQ so long as the work executed conforms to the approved drawings.

- 34.4 The Contractor shall promptly request in writing the Employer to confirm verbal orders and the officer issuing oral instructions shall confirm it in writing within 30 days, failing which the work shall be carried out as though there is no variation. In case variation is approved, it shall be accompanied by BOQ, failing which the Contractor shall be responsible for deviation, if any. Further, approval of the Govt. has to be obtained for the variation exceeding 5%.

35. Payments for Variations

- 35.1 Payment for increase in the quantities of an item in the BOQ up to 25% of that provided in the Bill of Quantities shall be made at the rates quoted by the Contractor.
- 35.2 For quantities in excess of 125% of the tendered quantity of an item as given in the BOQ, the Contractor shall be paid at the rate entered in or derived from in the Schedule of Rates (applicable for the area of the work and current at the time of award of contract) plus or minus the overall percentage of the original tendered rates over the current Schedule of Rates prevalent at the time of award of contract.
- 35.3 If there is no rate for the additional, substituted or altered item of the work in the BOQ, efforts would be made to derive the rates from those given in the BOQ or the Schedule of Rates (applicable for the area of the work and current at the time of award of contract) and if found feasible the payment would be made at the derived rate for the item plus or minus the overall percentage of the original tendered rates over the current Schedule of Rates prevalent at the time of award of contract.
- 35.4 If the rates for additional, substituted or altered item of work cannot be determined either as at 35.1 or 35.2 or 35.3 above, the Contractor shall be requested to submit his quotation for the items supported by analysis of the rate or rates claimed, within 7 days.
- 35.5 If the Contractor's quotation is determined unreasonable, the Employer may order the Variation and make a change to the Contract Price which shall be based on Employer's own forecast of the effects of the Variation on the Contractor's costs.
- 35.6 If the Employer decides that the urgency of varying the work would prevent a quotation being given and considered without delaying the work, no quotation shall be given and the Variation shall be treated as a Compensation Event.
- 35.7 Under no circumstances the Contractor shall suspend the work on the plea of non-settlement of rates for items falling under this Clause.

36. Submission of bills for payment

- 36.1 The Contractor shall submit to the Employer monthly bills of the value of the work completed less the cumulative amount paid previously.
- 36.2 The Employer shall check the Contractor's bill and determine the value of the work executed which shall comprise of (i) value of the quantities of the items in the BOQ completed and (ii) valuation of Variations and Compensation Events.
- 36.3 The Employer may exclude any item paid in a previous bill or reduce the proportion of any item previously paid in the light of later information.

37. Payments

- 37.1 Payments shall be adjusted for deductions for advance payments, other recoveries in terms of the contract and taxes, at source, as applicable under the law. The Employer shall pay the Contractor the within 60 days of submission of bill. The Contractor shall be liable to pay liquidated damages for shortfall in progress.

For the progress beyond the agreed programme payment is subjected to the availability of the grants.

- 37.2 Items of the Works for which no rate or price has been entered in will not be paid for by the Employer and shall be deemed covered by other rates and prices in the Contract.

38. Compensation events

- 38.1 The following are Compensation events unless they are caused by the Contractor:
- (a) The Employer does not give access to a part of the Site by the Site Possession Date stated in the Contract Data.
 - (b) The Employer orders a delay or does not issue drawings, specifications or instructions required for execution of works on time.
 - (c) The Employer instructs the Contractor to uncover or to carry out additional tests upon work which is then found to have no Defects.
 - (d) The Employer gives an instruction for dealing with an unforeseen condition, caused by the Employer, or additional work required for safety or other reasons.
 - (e) The effect on the Contractor of any of the Employer's Risks.
 - (f) The Employer unreasonably delays issuing a Certificate of Completion.
 - (g) Other Compensation Events listed in the Contract Data or mentioned in the Contract.
- 38.2 If a Compensation Event would cause additional cost or would prevent the work being completed before the Intended Completion Date, the Contract Price shall be increased and/or the Intended Completion Date is extended. The Employer shall decide whether and by how much the Contract Price shall be increased and whether and by how much the Intended Completion Date shall be extended.
- 38.3 As soon as information demonstrating the effect of each Compensation event upon the Contractor's forecast cost has been provided by the Contractor, it is to be assessed by the Employer and the Contract Price shall be adjusted accordingly. If the Contractor's forecast is deemed unreasonable, the Employer shall adjust the Contract Price based on Employer's own forecast. The Employer will assume that the Contractor will react competently and promptly to the event.
- 38.4 The Contractor shall not be entitled to compensation to the extent that the Employer's interests are adversely affected by the Contractor not having given early warning or not having cooperated with the Employer.

39. Tax

- 39.1 The rates quoted by the Contractor shall be deemed to be inclusive of the sales and other taxes that the Contractor will have to pay for the performance of this Contract. The Employer will perform such duties in regard to the deduction of such taxes at source as per applicable law.

40. Price Adjustment:

- 40.1 Contract price shall be adjusted for increase or decrease in rates and prices of labour, materials, fuels and lubricants in accordance with the following principles and procedures and as per formulae given in the Contract Data.
- (a) The price Adjustment shall apply for the work done from the date of commencement up to the end of original period of completion or extensions granted by the Employer and shall not apply to work carried out beyond the stipulated period of completion for reasons attributable to the Contractor;
 - (b) Price Adjustment shall be admissible from the date of opening of tenders (original or extended)
 - (c) The price adjustment shall be determined during each quarter from the formulae given in Contract Data.
 - (d) Following expressions and meanings are assigned to the work done during the quarter:

R = Total value of work done during the quarter. It will **exclude** value for works executed under variations for which price adjustment (if any) will be worked out separately based on the terms mutually agreed.

- 40.2 To the extent that full compensation for any rise or fall in costs to the Contractor is not covered by the provisions of this or other Clauses in the Contract, the unit rates included in the contract shall be deemed to include amounts to cover the contingency of such other rise or fall in costs.
- 40.3 G.O no . FD 3 PCL 2008, dated 21.11.2008 and G.O No:791 Exp-12/2015 Bangalore dated-26.02.2016 shall be adopted for determining price escalation as required.

41. Liquidated damages

- 41.1 The Contractor shall pay liquidated damages to the Employer at the rate per day stated in the Contract Data for each day that the Completion Date is later than the Intended Completion Date (for the whole of the works or the milestone as stated in the Contract Data). The total amount of liquidated damages shall not exceed the amount defined in the Contract Data. The Employer may deduct liquidated damages from payments due to the Contractor. Payment of liquidated damages does not affect the Contractor's liabilities.
- 41.2 If the Intended Completion Date is extended after liquidated damages have been paid, the Employer shall correct any overpayment of liquidated damages by the Contractor by adjusting the next payment of bill.

42. Advance Payments:

- 42.1 The Employer shall make payment to the Contractor of the amounts stated in the Contract Data by the date stated in the Contract Data, against provision by the Contractor of an unconditional bank guarantee in a form acceptable to the Employer issued by a Nationalized/Scheduled Bank in amounts equal to the advance payment. The guarantee shall remain effective until the advance payment has been repaid, but the amount of the guarantee shall be progressively reduced by the amounts repaid by the Contractor. Interest will not be charged on the advance payment.
- 42.2 The Contractor is to use the advance payment only to pay for Mobilization expenses required specifically for execution of the Works. The Contractor shall demonstrate that advance payment has been used in this way by supplying copies of invoices or other documents to the Employer.
- 42.3 The advance payment shall be repaid by deducting proportionate amounts from payments otherwise due to the Contractor, following the schedule of completed percentages of the Works on a payment basis. No account shall be taken of the advance payment or its repayment in assessing valuation of the work done, variations, price adjustments, compensation events or liquidated damages.

43. Securities:

- 43.1 The Security deposit (including additional security for unbalanced tenders) shall be provided to the Employer no later than the date specified in the Letter of Acceptance and shall be issued in an amount and form and type of instrument acceptable to the Employer. The Security deposit shall be valid until a date 30 days from the date of expiry of Defects Liability Period and the additional security for Unbalanced tenders shall be valid until a date 28 days from the date of issue of the certificate of completion.

44. Cost of Repairs:

- 44.1 Loss or damage to the Works or Materials to be incorporated in the Works between the Start Date and the end of the Defects Correction periods shall be remedied by the Contractor at the Contractor's cost if the loss or damage arises from the Contractor's acts or omissions.

E. Finishing the Contract

45. Completion

- 45.1 The Contractor shall request the Employer to issue a Certificate of Completion of the Works and the Employer will do so upon deciding that the Work is completed.

46. Taking over

- 46.1 The Employer shall take over the Site and the Works within seven days of issuing a certificate of Completion.

47. Final account

- 47.1 The Contractor shall supply to the Employer a detailed account of the total amount that the Contractor considers payable under the Contract before the end of the Defects Liability Period. The Employer shall issue a Defect Liability Certificate and certify any final payment that is due to the Contractor within 90 days of receiving the Contractor's account if it is correct and complete. If it is not, the Employer shall issue within 90 days a schedule that states the scope of the corrections or additions that are necessary. If the Final Account is still unsatisfactory after it has been resubmitted, the Employer shall decide on the amount payable to the Contractor and make payment within 60 days of receiving the Contractor's revised account.

48. As built drawings and /or Operating and Maintenance Manuals

- 48.1 If "as built" Drawings and/or operating and maintenance manuals are required, the Contractor shall supply them by the dates stated in the Contract Data.
The date by which complete" as built' drawings are requires: Within 30 Days of issuance of the completion certificate. However, the contractor shall submit as-built drawing for the portion of the work completed, along with each RA bill.
The as -built drawings should be geo-referenced and the Auto-Cad drawings shall have all basic attributes required for **web based GIS application**.
- 48.2 If the Contractor does not supply the Drawings by the dates stated in the Contract Data, or they do not receive the Employer's approval, the Employer shall withhold the amount stated in the Contract Data from payments due to the Contractor.
- 48.3 The amount to be withheld for failing to produce 'as built' drawings and/or operating and maintenance manuals by the data required in GCC is 1% of the contract amount

49. Termination

- 49.1 The Employer may terminate the Contract if the other party causes a fundamental breach of the Contract.
- 49.2 Fundamental breaches of Contract include, but shall not be limited to the following:
- (a) the Contractor stops work for 45 days when no stoppage of work is shown on the current Program and the stoppage has not been authorized by the Employer;
 - (b) Deleted
 - (c) The Contractor becomes bankrupt or goes into liquidation other than for a reconstruction or amalgamation;
 - (d) Deleted
 - (e) the Employer gives Notice that failure to correct a particular Defect is a fundamental breach of Contract and the Contractor fails to correct it within a reasonable period of time determined by the Employer;

- (f) the Contractor does not maintain a security which is required;
- (g) the Contractor has delayed the completion of works by the number of days for which the maximum amount of liquidated damages can be paid as defined in the Contract data; and
- (h) If the Contractor, in the judgment of the Employer has engaged in corrupt or fraudulent practices in competing for or in the executing the Contract.
For the purpose of this paragraph: "corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution. "Fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the Borrower, and includes collusive practice among Tenderers (prior to or after Tender submission) designed to establish Tender prices at artificial non-competitive levels and to deprive the Borrower of the benefits of free and open competition."

- 49.3 When either party to the Contract gives notice of a breach of contract to the Employer for a cause other than those listed under Sub Clause 49.2 above, the Employer shall decide whether the breach is fundamental or not.
- 49.4 Notwithstanding the above, the Employer may terminate the Contract for convenience.
- 49.5 If the Contract is terminated the Contractor shall stop work immediately, make the Site safe and secure and leave the Site as soon as reasonably possible.

50. Payment upon Termination

- 50.1 If the Contract is terminated because of a fundamental breach of Contract by the Contractor, the Employer shall prepare bill for the value of the work done less advance payments received up to the date of the bill, less other recoveries due in terms of the contract, less taxes due to be deducted at source as per applicable law and less the percentage to apply to the work not completed as indicated in the Contract Data. Additional Liquidated Damages shall not apply. If the total amount due to the Employer exceeds any payment due to the Contractor the difference shall be a debt payable to the Employer.
- 50.2 If the Contract is terminated at the Employer's convenience or because of a fundamental breach of Contract by the Employer, the Employer shall prepare bill for the value of the work done, the reasonable cost of removal of Equipment, repatriation of the Contractor's personnel employed solely on the Works, and the Contractor's costs of protecting and securing the Works and less advance payments received up to the date of the certificate, less other recoveries due in terms of the contract, and less taxes due to be deducted at source as per applicable law and make payment accordingly.

51. Property

- 51.1 All materials on the Site, Plant, Equipment, Temporary Works and Works are deemed to be the property of the Employer, if the Contract is terminated because of a Contractor's default.

52. Release from performance

- 52.1 If the Contract is frustrated by any event entirely outside the control of either the Employer or the Contractor the Employer shall certify that the Contract has been frustrated. The Contractor shall make the Site safe and stop work as quickly as possible after receiving this certificate and shall be paid for all work carried out before receiving it and for any work carried out afterwards to which commitment was made.

F. Special Conditions of Contract

1. Labour :

The Contractor shall, unless otherwise provided in the Contract, make his own arrangements for the engagement of all staff and labour, local or other, and for their payment, housing, feeding and transport.

The Contractor shall, if required by the Employer, deliver to the Employer a return in detail, in such form and at such intervals as the Employer may prescribe, showing the staff and the numbers of the several classes of labour from time to time employed by the Contractor on the Site and such other information as the Employer may require.

2. Compliance with labour regulations:

During continuance of the contract, the Contractor and his sub-contractors shall abide at all times by all existing labour enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labour law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labour law in future either by the State or the Central Government or the local authority. The Contractor shall keep the Employer indemnified in case any action is taken against the Employer by the competent authority on account of contravention of any of the provisions of any Act or rules made there under, regulations or notifications including amendments. If the Employer is caused to pay or reimburse, such amounts as may be necessary to cause or observe, or for non-observance of the provisions stipulated in the notifications/bye laws/Acts/Rules/regulations including amendments, if any, on the part of the Contractor, Employer shall have the right to deduct any money due to the Contractor including his amount of security deposit. The Employer shall also have right to recover from the Contractor any sum required or estimated to be required for making good the loss or damage suffered by the Employer.

The employees of the Contractor and the Sub-Contractor in no case shall be treated as the employees of the Employer at any point of time.

SALIENT FEATURES OF SOME MAJOR LABOUR LAWS APPLICABLE TO ESTABLISHMENTS ENGAGED IN CONSTRUCTION WORKS

(The law as current on the date of bid opening will apply)

- a) Workmen Compensation Act 1923: The Act provides for compensation in case of injury by accident arising out of and during the course of employment.
- b) Payment of Gratuity Act 1972: Gratuity is payable to an employee under the Act on satisfaction of certain conditions on separation if an employee has completed 5 years' service or more or on death the rate of 15 days wages for every completed year of service. The Act is applicable to all establishments employing 10 or more employees.
- c) Employees P.F. and Miscellaneous Provision Act 1952 (since amended): The Act Provides for monthly contributions by the employer plus workers @ 10% or 8.33%. The benefits payable under the Act are :
 - (i) Pension or family pension on retirement or death, as the case may be.
 - (ii) Deposit linked insurance on the death in harness of the worker.
 - (iii) payment of P.F. accumulation on retirement/death etc.

- d) Maternity Benefit Act 1951: The Act provides for leave and some other benefits to women employees in case of confinement or miscarriage etc.
- e) Contract Labour (Regulation & Abolition) Act 1970: The Act provides for certain welfare measures to be provided by the Contractor to contract labour and in case the Contractor fails to provide, the same are required to be provided, by the Principal Employer by Law. The Principal Employer is required to take Certificate of Registration and the Contractor is required to take license from the designated Officer. The Act is applicable to the establishments or Contractor of Principal Employer if they employ 20 or more contract labour. The extracts of Contract Labour (Regulation and Abolition) Act 1970 is attached in Annexure- A
- f) Minimum Wages Act 1948: The Employer is supposed to pay not less than the Minimum Wages fixed by appropriate Government as per provisions of the Act if the employment is a scheduled employment. Construction of Buildings, Roads, Runways are scheduled employments.
- g) Payment of Wages Act 1936: It lays down as to by what date the wages are to be paid, when it will be paid and what deductions can be made from the wages of the workers.
- h) Equal Remuneration Act 1979: The Act provides for payment of equal wages for work of equal nature to Male and Female workers and for not making discrimination against Female employees in the matters of transfers, training and promotions etc.
- i) Payment of Bonus Act 1965: The Act is applicable to all establishments employing 20 or more employees. The Act provides for payments of annual bonus subject to a minimum of 8.33% of wages and maximum of 20% of wages to employees drawing Rs.3500/-per month or less. The bonus to be paid to employees getting Rs.2500/- per month or above upto Rs.3500/- per month shall be worked out by taking wages as Rs.2500/-per month only. The Act does not apply to certain establishments. The newly set-up establishments are exempted for five years in certain circumstances. Some of the State Governments have reduced the employment size from 20 to 10 for the purpose of applicability of this Act.
- j) Industrial Disputes Act 1947: The Act lays down the machinery and procedure for resolution of Industrial disputes, in what situations a strike or lock-out becomes illegal and what are the requirements for laying off or retrenching the employees or closing down the establishment.
- k) Industrial Employment (Standing Orders) Act 1946: It is applicable to all establishments employing 100 or more workmen (employment size reduced by some of the States and Central Government to 50). The Act provides for laying down rules governing the conditions of employment by the Employer on matters provided in the Act and get the same certified by the designated Authority.
- l) Trade Unions Act 1926: The Act lays down the procedure for registration of trade unions of workmen and employers. The Trade Unions registered under the Act have been given certain immunities from civil and criminal liabilities.
- m) Child Labour (Prohibition & Regulation) Act 1986: The Act prohibits employment of children below 14 years of age in certain occupations and processes and provides for regulation of employment of children in all other occupations and processes. Employment of Child Labour is prohibited in Building and Construction Industry.
- n) Inter-State Migrant workmen's (Regulation of Employment & Conditions of Service) Act 1979: The Act is applicable to an establishment which employs 5 or more inter-state migrant workmen through an intermediary (who has recruited workmen in one state for employment in the establishment situated in another state). The Inter-State migrant workmen, in an establishment to which this Act becomes applicable, are required to be provided certain facilities such as housing, medical aid, travelling expenses from home upto the establishment and back, etc.

- o) The Building and Other Construction workers (Regulation of Employment and Conditions of Service) Act 1996 and the Cess Act of 1996: All the establishments who carry on any building or other construction work and employs 10 or more workers are covered under this Act. All such establishments are required to pay cess at the rate not exceeding 2% of the cost of construction as may be modified by the Government. The Employer of the establishment is required to provide safety measures at the Building or construction work and other welfare measures, such as Canteens, First-Aid facilities, Ambulance, Housing accommodations for workers near the work place etc. The Employer to whom the Act applies has to obtain a registration certificate from the Registering Officer appointed by the Government.
- p) Factories Act 1948: The Act lays down the procedure for approval at plans before setting up a factory, health and safety provisions, welfare provisions, working hours, annual earned leave and rendering information regarding accidents or dangerous occurrences to designated authorities. It is applicable to premises employing 10 persons or more with aid of power or 20 or more persons without the aid of power engaged in manufacturing process.
- q) Employment of manual scavenging and construction of dry latrine (Prohibition) act 1993: The act prohibits the use of labours in cleaning of manhole chambers which is in use.

Extract copy of the Karnataka labour Act is attached. **Annexure A and A-1**

3. Unbalanced items means

Security (GCC 43),(ITT 25.5)(ITT 29.1)

- a) If the bid price of the contractor is seriously unbalanced, or front loaded in the opinion of the Employer in accordance with ITT 25.5 including the case where any item(s) of Bill of Quantities is below 75 % of the Employer's updated estimate rate of the concerned items, then the Bidder shall furnish an additional performance security in accordance with the conditions of contract, using the Performance Security Form included in Section 10
- b) The amount of additional Performance Security shall be equivalent to the difference between the Bidders price and 75% of the employer's updated estimate of the concerned item(s)
- c) The additional performance security furnished would be released upon request by the contractor as and when the concerned item(s) are satisfactorily and fully completed and are so certified by the Engineer.

4. Protection of Environment:

The contractor shall take all reasonable steps to protect the environment on and off the Site and to avoid damage or nuisance to persons or to property of the public or others resulting from pollution, noise or other causes arising as a consequence of his methods of operation. During continuance of the contract, the contractor and his sub-contractors shall abide at all times by all existing enactments on environmental protection and rules made there under, regulations, notifications and bye-laws of the State or Central Government, or local authorities and any other law, bye-law, regulations that may be passed or notification that may be issued in this respect in future by the State or Central Government or the local authority.

Add the following as GCC Clause 16.2:

The contractor shall take all reasonable steps to protect the environment on and off the Site and to avoid damage or nuisance to persons or to property of the public or others resulting from pollution, noise or other causes arising as a consequence of his methods of operation.

During continuance of the contract, the contractor and his sub-contractors shall abide at all times by all existing enactments on environmental protection and rules made there under, regulations, notifications and bye-laws of the State or Central Government, or local authorities and any other law, bye-law, regulations that may be passed or notification that may be issued in this respect in future by the State or Central Government or the local authority.

Salient features of some of the major laws that are applicable are given below:

The Water (Prevention and Control of Pollution) Act, 1974, this provides for the prevention and control of water pollution and the maintaining and restoring of wholesomeness of water. 'Pollution' means such contamination of water or such alteration of the physical, chemical or biological properties of water or such discharge of any sewage or trade effluent or of any other liquid, gaseous or solid substance into water (whether directly or indirectly) as may, or is likely to, create a nuisance or render such water harmful or injurious to public health or safety, or to domestic, commercial, industrial, agricultural or other legitimate uses, or to the life and health of animals or plants or of aquatic organisms.

The Air (Prevention and Control of Pollution) Act, 1981, this provides for prevention, control and abatement of air pollution. 'Air Pollution' means the presence in the atmosphere of any 'air pollutant', which means any solid, liquid or gaseous substance (including noise) present in the atmosphere in such concentration as may be or tend to be injurious to human beings or other living creatures or plants or property or environment.

The Environment (Protection) Act, 1986, this provides for the protection and improvement of environment and for matters connected therewith, and the prevention of hazards to human beings, other living creatures, plants and property. 'Environment' includes water, air and land and the inter-relationship which exists among and between water, air and land, and human beings, other living creatures, plants, micro-organism and property.

The Public Liability Insurance Act, 1991, this provides for public liability insurance for the purpose of providing immediate relief to the persons affected by accident occurring while handling hazardous substances and for matters connected herewith or incidental thereto. Hazardous substance means any substance or preparation which is defined as hazardous substance under the Environment (Protection) Act 1986, and exceeding such quantity as may be specified by notification by the Central Government.

Monitoring Requirement & Specifications:

No	Monitoring Requirements	Specification	Responsible agency
1	Noise levels at the construction sites(only during construction period)	Monitoring at all locations hourly basis for 24 hour period. Once every season of the year during construction period.	Contractor
2	Disposal of construction debris	Periodic inspection at haul roads and sites for construction debris for safe collection and disposal to identified land fill sites.	Contractor
3	Traffic and Transportation	Measures for diverting the traffic during construction across roads within the ULB	ULB and local police department
4	Domestic sewage and refuse management at the labour camps and construction sites	Check for adequacy of sanitation arrangements at the labour camps	Contractor
5	Water Pollution	Check for: • Blockage of flowing water which may lead to stagnation of water • Soil erosion due to construction activities leading to contamination and siltation of water bodies • Water contamination due to use of fuel and lubricants at the construction sites.	Contractor
6	Procurement of construction material	Check that procurement of construction materials should be only from permitted sites and quarries.	Contractor

Location of Noise monitoring shall be wherever the contractor decides to locate the equipment yard and at sensitive locations such as school, hospitals, dispensary etc. In case of noise levels causing disturbance to the sensitive receptors, management measures as suggested in the EMP shall be carried out.

The implementation of Mitigation Measures is the responsibilities of the Contractor. However, it may be noted that implementation of all the measures is full responsibility of Contractor.

5. Arbitration (Clause 24)

All disputes arising out of or in connection with this contract not settled through amicable settlement, shall be referred to the Managing Director KUIDFC. Upon such reference the MD shall make attempt to amicably resolve the dispute within (60) days. If the dispute is not settled the appeal shall be preferred to the ACS/ Principal Secretary Urban Development Department (UDD), Govt of Karnataka (GoK) whose decision shall be final. If the dispute is not amicably settled within 60 (sixty) days from the date of reference to ACS/ Principal Secretary, UDD either party may refer the dispute to the Jurisdictional Court of Law..

6. Liquidated Damages: (GCC Clause 41)

Sub-clause 41.1:

Please substitute the last sentence with the following:

“Time is the essence of the contract and payment or deduction of liquidated damages shall not relieve the contractor from his obligation to complete the work as per agreed construction program and milestones or from any other of the contractor’s obligations and liabilities under the contract.”

Liquidated damages once levied as per Contract Data for delay of achievement of a milestone cannot be refunded even if the subsequent milestone is achieved in time or the entire work is completed by the intended completion date, unless the extension of time is granted for that particular milestone.

7. Royalties: (GCC Clause 39)

The Employer shall deduct Royalties on materials used in the works from progress payments to the Contractor at the rates specified in the “Karnataka Minor Minerals Concession Rules 2007” as published by the Commerce and Industries Department (Mines) and as amended from time to time till the date of submission of tenders. It shall be responsibility of the Tenderer to ascertain the applicable rates as on the date of submission of tenders. However the latest amendment as per record available in this office is given in **Annexure C**. Any representation on the discrepancy between the rates as contained in Annexure C and the latest amendment will not be entertained.

8. Karnataka Building and other Construction Worker’s Welfare Cess: (GCC Clause 39)

The Employer shall deduct Cess from the bills of the Contractor at the rates as may be notified from time to time under the Building and other Construction Workers Welfare Cess Act 1996. The current rate is 1% of the tender amount.

9. Quarry materials: (GCC Clause 14)

The Contractor shall be wholly responsible to identify the suitable sources for quarry materials required for the works, such as earth, sand, stone, murrum etc and to make his own arrangements for collection and transportation of the materials irrespective of the leads and lifts required. The quarry thus identified by the Contractor should have proper license from the Government of Karnataka. All materials that is quarried

and transported by the Contractor shall satisfy the requirements set forth in the Specifications shall be subject to the approval of the Employer. The Contractor is deemed to have taken this into account while offering his rates and no claim whatsoever shall be entertained for extra costs on this account.

10. **Third Party Inspection and Testing: (GCC Clause 29)**

The Employer may engage a Third Party for inspection at manufacturer's works and also the work site activities. The fee for the third party inspection shall be paid by the Employer. The items for Third Party Inspection and the stages of Inspection are given in **Annexure D**. The list is illustrative and not exhaustive.

11. **Procurement of materials and equipment:**

The Contractor shall procure and use ISI marked materials and equipment or those conforming to relevant Bureau of Indian Standards as per latest amendments. The Contractor shall produce Manufacturer's test certificates for all the materials and equipment.

12. **Bill of Quantities: (GCC Clause 33)**

The BOQ shall contain items for the construction, installation, testing, and commissioning work to be done by the Contractor. The BOQ is used to calculate the Contract Price. The Contractor is paid for the quantity of the work done at the rate in the BOQ for each item.

Sl No	Work Stages	% Payment Break-up
Pipes, Valves, its accessories and appurtenances:		
1	Against Supply and Delivery	60% of BOQ Cost of relevant item
2	Against Laying and jointing	20% of BOQ Cost of relevant item
3	After Hydro testing	10% of BOQ Cost of relevant item
4	After trail run and commissioning	10% of BOQ Cost of relevant item
Pumps , Motors and other major electrical equipment		
1	Against Supply and Delivery	60% of BOQ Cost of relevant item
2	Against Installation in complete	20% of BOQ Cost of relevant item
3	After Testing and certification	10% of BOQ Cost of relevant item
4	After trail run and commissioning	10% of BOQ Cost of relevant item

The quantum of material to be procured shall be with the prior approval of Engineer-in-Charge and based upon the actual requirement at site. The payment shall be made against the test certificates, third party inspection certificates and the contractor shall indemnify and hold harmless the employer against the damages, losses and expenses (including legal fees and expenses) in respect of the materials kept at site.

13. **Design, Drawings and Documents:**

12.1.1 General Design Obligations:

The contractor has to do the self-validation of designs and drawings within 2 months of receipt of the notice to proceed with the work.

12.2 Technical Standards and Regulations:

The design, the tender documents, the execution and the completed Works shall comply with Bureau of Indian Standards, building, construction, and environmental laws applicable to the product being produced from the Works and other standards specified in the Employer's Requirements, applicable to the Works, or defined by the applicable laws.

If changed or new applicable standards come into force in India after the date of commencement of Works, the Contractor shall give notice to the Employer and (if appropriate) submit proposals for compliance. In the event that:

- (a) The Employer determines that compliance is required;
- (b) The proposals for compliance constitute a variation;

Then the Employer shall initiate a variation in accordance with Clause Variations and Adjustments.

12.3 Training:

The Contractor shall carry out the training of Employer's personnel in the operation and maintenance of Works to the extent specified in the Employer's Requirements. If the Contract specifies training which is to be carried out before taking over, the Works shall not be considered to be completed for the purposes of taking over under Clause [*Taking Over of the Works*] until this training has been completed.

12.4 Care and Supply of Documents:

The Contractor shall keep, on the Site, a copy of the Contract, publications named in the Employer's Requirements, the Tender Documents, and variations and other communications given under the Contract. The Employer's Personnel shall have the right of access to all these documents at all reasonable times.

12.5 Contractor's use of Employer's Documents:

As between the Parties, The Employer shall retain the copyright and other intellectual property rights in the Specification, the Drawings and other documents made by (or on behalf of) the Employer. The Contractor may at his cost, copy, use and obtain communication of these documents for the purposes of the Contract. They shall not, without the Employer's consent, be copied, used or communicated to a third party by the Contractor, except as necessary for the purposes of the Contract.

12.6 Transportation of Goods:

The Contractor shall give the Employer not less than 21 days' notice of the date on which any Plant or a major item of other Goods will be delivered to the Site.

The Contractor shall be responsible for packing, loading, transporting, receiving, unloading, storing and protecting the Goods and other things required for the Works;

The Contractor shall indemnify and hold the Employer harmless against and from all damages, losses and expenses (including legal fees and expenses) resulting from the transport of Goods and shall negotiate and pay all claims arising from their transport.

12.7 Contractor's Equipment:

The Contractor shall be responsible for all Contractors' Equipment. When brought on to the Site, Contractors' equipment shall be deemed exclusively intended for the execution of the Works.

The Contractor shall not remove from the Site any major items of Contractor's Equipment without the consent of the Employer. However consent shall not be required for vehicles transporting Goods or Contractor's personnel to the Site.

12.8 Electricity and Water:

The Contractor shall be responsible for the provision of all power, water and other services he may require.

12.9 Execution of the Contract:**12.9.1 Manner of Execution:**

The Contractor shall carry out the manufacture of Plant, the production and manufacture of materials and all other execution of the Works:

- (a) In the manner (if any) specified in the Contract;
- (b) In a proper workmanlike and careful manner, in accordance with recognized good practices; and
- (c) With properly equipped facilities and non-hazardous materials, except as otherwise specified in the Contract;

12.9.2 Contractor's Superintendence:

Throughout the execution of the Works and as long thereafter as is necessary to fulfill the Contractor's Obligations, the Contractor shall provide all necessary superintendence to plan arrange, direct, manage, inspect and test the work. Superintendence shall be given by a sufficient number of persons having adequate knowledge of the language for communications and of the operations to be carried out (including the methods and techniques required, the hazards likely to be encountered and methods of preventing accidents for the satisfactory and safe execution of the Works.

12.10 Contractor's Operation on Site:

The Contractor shall confine his operations to the Site and to any additional areas which may be obtained by the Contractor and agreed by the Employer as working areas. The Contractor shall take all necessary precautions to keep Contractor's equipment and personnel within the Site and these additional areas and to keep them off adjacent land.

During the execution of the Works, the Contractor shall keep the Site free from all unnecessary obstruction, and shall store or dispose of any Contractor's equipment or surplus materials. The Contractor shall clear away and remove from the Site any wreckage, rubbish and temporary works which are no longer required.

12.11 Program: (GCC Clause 25)

The Contractor shall submit a detailed time program to the Employer within 28 days after receiving the notice to commence the Works. The Contractor shall also submit a revised program whenever the previous program is inconsistent with actual progress or with the Contractor's obligation. Each program shall include:

- (a) The order in which the Contractor intends to carry out the Works, including the anticipated timing of each stage of design, Contractor's Documents, procurement, manufacture, inspection, delivery to Site, construction, erection, testing, commissioning and trial operations;
- (b) The periods of reviews and for any other submissions, approvals and consents specified in the Employer's Requirements;
- (c) The sequence and timing of of inspections and tests specified in the Contract;
 - (i) A supporting report which includes:
 - (ii) A general description of the methods which the Contractor intends to adopt and of the major stages in the execution of the works; and'
 - (iii) Details showing the Contractor's reasonable estimate of the number of each class of Contractor's personnel and of each type of Contractor's equipment required on the Site for each major stage

If at any time, the Employer gives notice to the Contractor that a program fails (to the extent stated) to comply with the Contract or to be inconsistent with the actual progress and the Contractor's stated intentions, the Contractor shall submit a revised program to the Employer.

12.11.1 Progress Reports:

Monthly progress reports shall be prepared by the Contractor and submitted to the Employer in six copies. The first report shall cover the period up to the end of the first calendar month following the Commencement Date. Reports shall be submitted thereafter each within 7 days after the last day of the period to which it relates.

Reporting shall continue until the Contractor has completed all work which is known to be outstanding at the completion date stated in the Taking Over Certificate for the Works.

Each Report should include:

- (a) Charts and detailed descriptions of progress, including each stage of design, Contractor's Documents, procurement, manufacture, delivery to Site, construction, erection, testing, commissioning and trial operation;
 - (b) Photographs showing the status of manufacture and of progress at the Site;
 - (c) For the manufacture of main items of Plant and Materials, the name of the manufacturer, manufacture location, percentage progress, and the actual and expected dates of:
 - (i) Commencement of manufacture;
 - (ii) Contractor's inspections;
 - (iii) Tests; and
 - (iv) Shipment and arrival at the Site;
 - (d) Details of Contractor's personnel and equipment;
 - (e) Copies of quality assurance documents;
 - (f) List of variations, including details of any hazardous incidents and activities relating to environmental aspects and public relations; and
- Comparisons of actual and planned progress, with details of any events or circumstances which may jeopardize the completion in accordance with the Contract, and the measures being (or to be) adopted to overcome delays;

12.12 Inspection: (GCC Clause 29)

The Employer's personnel shall at all times:

- (a) Have full access to all parts of the Site and to all places from which natural materials are being obtained; and
- (b) During production, manufacture and construction (at the Site and elsewhere) be entitled to examine, inspect measure and test the materials and workmanship and to check the progress of manufacture of Plant and production and manufacture of materials.

The Contractor shall give the Employer's personnel full opportunity to carry out these activities, including providing access, facilities, permissions and safety equipment. No such activity shall relieve the Contractor from any obligation or responsibility.

The Contractor shall give notice to the Employer whenever any work is ready and before it is covered up, put out of sight, or packaged for storage or transport. The Employer shall then either carry out the examination, inspection, measurement or testing without unreasonable delay, or promptly give notice to the Contractor the Employer does not required to do so. If the Contractor fails to give the notice, he shall, if and when required by the Employer, uncover the work and thereafter reinstate and make good, all at the Contractor's cost.

12.13 Testing: (GCC Clause 30)

This Clause shall apply to all tests specified in the Contract, other than the Tests after Completion (if any).

The Contractor shall provide all apparatus, assistance, documents, and other information, electricity, equipment, fuel, consumables, instruments, labour, materials and suitably qualified and experienced staff, as when necessary to carry out the specified tests efficiently. The Contractor shall agree with the Employer the time and place for the specified testing of any Plant, materials and other parts of the Works.

12.14 Rejection:

If as a result of an examination, inspection, measurement or testing any plant, materials, design or workmanship is found to be defective or otherwise not in accordance with the Contract, the Employer may reject the Plant, Materials, design or workmanship by giving notice to the Contractor with reasons. The Contractor shall then promptly make good the defect and ensure that the rejected item complies with the Contract.

12.15 Variations and Adjustments: (GCC Clause 34)

12.15.1 Right to Vary:

Variations may be initiated by the Employer at any time prior to issuing the taking over certificate for the Works, either by an instruction or by a request for the Contractor to submit a proposal. A variation shall not comprise the omission of any work which is to be carried out by others.

The Contractor shall execute and be bound by each variation, unless the Contractor promptly gives notice to the Employer stating (with supporting particulars) that (i) the Contractor cannot readily obtain the Goods for the variations, (ii) it will reduce the safety or stability of the Works, or (iii) it will have an adverse impact on the achievement of the Schedule of Guarantees. Upon receiving this notice, the Employer shall cancel, confirm or vary the instruction.

12.15.2 Value Engineering:

The Contractor may at any time submit to the Employer a written proposal which in the Contractor's opinion will, if adopted, (i) accelerate completion, (ii) reduce the cost to the Employer of executing, maintaining or operating the Works, (iii) improve the efficiency or value to the Employer of the completed Works, or (iv) otherwise be of benefit to the Employer. The proposal shall be prepared at the cost of the Contractor and shall include the items as specified in the variation procedure.

12.15.3 Variation Procedure:

If the Employer requests a proposal prior to instructing a variation, the Contractor shall respond in writing as soon as practicable either by giving reasons, why he cannot comply (if this is the case) by submitting:

- A description of the proposed design and/or work to be performed and a program for its execution;
- The Contractor's proposal for any necessary modifications to the program;
- The Contractor's proposal for adjustment of the Contract Price;

The Employer shall as soon as practicable after receiving such proposal respond with approval, disapproval or comments. The Contractor shall not delay any work whilst awaiting a response.

Each instruction to execute a Variation, with any requirements for the recording of the Costs, shall be issued by the Employer to the Contractor, who shall acknowledge receipt.

Upon instructing or approving a Variation, the Employer shall make every effort to agree or determine adjustments to the Contract Price and the Schedule of Payments. These adjustments shall include reasonable profit, and shall take into account of the Contractor's submission.

12.16 Tests on Completion: (GCC Clause 45)

The Contractor shall carry out the tests on Completion in accordance with this Clause after providing the documents (as built drawings as well as Operation and Maintenance Manuals.

The Contractor shall give to the Employer not less than 21 days' notice of the date after which the Contractor will be ready to carry out each of the Tests on Completion. Unless otherwise agreed, Tests on Completion shall be carried out within 14 days after this date, on such day or days as the Employer may instruct.

The Tests on Completion shall be carried out in the following sequence:

- (a) Pre-commissioning tests, which shall include the appropriate inspections and functional tests to demonstrate that each item of Plant can safely undertake the next stage;
- (b) Commissioning tests, which shall include the specified operational tests to demonstrate that the Works or Section can be operated safely and as specified under all available operating conditions; and
- (c) Trial operation, which shall demonstrate that the Works perform reliably and in accordance with the Contract.
- (d) The contractor should achieve the performance of the pumps and wetwell within 90 days during the trial run period.

During trial operation, when the Works are operating under stable conditions, the Contractor shall give notice to the Employer that the Works are ready for any other Tests on Completion, including performance tests to demonstrate whether the Works conform with criteria specified in the Employer's Requirements and with the Schedules of Guarantees.

Trial operation shall not constitute a taking over under Clause. Unless otherwise stated elsewhere any product produced by the Works during trial operation shall be the property of the Employer.

In considering the results of the tests on Completion, the Employer shall make allowances for the effect of any use of the Works by the Employer on the performance or other characteristics of the Works. As soon as the Works have passed each of the Tests on Completion, the Contractor shall submit a certified report of the results of these Tests to the Employer.

12.16.1 Delayed Tests:

If the Tests on Completion are being unduly delayed by the Contractor, The Employer may by notice require the Contractor to carry out the Tests within 21 days after receiving the notice. The Contractor shall carry out the Tests on such day or days within that period as the Contractor may fix and of which he shall give notice to the Employer.

If the Contractor fails to carry out the Tests on Completion within the period of 21 days, the Employer's personnel may proceed with the Tests at the risk and cost of the Contractor. The Tests on Completion shall then be deemed to have been carried out in the presence of the Contractor and the results of the Tests shall be accepted as accurate.

12.17 Re-testing

If the Works, or a component of the Work, fail to pass the tests on completion, Rejection Clause shall apply, and the Employer or the Contractor may require such failed tests, and the Tests on Completion to be repeated under the same terms and conditions.

12.18 Failure to Pass Tests on Completion

If the Works or a component of the Work fails to pass the tests on completion the engineer shall be entitled to:

- a) Require the contractor to make good the defects or ensure that the materials or plant comply with the contract and order further repetition of tests on completion under Sub-Clause 12.16 and 12.17; or
- b) If the failure deprives the Employer of substantially the whole benefit of the Works or component, reject the Works or component of the Works (as the case may be), in which event the employer shall have the same remedies against the contractor as are provided under Clause 12.14; or

In the event that the performance of any item of plant or equipment tests out to be marginally less than stipulated under the contract, then the Employer, at his sole discretion, may authorize to issue Taking Over Certificate for said component as an alternative to the other remedies under this Sub-Clause. In such case, the Employer shall determine an appropriate reduction in the contract price with due regard to the circumstances, the actual performance of the item of plant or equipment compared to the specified performance, and the impact of the reduction in performance on the overall performance of the facility as a whole. Such reduction in the contract price shall be binding on the Contractor, and the Contractor shall then proceed in accordance with his other obligations under the contract.

14. Taking Over the Works and Components of the Works: (GCC Clause 46)

The Employer shall take over the Works when the Works or any component of the Works has been completed by the Contractor. The Contractor may apply by notice to the Employer for a taking Over Certificate not earlier than 14 days before the Works or any of its components will, in the Contractor's opinion, be complete and ready for taking over.

The Employer shall within 21 days after receiving the Contractor's application:

- (a) Issue the Taking Over certificate to the Contractor, stating the date on which the Works or its components were completed in accordance with the Contract, except for any minor outstanding work and defects which will not substantially affect the use of the Works or component for their intended purpose (either until or whilst this work is completed and these defects are remedied); or
- (b) Reject the application, giving reasons and specifying the work required to be done by the Contractor to enable the Taking Over Certificate to be issued. The Contractor shall then complete this work before issuing further notice under this Clause.

- (c) The Employer shall take over the Site and the Works within seven days of issuing a certificate of Completion as per clause 46.1 of Section E.

If the Employer fails either to issue the taking Over Certificate or to reject the Contractor's application within the period of 21 days, and the Works or its components (as the case may be) are substantially in accordance with the Contract, the Taking Over Certificate shall be deemed to have been issued on the last day of that period.

Upon the issue of a Taking over Certificate, the Contractor shall clear away and remove, from that part of the Site and Works to which the Taking over Certificate refers, all Contractor's equipment, surplus material, wreckage, rubbish and temporary works. The Contractor shall leave that part of the Site and the Works in a clean and safe condition. However, the Contractor may retain on Site, during the Defect Liability Period, such goods and equipment as are required for the Contractor to fulfill obligations under the Contract.

15. Completion Certificate:

The Employer shall issue the Completion Certificate within 28 days after the latest of the expiry dates of the Defect Liability Period or as soon thereafter as the Contractor has supplied all the Contractor Documents and completed and tested all the Works, including remedying any defects. Only the Performance Certificate shall be deemed to constitute the acceptance of the Works.

16. Clearance of Site:

Upon receiving the completion Certificate, the Contractor shall remove any remaining Contractor's equipment, surplus material, wreckage, rubbish and temporary works from the Site. If these items have not been removed within 28 days of issue of the Performance, The Employer may get the site cleared at the cost of the Contractor and deduct the expenditure from the amounts due to the Contractor.

17. Excise Duty & Customs Duty (GCC Clause 39): If any, shall be included in the quoted rates.

18. Death of Contractor

In case of the death of contractor after executing the agreement / commencement of the work, his legal heir, if an eligible registered contractor and willing, can execute and complete the work at the accepted tender rate irrespective of the cost of the work.

Annexure A**Extracts of Contract Labour (Regulation and Abolition) Act 1970****ANNEXURE - A**

- (a) The Contractor shall, at all times during the continuance of the Contract, comply fully with all existing Acts, regulations and byelaws including all statutory amendments and re-enactment of State or Central Government and other local authorities and any other enactments, notifications and acts that may be passed in future either by the State or the Central Government or local authority, including Indian Workmen's Compensation Act, Contract Labour (Regulation and Abolition) Act 1970 and Equal Remuneration Act 1976, Factories Act, Minimum Wages Act, Provident Fund Regulations, Employees Provident Fund Act, schemes made under the same Act and also Labour Regulations mentioned in Annexure A to Section IV, Health and Sanitary Arrangement for Workmen, Insurance and other benefits and shall keep Employer indemnified in case any action is commenced by competent authorities for contravention by the Contractor. If the Employer is caused to pay or reimburse, such amounts as may be necessary to cause or observe, or for non-observance of the provisions stipulated henceforth on the part of the Contractor, the Engineer shall have the right to deduct from any moneys due to the Contractor, his amount of performance security or recover from the Contractor personally any sum required or estimated to be required for making good the loss or damage suffered by the Employer, responsibility in connection with the employees of the Contractor, who shall, in no case, be treated as the employees of the Employer at any point of time.

Fair Wages

- (b) The Contractor shall pay the labourers engaged by him on the work not less than fair wage which expression shall mean, whether for time or piecework, the respective rates of wages fixed by the Public Works Department as fair wages for the area payable to the different categories of labourers or those notified under the Minimum Wages Act for corresponding employees of the Employer, whichever may be higher.
- (c) The Contractor shall, notwithstanding the provisions of a contract to the contrary, cause to be paid a fair wage to labourers indirectly engaged on the Works, including any labour engaged by sub/contractors in connection with the sand works as if the labourer had been directly employed by him.

NOTICES

- (d) The Contractor shall, before he commences the work, display, and correctly maintain, in a clean and legible condition at a conspicuous place on the Site, notices in English and in a language spoken by the majority of the workers, stating therein the rate of wages which have been fixed as fair wages and the hours of work for which such wages are earned and send a copy of such notices to the Engineer.

Wages Records

- (e) The contractor shall maintain records of wages and other remuneration paid to his employees in such form as may be convenient and as per the requirements of the Employer/Engineer and the Conciliation Officer (Central), Ministry of Labour, Government of India, or such other authorized person appointed by the Central or State Government and the same shall include the following particulars of each worker:
- (i) Name, worker's number and grade;
 - (ii) Rate of daily or monthly wage;
 - (iii) Nature of work on which employed;
 - (iv) Total number of days worked during each wage period;
 - (v) Total, amount payable for the work during each wage period;

- (vi) All deduction made from the wage with details in each case of the ground for which the deduction is made;
 - (vii) Wage actually paid for each wage period.
- (f) The Contractor shall provide a Wage Slip for each worker employed on a the Works.
 - (g) The Wage records and Wage Slips shall be preserved for a least 12 months after last entry;

Inspection of Wage Records

- (h) The Contractor shall allow inspection of the aforesaid Wage Records and Wage Slips to the Engineer and to any of his workers or to his agent at a convenient time and place after due notice is received or to the Employer or any other person authorized by him on his behalf.
- (i) The Employer, the Engineer or any other person authorized by them on their behalf shall have power to make enquiries with a view to ascertaining and enforcing due and proper observance of the Fair Wages Clause. He shall also have the Power to investigate into any complaint regarding any default made by the Contractor or sub-contractor in regard to such provision.
- (j) The Employer shall have the right to deduct from the money's due to the Contractor any sum required or estimated to be required for making good the loss suffered by a worker or workers by reason of non-payment of the aforesaid fair wage, except on account of any deductions that may be permissible under any law for the time being in force.
- (k)
 - (i) A workman shall be entitled to be represented in any investigation or enquiry under this Clause by:
 - (a) An officer of a registered Trade Union of which he is a member.
 - (b) An officer of a federation of Trade Unions to which the Trade Union referred to in previous sub-clause is affiliated.
 - (c) Where the worker is not a member of any registered Trade Union, by an officer of a registered Trade Union connected with or by any other workmen employed in the industry in which the worker is employed.
 - (ii) The Contractor or sub-contractor shall be entitled to be represented in any investigation or inquiry under this Clause by an office of an Association of Employers of which he is member.
 - (iii) No party shall be represented by a legal practitioner in any investigation or inquiry under this Clause, unless all parties agree otherwise.

Safety Provisions

- 1) The Contractor shall comply with all the precautions as required for the safety of the workmen by the I.L.O. Convention No. 62 as far as they are applicable to the contract.

The Contractor shall provide all necessary safety appliances, gears like goggles, helmets, masks, etc., to the workmen and the staff.

- (i) Suitable scaffolds shall be provided for workmen for all work that cannot safely be done from the ground, or from solid construction except for such short period work as can be done safely from ladders, When a ladder is used, an extra labour shall be engaged for holding the ladder and if the ladder is used for carrying materials as well, suitable foot-holds and hand-holds shall be provided on the ladder, which shall be given an inclination not steeper than 1/4 to (1/4) horizontal in 1 vertical).

- (ii) Scaffolding or staging more than 3.25 metres above the ground or floor, swing or suspended from an overhead support or erected with stationary support shall have guard rail properly attached bolted, braced and otherwise secured 1 metres high above the floor or platform of such scaffolding or staging and extending along the entire length may be necessary for the delivery of materials. Such scaffolding or staging shall be so fastened as to prevent it from swaying from the support for structure.
- (iii) Working platform, gangways, and stairways shall be so constructed that they do not sag unduly or unequally and if a height of a platform or gangway or stairway is more 3.25 metres above ground level or floor level, it shall have closely spaced boards, have adequate width and be suitably provided with guard rails as described in (ii) above.
- (iv) Every opening in floor of a structure or in a working platform shall be provided with suitable means to prevent fall of persons or materials by providing suitable fencing or railing with a minimum height of one metre.
- (v) Safe means of access shall be provided to all working platforms and other working places. Every ladder shall be securely fixed. No portable single ladder shall be over 9 metres in length. Width between side rails in a rung ladder shall in no case be less than 30 cm for ladders upto and including 3 metres in length. For longer ladders the width shall be increased at least 6mm for each additional 30cm of length. Spacing of steps shall be uniform and shall not exceed 30cm.

Adequate precautions shall be taken to prevent danger from electrical equipment. No materials on any of the sites shall be so stacked or placed as to cause danger or inconvenience to any person or the public. The Contractor shall provide all necessary fencing and lights to protect public from accidents and shall be bound to bear expenses of defending every suit, action or other proceedings at law that may be brought by any person for injury sustained owing to neglect of the above precautions and to pay any damages and cost which may be awarded in any such suit, action or proceeding to any such person or which may with the consent of the Contractor be paid to compromise any claim by any such person.

- (vi) Excavation and Trenching: All trenches, 1.5 metres or more in depth shall at all times be supplied with at least one ladder for each 20 metres in length or fraction thereof. Ladder shall be extended from bottom of trench to at least 1 metres above surface of the ground. Sides of trench which is 1.5 metres or more in depth shall be stepped back to give suitable slope or securely held by timber bracing, so as to avoid the danger of collapsing of sides. Excavated material shall not be placed within 1.5 metres of edge of trench or half the depth of trench, whichever is more. Cutting shall be done from top to bottom. Under no circumstances, undermining or undercutting shall be done.
- (vii) Demolition: Before any demolition work is commenced and also during the process of the work:
 - A. All roads and open areas adjacent to the work site shall either be closed or suitably protected.
 - B. No electric cable or apparatus which is liable to be a source of danger over a cable or apparatus used by operator shall remain electrically charged.
 - C. All practical steps shall be taken to prevent danger to persons employed by the Employer, from risk of fire or explosion, or flooding. No floor, roof or other part of a building shall be so overloaded with debris or materials as to render it unsafe.
- (i) All necessary personal safety equipment as considered adequate by the Engineer shall be available for use of persons employed on the Site and maintained in a condition suitable for immediate use and the Contractor shall take adequate steps to ensure proper use of the equipment by those concerned.
 - A. Workers employed on mixing asphaltic materials, cement, lime mortars/concrete shall be provided with protective footwear and protective goggles.

- B. Those engaged in handling any material which is injurious to eyes shall be provided with protective goggles.
- C. Those engaged in welding works shall be provided with welder's protective eye-shield.
- D. Stone breakers shall be provided with protective goggles and protective clothing and seated at sufficiently safe intervals.
- E. When workers are employed in sewers and manholes, which is in use, the Contractor shall ensure that manhole covers are open and manholes are ventilated at least for an hour before works are taken up. Manholes so open shall be cordoned off with suitable railing and provide warning signals or boards to prevent accident to public.

The Contractor shall not employ men below the age of 18 years and women on the work of painting with products containing lead in any form. Whenever men above the age of 18 years are employed on the work of lead painting, the following precautions shall be taken.

No paint containing lead or lead products shall be used except in the form of paste or readymade paint.

Suitable face masks shall be supplied for use by workers when paint is applied in the form of spray or a surface having lead paint dry rubbed and scrapped.

Overalls shall be supplied by the Contractor to workmen and adequate facilities shall be provided to enable workers to wash during and on close of day's work.

- (ii) When work is done near any place where there is risk of drowning all necessary equipment shall be provided and kept ready for use and all necessary steps taken for prompt rescue of any person in danger and adequate provision made for prompt first aid treatment of all injuries likely to be sustained during the course of the work.
- (iii) Use of hoisting machines and tackle including their attachments, anchorage and supports shall conform to the following:
 - (A) (i) These shall be of good mechanical construction, sound material and adequate strength and free from patent defects and shall be kept in good adequate strength and free from patent defects and shall be kept in good working order and properly maintained.
 - (ii) Every rope used in hoisting or lowering materials or as a means of suspension shall be of durable quality and adequate strength, and free from defects.
 - (B) Every crane driver or hoisting appliance operator shall be properly qualified and no person under the age of 21 shall be in charge of any hoisting machine including scaffold or of signals to operator.
 - (C) In case of every hoisting machine and of every chain hook, shackle swivel and pulley block used in hoisting, lowering or as means of suspension, safe working load shall be ascertained by adequate means. Every hoisting machine and all gear referred to above shall be plainly marked with safe working load. In case of a hoisting machine or a variable safe working load each safe working load and conditions under which it is applicable shall be clearly indicated. No part of any machine or any gear referred to above in the paragraph shall be loaded beyond safe working load except for the purpose of testing.
 - (D) In case of the Employer's machine, safe working load shall be notified by the Engineer or his

representative. As regards Contractor's machines, the Contractor shall notify safe working load of each machine to Engineer or his representative whenever he brings it to site of work and get it verified by him.

- (iv) Motors, gearing, transmission, electric wiring and other dangerous parts of hoisting appliance shall be provided with efficient safeguards hoisting appliances shall be provided with such means as will reduce the risk of accident during descent of load to the minimum. Adequate precautions shall be taken to reduce to the minimum risk of any part of a suspended load becoming accidentally displaced. When workers are employed on electrical installations which are already energized, insulating mats, working apparel such as gloves, sleeves and boots, as may be necessary, shall be provided, workers shall not wear any rings, watches and carry keys or other material which are good conductors of electricity.
- (v) All scaffolds, ladders and other safety devices mentioned or described herein shall be maintained in safe condition and no scaffold, ladder or equipment shall be altered or removed while it is in use. Adequate washing facilities shall be provided at or near places of work.
- (vi) These safety provisions shall be brought to the notice of all concerned by display on a notice board at a prominent place at the work spot. Persons responsible for ensuring compliance with the safety code shall be named therein by the Contractor.
- (vii) To ensure effective enforcement of the rules and regulations relating to safety precautions, arrangements made by the Contractor shall be open to inspection by the Engineer or his representative and the Inspecting Officer as defined in the Contractor's Labour Regulation mentioned in thereafter these Documents as Annexure A of Section IV.
- (viii) Notwithstanding anything contained in conditions (i) to (xiv) above, the Contractor shall remain liable to comply with the provisions of all Acts, rules, regulations and byelaws for the time being in force in India and applicable in this matter.
- (m) The Contractor shall be responsible for observance, by his sub/contractors, of the forgoing provisions.
- (n) For work carried out in the vicinity of any wharf or quay, the Contractor shall abide by all the provisions of the Dock Workers (Safety, Health and Welfare) Scheme, 1961.

Footwear

- (o) The contractor shall at his own expense provide footwear for all labour engaged on concrete mixing work and other types of work involving the use of tar, cement, etc., to the satisfaction of the Engineer or his Representative, and on his failure to do so, the Employer shall be entitled to provide the same and recover the cost from the Contractor.

Local Labour

- (p) The Contractor is encouraged as far as possible to employ, in the execution of the Contract, qualified Indian citizens as workmen. Employment of expatriate personnel is subject to the Indian Laws and Regulations. In case the contractor wishes to employ expatriate personnel in any particular trade or skill required to execute the contract, the Employer will assist the Contractor in obtaining permission for which the Contractor shall submit requisite data.

Model Rules for Labour Welfare

(i) Definitions:

- (A) Workplace means a place at which, on an average, twenty or more workers are employed.
- (B) Large workplace means a site at which, on an average, 250 or more workers are employed.

(ii) First Aid:

At every workplace, there shall be maintained in a readily accessible place first aid appliances including an adequate supply of sterilized dressings and sterilized cotton wool as prescribed in the Factory Rules of the State in which the work is carried on. The appliances shall be kept in good order and, in large work places, they shall be placed under the charge of a responsible person who shall be readily available during working hours.

At large workplaces, where hospital facilities are not available within easy distance of the Works, First Aid Posts shall be established and be run by a trained compounder.

Where large workplaces are remotely situated and far away from regular hospitals, an indoor ward shall be provided with one bed for every 250 employees.

Where large workplace are situated in cities, towns or in their suburbs and no beds are considered necessary owing to proximity of city or town hospitals, suitable transport shall be provided to facilitate removal of urgent cases to these hospitals. At other workplaces, some conveyance facilities shall be kept readily available to take injured person on persons suddenly taken seriously ill, to the nearest hospital.

At large workplaces, there shall be provided and maintained an ambulance room containing the prescribed equipment and in the charge of such medical and nursing staff as may be prescribed. For this purpose, the relevant provisions of the Factory Rules of the State government of the area where the work is carried on, may be taken as the prescribed standard.

(iii) Accommodation for Labour:

The Contractor shall during the progress of the Work provide, erect and maintain necessary temporary living accommodation and ancillary for labour at his own expenses to the standards and scales as approved by the Engineer.

(iv) Drinking Water:

In every workplace, there shall be provided and maintained at suitable places, easily accessible to labour, a sufficient supply of cold water fit for drinking.

Where drinking water is obtained from an intermittent public water supply, each workplace shall be provided with storage of cold water fit for drinking.

Ever water supply storage shall be at a distance of not less than 15 metres from any latrine, drain or other source of pollution. Where water has to be drawn from an existing well, which is within such proximity of latrine, drain or any other source of pollution, well shall be properly chlorinated before water is drawn from it for drinking. All such wells shall be entirely closed in and be provided with a trap door which shall be dust-proof and water-proof.

A reliable pump shall be fitted to each covered well. The trap door shall be kept locked and opened only for cleaning or inspection which shall be done at least once a month.

(v) Washing and Bathing Places:

Adequate washing and bathing places shall be provided separately for men and women. Such places shall be kept in clean and drained condition.

(vi) Scale of Accommodation in Latrines and Urinals:

There shall be provided within the precincts of every workplace, latrines and urinals in an accessible place, and the accommodation, separately for each of these, shall not be less than at the following scale:-

		No. of Seats
(a)	Where number of persons does not exceed 50	2
(b)	Where number persons exceed 50 but does not exceed 100	3
(c)	For additional persons per 100 or part thereof	3

In particular cases, the Engineer shall have the power to increase the requirement, wherever necessary.

(vii) Latrines and Urinals:

Except in workplaces provided with water/flushed latrines connected with a water borne sewage system, all latrines shall be provided with receptacles on dry-earth system which shall be cleaned at least four times daily and at least twice during working hours and kept in a strictly sanitary condition. Receptacles shall be tarred inside and outside at least once a year.

If women are employed, separate latrine and urinals, screened from those for men and marked in the vernacular in conspicuous letters. "For Women Only" shall be provided on the scale laid down in rule (vi). Those for men shall be similarly marked "For Men Only". A poster showing the figures of a man and a woman shall also be exhibited at the entrance to latrines for each sex. There shall be adequate supply of water, close to latrines and urinals.

(viii) Construction of Latrines:

Inside walls shall be constructed of masonry or other non-absorbent material and shall be cement washed inside and outside at least once a year. The dates of cement washing shall be noted in a register maintained for the purpose and kept available for inspection. Latrines shall have at least thatched roof.

(ix) Disposal of Excreta:

Unless otherwise arranged for by the local sanitary authority, arrangement for proper disposal of excreta by incineration at the workplace shall be made by means of suitable incinerator approved by the local medical, health and municipal or cantonment authorities. Alternatively, excreta may be disposed off by putting a layer or night soils at the bottom of a pucca tank prepared for that purpose and covering it with a 15 cm layer of waste or refuse and then covering it with a layer of earth for a fortnight (when it will turn into manure).

The Contractor shall, at his own expense, carry out all instructions issued to him by the Engineer to effect proper disposal of soil and other conservancy work in respect of Contractor's work-purpose or employees on the site. The Contractor shall be responsible for payment of any charges which may be levied by municipal or cantonment authority for execution of such work on his behalf.

(x) Provisions of shelters during rest:

At every workplace, there shall be provided, free of cost, four suitable sheds, two for meals and two others for rest, separately for use of men and women labour. Height of each shelter shall not be less than 3 metres from floor-level to lowest part of roof. Sheds shall be kept clean and the space provided shall be on the basis of at least 0.5 sqm per head.

(xi) Creches:

At a place at which 20 or more women are ordinarily employed, there shall be provided at least one hut for use of children under the age of 6 years belonging to such women. Huts shall not be constructed to a standard

lower than that of thatched roof, mud floor and wall with wooden planks spread over mud floor and covered with matting.

Huts shall be provided with suitable and sufficient openings, for light and ventilation. There shall be adequate provision of sweepers to keep the places clean. There shall be two maid-servants in attendance. Sanitary utensils shall be provided to the satisfaction of local medical, health and municipal or cantonment authorities. Use of huts shall be restricted to children, their attendants and mothers of children.

Where the number of women workers is more than 25 but less than 50, the Contractor shall provide at least one hut and one maid-servant to look after children of women workers.

Size of creche(s) shall vary according to the number of women workers employed.

Creche(s) shall be properly maintained and necessary equipment like toys, etc., provided.

(xii) Canteen:

A cooked food canteen on a moderate scale shall be provided for the benefit of workers wherever it is considered necessary.

(xiii) Planning, setting and erection of the above mentioned structures shall be approved by the Engineer or his representative and the whole of such temporary accommodation shall at all times during the progress of the work be kept tidy and in a clean and sanitary condition to the satisfaction of the Engineer or his representative and at the Contractor's expense. The Contractor shall conform generally to sanitary requirements of local medical, health and municipal or cantonment authorities and at all times adopt such precautions as may be necessary to prevent soil pollution of the site. On completion of the Works, the whole of such temporary structures shall be cleared away, all rubbish burnt, excreta or other disposal pits or trenches filled in and effectively sealed off and the whole of site left clean and tidy at the contractor's expense to the entire satisfaction of the Engineer.

(xiv) Anti-malarial precautions:

The Contractor shall, at his own expense, conform to all anti-malarial instructions given to him by the Engineer, including filling up any borrow pits which may have been dug by him.

(xv) Enforcement:

Inspecting Officer mentioned in the Contractor's Labour Regulations or any other Officer nominated on his behalf by the Engineer shall report to the Engineer all cases of failure on the part of the Contractor and/or his sub-contractor to comply with the provisions of these Rules either wholly or in part and the Engineer shall impose such fines and other penalties as are prescribed in the conditions of contract.

(xvi) Interpretations, etc.:

On any question as to the application, interpretation or effect of these Rules, the decision of the Chief Labour Commissioner or Deputy Chief Labour Commissioner (Central) shall be final and binding.

(xvii) Amendments:

The Employer may, from time to time, add to, or amend these Rules and issue such directions as it may be considered necessary for the proper implementation of these Rules or for the purpose of removing any difficulty which may arise in the administration thereof.

ANNEXURE - A - 1
CONTRACTOR'S LABOUR REGULATIONS

Regulation 1 - Definition

In these regulations, unless otherwise expressed or indicated, the following words and expression shall have the meaning hereby assigned to them:

- a) "Labour" mean workers employed by a contractor directly, or indirectly, through a sub-contractor, or by an agent on his behalf on a payment not exceeding Rs. 1.600/- per month.
- b) "Wages" means wages, which shall include wages for weekly day of rest and other allowance, whether for time or piece work, after taking into consideration prevailing market rates for similar employments in the neighborhood but shall not be less than the minimum rates of wages fixed under the Payment of minimum Wages Act.
- c) "Contractor" for the purpose of these regulations shall include an agent or sub-contractor employing labour on the work taken on contract.
- d) "Inspecting Officer" means any Labour Enforcement Officer, or Assistant Labour Commissioner of the chief labour Commissioner's Organization.
- e) "Form" means a form appended to these Regulations.

Regulation 2 - Notice of Commencement

The Contractor shall within SEVEN days of commencement of the Work, furnish in writing to the Inspecting Officer of the area concerned the following information:

- a) Name and situation of the work
- b) Contractor's name and address
- c) Particular of the Department for which the work is undertaken
- d) Name and address of sub-contractors as and when they are appointed
- e) Commencement and probable duration of the work
- f) Number of workers employed and likely to be employed
- g) Fair wages for different categories of workers

Regulations 3 - Hours of Work and Weekly Day of Rest

- I. **Number of hours of work which shall constitute normal working day:** The number of hours which shall constitute a normal working day for an adult shall be EIGHT hours. The working day of an adult worker shall be so arranged that, inclusive of intervals, if any, for rest, it shall not spread over more than Twelve hours on a day. When an adult worker is made to work for more than nine hours on any day or for more than FORTY EIGHT hours in a week, he shall in respect of overtime work, be paid wages at double the ordinary rate of wages.
- II. **Weekly day of Rest:** Every worker shall be given a weekly day of rest which shall be fixed and notified at least TEN days in advance. A worker shall not be required or allowed to work on the weekly rest day unless he has or will have a substituted rest day, one of the five days immediately before or after the rest day. Provided no substitution shall be made which will result in the worker working for more than ten days consecutively without a rest day for a whole day.

Where in accordance with the foregoing provisions, a worker works on the rest day and has been given a

substituted rest day, he shall be paid wages for the work done on the weekly rest day at the overtime rate of wages.

NOTE: The expression “ordinary rate of wages” means the fair wage the worker is entitled to.

Regulations 4 - Display of Notice Regarding wages, Weekly day of Rest, etc.,

The Contractor shall before he commences his work on contract, display and correctly maintain and continue to display and correctly maintain in a clean and legible condition in conspicuous places on the works, notice in English and in the local language spoken by majority of workers, giving the rate of fair wages, the hours of work for which such wages are payable, the weekly rest days workers are entitled to and name and address of the Inspecting Officer. The Contractor shall send a copy of each of such notice to the Inspecting Officer.

Regulation 5 - Fixation of Wage periods

The Contractor shall fix wage periods in respects of which wages shall be payable. No wage period shall normally exceed one week.

Regulation 6 - Payment of wages

1. Wages due to every worker shall be paid to him direct. All wages should be paid in current coins or currency or in both.
2. Wages of every worker employed on the Contract shall be paid where the wage period is one week, within THREE days from the end of the wage period; and in any other case before the expiry of the 7th day or 10th day from the end of the wage period according as the number of workers does not exceed 1,000 or exceeds 1,000.
3. When employment of any worker is terminated by or on behalf of the Contractor, the wages earned by him shall be paid before expiry of the day succeeding the one on which his employment is terminated.
4. Payment of wages shall be made at the Work Site on a working day except when the work is completed before expiry of the wage period in which case final payment shall be made at the Work Site within 48 hours of the last working day and during normal time.

Note: The term “Working Day” means a day on which the work on which the labour is employed is in progress.

Regulation 7 - Register of Workmen

A register of workmen shall be maintained in the Form appended to the regulations and kept at the work site or as near to it as possible and relevant particulars of every workman shall be entered therein within THREE days of his employment.

Regulation 8 - Employment Card

The Contractor shall issue an Employment card in the Form appended to these regulations to each worker on the day of work or entry into his employment. If a worker already has any such card with him issued by the previous employer, the Contractor shall merely endorse that Employment Card with relevant entries. On termination of employment, the Employment Card shall again be endorsed by the Contractor and returned to the worker.

Regulation 9 - Register of Wages etc.

1. A Register of Wages cum Muster Roll in the Form appended to these regulations shall be maintained and kept at the Work Site or as near to it as possible.

2. A wage slip in the form appended to these regulations shall be issued to every worker employed by the Contractor at least a day prior to disbursement of wages.

Regulation 10 - Fines and Deductions which may be made from Wages

1. Wages of a worker shall be paid to him without any deductions of any kind except the following:
 - a) Fines
 - b) Deductions for absence from duty; i.e. from the place of his employment where he is required to work. The amount of deduction shall be in proportion to the period for which he was absent;
 - c) Deduction for damage to or loss of goods expressly entrusted to the employed person for custody, or for loss of money which is required to be accounted for, where such damage or loss is directly attributable to his neglect or default.
 - d) Deductions for recovery of advances or for adjustment of overpayment of wages, advance granted being entered in a register; and
 - e) Any other deductions which the Employer may from time to time allows.
2. No fines shall be imposed on any worker save in respect of such acts and omissions on his part as have been approved by the Chief Labour Commissioner.
3. No fine shall be imposed on a worker and no deductions for damage or loss shall be made from his wages until the worker has been given an opportunity of showing cause against such fines or deductions.
4. The total amount of fines which may be imposed in any one wage period of a worker shall not exceed an amount equal to 0.3% of the wages payable to him in respect of that wage period.
5. No fine imposed on a worker shall be recovered from him on installments, or after expiry of sixty days from the date on which it was imposed. Every fine shall be deemed to have been imposed on the day of the act or omission in respect of which it was imposed.
6. The Contractor shall maintain both in English and the local language a list, approved by the Chief Labour Commissioner, clearly stating the acts and omissions for which penalty or fine may be imposed on a workman and display it in good condition in a conspicuous place on the Work Site.
7. The Contractor shall maintain a register of fines and the register of deductions for damage or loss in the forms appended to these regulations which should be kept at the place of work.

Regulation 11 - Register of Accidents

The Contractor shall maintain a register of accidents in such form as may be convenient at the work place but the same shall include the following particulars:

- a) Full particulars of the labourers who met with accident.
- b) Rate of wages
- c) Sex
- d) Age
- e) Nature of accident and cause of accident
- f) Time and date of accident
- g) Date of Time when admitted to hospital
- h) Date of discharge from the hospital
- i) Percentage of loss of earning capacity and disability as assessed by the medical Officer.
- j) Claim required to be paid under Workmen's Compensation Act.
- k) Date of payment of compensation.
- l) Amount paid with details of the person to whom the same was paid
- m) Authority by whom the compensation was assessed

n) Remarks

Regulation 12 - Preservation of Register

The Register of workmen and the Register of wages cum Muster Roll required to be maintained under these Regulations shall be preserved for 3 years after the date on which the last entry is made therein.

Regulation 13 – Enforcement

The Inspecting Officer shall either on his own motion or on a complaint received by him carry out investigations and send a report to the Engineer specifying the amounts representing Workers Dues and amount of penalty to be imposed on the Contractor for breach of these regulations, that have to be recovered from the Contractor, indicating full details of the recoveries proposed and the reason therefore. It shall be obligatory on the part of the Engineer on receipt of such a report to deduct such amounts from payments due to the Contractor.

Regulation 14 - Disposal of Amounts Recovered from the Contractor

The Engineer shall arrange payment to workers concerned within FORTY FIVE days of receipt of a report from the Inspecting Officer except in cases where the Contractor had made an appeal under Regulation 16 of these regulations. In cases where there is an appeal, payment of workers dues would be arranged by the Engineer wherever such payment arise, within THIRTY days from the date of receipt of the decision of the Regional Labour Commissioner (RLC).

Regulation 15 - Welfare Fund

All moneys that are recovered by the Engineer by way of worker's dues which could not be disbursed to workers within the time limit prescribed above, due to reasons such as whereabouts of workers not being known, death of workers, etc., and also amounts recovered as penalty, shall be credited to a Fund to be kept under the custody of the Employer for such benefit and welfare of workmen employed by Contractors as the Engineer may deem fit.

Regulation 16 - Appeal against decision of Inspecting Officer

Any person aggrieved by a decision of the Inspecting Officer may appeal, against such decision of the Regional Labour Commissioner concerned with THIRTY days from the date of the decision forwarding simultaneously a copy of this appeal of the Engineer.

The decision of the Regional Labour Commissioner shall be final and binding upon the Contractor and the Workmen.

Regulation 17 - Representation of Parties

1. Workmen shall be entitled to be represented in any investigation of enquiry under these Regulations by an officer of a registered trade union of which he is a member or by an officer of a Federation of Trade Unions to which the said trade union is affiliated or where the workman is not a member of any registered trade union by an officer of a registered trade union, connected with, or by any other workmen employed in the industry in which the worker is employed.
2. A contractor shall be entitled to be represented in any investigation or enquiry under these Regulations by an officer of an association of Contractors of which he is a member or by an officer of a Federation of associations of Contractors to which the said association is affiliated or by an officer of association of

employees connected with or by any other employer engaged in the industry in which the Contractor is engaged.

3. No party shall be entitled to be represented by a legal practitioner in any investigation or enquiry under these Regulations.

Regulation 18 - Inspecting of Books and Other Documents

The Contractor shall allow inspection of the Registers and other documents prescribed under these Regulations by Inspecting Officers and the Engineer or his authorized representative at any time and by the worker or his agent on receipt of due notice at a convenient time.

Regulation 19 - Interpretation etc.:

On any question as to the application, interpretation or effect of these regulations, the decision of the Chief Labour Commissioner or Deputy Chief Labour Commissioner (Central) as the case may be, shall be final and binding.

Regulation 20 – Amendments:

The Employer may, from time to time, add to or amend these Regulations and issue such directions as it may consider necessary for the purpose of removing any difficulty which may arise in the demonstration thereof.

REGISTRATION OF WORKMEN**SHEET NO. A-11****SECTION IV
(Regulation 7)**

1. Name and address of the Contractor _____
2. Number and date of Contract _____
3. Name and address of the Department awarding the Contract _____
4. Nature of the Contract and location of the work _____
5. Duration of the Contract _____

Sl. No.	Name and Surname	Age & Sex	Father's/ Husband's name	Nature of Employment Designation	Permanent Home Address of Employee (Village, Dist)	Present Address	Date of Commencement of employment	Date of termination or leaving of employment	Signature or thumb impression of the employee	Remarks

SECTION IV

SHEET NO. A-14

A - 13

EMPLOYMENT CARD
(Regulation 8)

1. Name and Sex of the Worker _____
2. Father's / Husband's Name _____
3. Address _____
4. Age or Date of Birth _____
5. Identification marks _____

Particulars of next kin (wife/husband and children, if any, or of dependent next of kin in case the worker has no wife/husband or child).

Name _____

Full address of Dependents

(Specify Village, Dist and State _____)

Sl. No.	Name and address of Employer (specify whether a contract or a subcontractor)	Particulars of location of work site and description of work done	Total period for which the worker is employed (from ---- - to ----)	Actual number of days worked	Leave taken (No. Of days should be specified)	Nature of work done by the worker	Wage period	Wage rate with particulars of unit in case of piece	Total wages earned by the worker the period shown under	Remarks	Signature of the employer

N.B. For a worker employed at one time on piece work basis and at another on daily wages, relevant extra in respect of each type of employment should be made separately.

WAGE SLIP
(Regulation 9)

SHEET NO. A-9

Name of Contractor

Place

1.	Name of the Worker with father/husband's name	
2.	Nature of Employment	
3.	Wage Period	
4.	Rate of Wages Payable	
5.	Total attendance/Unit of work done	
6.	Date(s) on which overtime worked	
7.	Overtime Wages	
8.	Gross Wages Payable	
9.	Total Deductions (including nature of deductions)	
10.	Net Wages Payable	

Signature/Thumb Impression
of Contractor

Signature/Thumb Impression
of employee

REGISTER OF FINES
(Regulation No. 10 (vii))

Sl. No.	Name	Father's/ Husband's name	Sex	Department	Nature and date of the offense for which fine imposed	Whether workman showed cause against fine or not, if so enter date	Rate of wages	Date & amount of fine imposed	Date on which fine realized	Remarks

-

Annexure B**LIST OF ORGANIZATIONS WHO ARE CONSIDERED AS APPOINTING AUTHORITY FOR
APPOINTMENT OF ARBITRATORS**

- a. Indian Council of Arbitration, New Delhi;
- b. International Centre for Alternative Disputes Resolution (India);
- c. Indian Roads Congress;
- d. Indian Building Congress;
- e. Indian Institute of Bridge Engineers;
- f. Indian Institute of Public Health Engineers;
- g. Indian Water Works Association.
- h. Indian Institute of Science.
- i. Institute of Engineers.
- j. Indian Institute of Management , Bangalore
- k. National Law School of India.

SUB: THE KARNATAKA MINOR MINERALS CONCESSION (AMENDMENT) RULES, 2003.
COMMERCE AND INDUSTRIAL SECRETARIAT
NOTIFICATION NO. CI 81, MMN 2014, BANGALORE, DATED: 18th February, 2014

SCHEDULE – I
(See Sub. Rule (1) of Rule 36)

“DEAD RENT”

SL. No.	Name of the Minor Mineral	Rate per Unit/quantity
1.	ORNAMENTAL AND DECORATIVE BUILDING STONES- as defined under clause (m) of rule 2.	25000
2	Felsite and its varieties suitable for use as Ornamental Stores.	25000
3	Quartzite and Sand stone and their varieties suitable for use as Ornamental Stones.	25000
4	Marble or crystalline lime stone as Ornamental Stone	25000
5	Bentonite	25000
6	Fullers Earth	25000
7	Lime Stone under title “ Shahabab stone”	15000
8	Lime Stone (Non Cement)	15000
9.	Ordinary building stones - Entire state As defined under clause (g) of rule 2	
a	Bangalore, Kolar, Mysore, Mandya and Tumkur	15000
b	Other Districts	10000
10.	Lime Shell	15000
11.	Lime Kankar	15000
12.	Agate and Chalcedony	15000
13.	Ordinary sand	10000
14	Brick and Tile clays	5000
15	Steatite and sand stone used for making household utensils/articles - Entire state	10000
16	Sand stone used for making house hold articles	10000
17	Murram	3000
18	All other minor minerals - Entire state	5000

SCHEDULE – II
(See Sub. Rule (1) of Rule 36)
ROYALTY

SL. No.	Name of the Minor Mineral	Rate per Unit/quantity	
		With in the state	Outside the state
1	2	3	4
1.	ORNAMENTAL AND DECORATIVE BUILDING STONES- as defined under clause (m) of rule 2. (A) DYKE ROCKS i) Black granites a) Mysore and Chamarajanagar Districts. b) All other Districts other than (a) above. ii) Other varieties of dykes other than black granites (Entire State) (B) (1) PINK and Red granites (ILKAL PINK VARIETY) (i) Hungund Taluk of Bagalkot and Badami taluk of Bijapur Dist., Kushtagi of Koppal Dist. ii) PINK and Red granites, gneisses and their textural & structural varieties (other than ILKAL Pink variety) (C) GREY & WITH GRAINTES and Their varieties i) Very fine grained grey Granite (SIRAGREY variety) Chintamani, Siddalaghatta of Chikkaballapur Dist., Hoskote of Bangalore District. ii) Grey & white granites & their textural varieties having shades of grey, black & white colours, (other than (i) above) Entire State iii) Grey Granite of Sadarahally, Koira of Bangalore Rural District.	Rs.4800 per M³ Rs.3500 per M³ Rs.2500 per M³ Rs.4000 per M³ Rs.3000 per M³ Rs.2000 per M³ Rs.1400 per M³ Rs.800 per M³	Rs.7500 per M³ Rs.4500 per M³ Rs.3000 per M³ Rs.6000 per M³ Rs.4000 per M³ Rs.3000 per M³ Rs.2100 per M³ Rs.1200 per M³
2.	Felsite and its varieties suitable for use as ornamental stones - Entire state	Rs.1800 per M ³	
3.	Granite and Sand stone and their varieties suitable for use as ornamental stones- Entire state	Rs.1800 per M ³	
4.	Marble or crystalline lime stone as ornamental stone - Entire state	Rs.1800 per M ³	
5.	Bentonite - Entire state	Rs.400 per MT	
6.	Fullers earth - Entire state	Rs.125 per MT	

6A	Buff colour (waste) The permits should not exceed 20% of permit issued for FULLERS EARTH	Rs.60 per MT
7.	Lime stone under the title “Shahabad stone”	Rs.150 per 10 meter or Rs.150 per MT.
8.	Lime stone (Non cement) when used for building stone - Entire state	Rs.40 per MT
9.	Ordinary building stones – (Entire state as defined under clause (g) of rule 2	Rs.60 per MT
10.	Lime Shell - Entire state	Rs.100 per MT
11.	Lime Kankar (Non- Cement) - Entire state	Rs.50 per MT
12.	Agate, Chalcedony, Glint- Entire state	Rs.240 per MT
13.	Ordinary sand - Entire state	Rs.60 per MT
14.	Steatite and sand stone used for making household utensils/ articles - Entire state	Rs.40 per MT
15.	(a) Murrum (All types of soils) Entire state (b) Clay used for manufacturing tiles and bricks	Rs. 20 per MT Rs. 40 per MT
16.	All other minor minerals - Entire state	30% of sale value at pit mouth
17.	Waste rocks generated in ornamental stone quarry - Entire state (See explanation under Rule 36)	Rs.300 per Tonne or Rs.850 per M ³
18.	Irregular shaped waste rock, Generated in Stone quarry which is not suitable for ornamental purposes- Entire state.	Rs.60 per MT
19.	Waste rocks generated in Shahabad stone quarries- Entire state (See explanation under Rule 36)	Rs.60 per MT
20.	Finished kerb stones/cubes not exceeding 30 cms. Each face – Entire State	Rs.110 per MT.

By Order and in the name of the Governor of Karnataka
Sd/-

Desk Officer (Mines),
Commerce & Industries Department.

Annexure D

Sl. No.	Items	Stages of Inspection
1	Pumps	- Review of material test certificate for pump casing, bowls, shaft, impeller bearings, columns pipe etc., - Review of heat treatment certificate if any - Dynamic balancing or rotating parts/impeller. - Examination of the shaft - Hydro test of casing - Performance test at 49 Hz frequency including vibrating measurement covering following test. - Capacity in LPM/LPS - Delivery Head in mtrs. - Efficiency at the specified duty - Power absorbed by the pump at the specified duty - N.P.S.H required - Maximum power required by the pump - Shut off Head of the pump - Discharge of the pump when only on pump is operated in the system - Delivery pressure when only on pump is operated in the system - Power absorbed by the pump when only one pump is operated in the system - Efficiency of the pump when only one pump is operated in the system - Visual and dimensional check - Strip test - Speed test at 49 Hz and 50 Hz frequency.
2	MOTORS	- Dynamic balancing of rotor and visual examination of rotor assembly. - Visual inspection and testing of startor assembly. - Review of Test Certificate for conductor, Startor coils, shaft Bearings etc., - Routine test no load x load test vibration measurement as per IS - Verification of type test report - Visual and dimensional check.
3	Switch gear and Electrical Panels	- Visual and dimensional check - Verification of bill of materials - Functional Test - HV/IR Test - Verification of type test reports - Voltage ratio, burden class, induced high voltage, applied high voltage test for potential transformers - Current ratio, burden, class of accuracy, test for current transformers - Rate symmetrical breaking capacity, rated making capacity, rated short time current, auxiliary voltage for release coils, impulse with standard voltage test for Switch Gear panels. - Test results of Relay provided.
4	Transformer	- Visual inspection, dimensional check and verification of bill of materials - Iron losses and Copper losses test at 90% of the rated voltage, 100% rated voltage and 110% of the rated voltage - Resistance voltage test at HV side and L.V. side - Routine tests as per IS 2026

		5. Verification of type results, temperature rise test, Impulse test, Insulating oil test. etc.,
5	Capacitor	All routine and type test as per IS:2834 such as sealing test, test for output/capacitance, Insulation resistance test between terminals. Containers and loss angle measurements, test for efficiency of discharge divide, test for dielectric loss angle, thermal stability test, self-healing test, voltage test between terminals.
6	Cables	1. Visual Inspection and Dimensional check 2. Routine test as per IS: 1554 3. Insulation test, resistance test, current rating test, star reactance test, star capacitance test, short circuit current test, voltage drop test.
7	Valves	1. Visual and dimension check. 2. Review of material test certificate for valve body and internals. 3. Operational smoothness. 4. Hydraulic test/Leakage test as per applicable codes. 5. Any other direction given to the inspecting agency to carry out the third party inspection.
8	Pipes	1. visual and dimensional check 2. Review of chemical and physical test certificates as per the relevant Indian standard specifications 3. Hydrostatic pressure test as per the relevant Indian Standard specifications. 4. Hydraulic proof testing Standards factory 5. Ultrasonic testing of welded joints for MS pipes 6. Checking the integrity of epoxy lining for MS pipes at joints after laying and jointing pipes.
9	Dismantling Joints	1. All bodies, compression fanges 2. Fasteners 3. Sealing Gaskets 4. Bodies 5. All Components As per relevant IS/BIS standard or as per approved QAP.

Annexure E**Procurement of Materials:**

(i) The Contractor shall use only ACC, Rajashree, Raasi, Coromandel, L&T, ACC, Suraksha, Kanoria and Zuari or any other brand approved by the Board. of 43 grade cement conforming to IS 8112 / 89 with latest amendments with ISI mark. The Contractor should furnish the manufacturer test certificate for the above brand of cement for having manufactured the cement as per relevant, IS standard and guarantee certificate before using the cement.

(ii) The Contractor shall procure the steel from VISL / SAIL / VSP / TISCO/ and manufacturer test certificate is to be produced.

(iii) For other materials, as specified below

List of approved Manufacturers' for different materials:

1. D.I. PIPES

1. M/s. Electrosteel Casting Ltd., 30, B.T. Road, Kharda, P.O. Sukhchar, Dist. 24, Paraganas(N)- 700 115 – West Bengal
 2. M/s.Jindal Saw Ltd., Samaghogha Village, Mundra Taluk, Dist. Kutch, Gujarat-392 415
 3. M/s.Sri Kalahasti pipes Ltd., Rachagunneri-517 641 Sri Kalahasti, Chittor, A.P.
- Or other equivalent makes conforming to relevant B.S. Specifications

2. PVC / UPVC PIPES

1. M/s. Oriplast Ltd., O.T. Road, Balasore- 756 001, Orissa.
 2. M/s.Jain Irrigations, Jain Plastic Park, P.O. Box: 72, N.H. No.6, Bambhori, Jalgaon- 425 001
 3. M/s. Kriti Industries (I) Ltd., Chetak Chambers, 4th floor, 14 RNT Marg, Indore – 452 001 (Madhya Pradesh)
 4. M/s. Sudhakar Polymers Ltd., Balram Thanda, Near Industrial Estate, Suryapet- 508 214
 5. M/s. Gaurav Agro Plast Ltd., L-45, MIDC Area, Tarapur, Boisar District, Thane, Maharastra.
 6. M/s. Prince Pipes and Fittings, Survey No. 53, Jayant Desai Marg, Vaghdhara Road, Dadra D. & NH- 396 191
 7. M/s. Sudhakar Irrigation Systems (P) Ltd., Balaram Thanda, Near Industrial Estate, Suryapet- 508 214
 8. M/s. Canara Pipes, 278A, 6th Main Road, Peenya Industrial Estate, Peenya 2nd Stage, Bangalore- 560 058
 9. M/s. Mahesh Extrusions Ltd., Off. & Works, No.2A, KIADB, Industrial Area, Mendargi Village, Bellary- 583102
 10. M/s. Finolex Industries Ltd., D-I/20, MIDC, Chickwad, Pune- 411 019
 11. M/s Dutron Polymers LTd., Block No.642, NH-8, Hariyala, Taluka Matar, Dist. Kheda, Gujrat.
 12. M/s Dukes Plasto Technique, NH-14,Opp. Green Wood Hotel, Badapura – 385 501, Tq. Palanpur, Dist. Banaskanta, Gujrath.
 13. M/s Chemplast Sanmar Ltd., 9, Cathedral Road, Chennai – 600 086.
 14. M/s Kisan Irrigations Ltd., Sy. No. 108/1/6, Surangi Road, Near Khadoli Sub-Station, Village Khadoli, Silvassa (D & NH).
 15. M/s.Tijaria Polypipes Ltd., A 130 (E), Road No.9D, VKI Area, Jaipur, Rajasthan.
 16. M/s. Ronix Polymers Pvt., Ltd., Delhi Road, Village Bhadua, P.O. Mollabere (Dankuni) Dist, Hooghly, West Bengal – 711224.
 17. M/s.G.G. Polyplast Pvt., Ltd., G-1021-1022, Phase III, Sitapura Industrial Area, Jiapur (Rajasthan).
 18. M/s. Sujala Pipes Pvt., Ltd., C1, Industrial Estate, Nandyal Kurnool District – 518502.
- Or other equivalent makes conforming to relevant B.S. Specifications

3. S & S RCC PIPES

1. M/s. Karnataka Cement Pipe Factory, RCC Unit, Spl.Shed 23, Industrial Estate, Gokul Road, Hubli- 580 030
2. M/s. Chetana Concrete Products, National Highway, No.4, Avaragere, Davanagere
3. M/s. Tanvi Cement Products, No. 128, Lakkenahalli, Bhadrapura Road, Solar Hobli, Magadi Taluk, Bangalore
4. M/s Lakshmi Cement Products, No.6A, KSSIDC Indl. Area, Hirehalli Indl Area,Tumkur.

5. M/s.Indian Hume Pipes Co. Ltd., Venkatahalla Village, Yalahanka Post, Bangalore – 560064.
6. M/s.Vasanth Cement Pipe Industries, Plot No:C-60, MIDC, Miraj – 416410.
7. M/S.Standard Cement Pipe Industries, A/P Shedbal – 591315, Tal, Athani District. Belgaum.
8. M/s.Sree Narasimha Cement Products, Sonnapanahalli, Bettahalasoor Post, Bangalore – 562157.
9. M/s. Swamy Concrete Products Pvt., Ltd., Plot No.35, KIADB, Hirehally Industrial Area, Hirehalli, Tumkur – 572168.
10. Or other equivalent makes conforming to relevant B.S. Specifications

4. DI SPECIALS

1. M/s. Kiswok Industries Pvt. Ltd, Bipranna Para, Via-Begri, Domjur, Howrah-711 411
2. M/s. Electrosteel Casting Ltd., 30, B.T. Road, Kharda, P.O. Sukhchar, Dist. 24, Paraganas(N)- 700 115 – West Bengal
3. M/s. Kejriwal Castings, P-200, Benaras Road, Netajigarh, Howrah – 711 108
4. M/s Juneja Metal Works Village Variana, P.O. Nagra, Kapurthala Road,Jalandhar – 13.

Or other equivalent makes conforming to relevant B.S. Specifications

5. Valves

1. IVC
2. Kirloskar
3. R&D
4. Sigmaflow
5. Jupiter
6. GM Dalui

Or other equivalent makes conforming to relevant B.S. Specifications

5. RUBBER RINGS & RUBBER GASKETS

1. M/s.Durable Polymer Products Pvt Ltd., Boai, 2nd Lane, P.O.Jugberia, Kolkata-700 110
2. M/s. Prabhat Elastomers Pvt. Ltd., A1/413-415, GIDC Road, No. 4, Sarigam Gujarat- 396155
3. M/s.Amalgamated Synthetic Moulders,44/14, K.B.Sarani(Mall Road),Kolkatta-700080
4. M/s. J.D.Rubber Industries, Survey No. 580/A, Ghatkesar (M) R.R. Dist (A.P.)
5. M/s Andhra Polymers Pvt. Ltd., Plot No.2, Phase – 5, IDA, Jeedimetla, Hyderabad – 560 055

Or other equivalent makes conforming to relevant B.S. Specifications

6. FOOT STEPS

1. M/s.K.G.M. Exports, Plot No. 1 & 2, Sectors 59, H.I.S.D.C. Indl Estate, Faridabad
2. M/s. TV Plastics Ltd., 488, Kamakshipalya New Extensions, Bangalore – 560079.
3. M/s. Rajvaibhav Enterprises Pvt., Ltd., No.18, KIADB, Industrial Area, Chintamani Road, Hosakote -14, Bangalore.

7. PIPE COATING

1. M/s. STP Ltd., Mirgadih, Dimna Road, P.O. MGM Medical College, Jamshedpur- 831 018, Jharkhand
2. Or other equivalent make.

8. MOTOR

1. M/s Alstom Ltd., 19/1, GST Road, Pallavaram, Cheennai
2. M/s. Elgi Electricals and Industries Ltd., Mettupalyam Village, Kovilpalyam P.O., Pollachi- 642 110, Coimbatore.
3. M/s. Jyothi Ltd., Nanubai, Amin Marg, P.O. Chemical Industries, Vadodara- 390 002
4. M/s. Kirloskar Electric Company, Unit-I / Unit-III, Unit-V, Unit- XII in P.O. Box No.5555, Malleswaram West, Bangalore.

Unit-II in U-2, Gokul Road, Hubli- 580 030.

Unit-IV in Belavadi Industrial Area, Mysore- 570 018

5. M/s.Crompton Greaves Ltd.,Pumps Division,Plot No.A/28, MIDC, Ahmednagar-414111.
6. M/s ABB Ltd., Faridabad(LT)
7. M/s.ABB Limited,P.O. Maneja, Vadodara(LT)
8. M/s.ABB Limited,Plot No. 5&6, II phase, Peenya Industrial Area,Bangalore – 560 058(HT)

Or other equivalent makes conforming to relevant B.S. Specifications

9. SWITCH GEARS

1. M/s. Bhartia Cutler Hammer, Bharatia Industries Ltd., 20/4, Matura Road, Faridabad-121006
2. M/s. Crompton Greaves Ltd., Switchgear Complex, A-3, MIDC, Ambad, Nashik- 422 010
3. M/s. Schneider Electric India Pvt Ltd., No.58,MIDC, Satpur, Nasik –422007
4. M/s. Lotus Power Gear Pvt Ltd., 12/13 KM, Kanakapura Road, Doddakallasandra, Bangalore
5. M/s. Jyoti Ltd., Nanubhai Amin Marg, P.O. Chemical Industries, Baroda- 390 003
6. M/s. Kirloskar Electric Company, P.O.Box No.5555, Malleswaram West, Bangalore
7. M/s Meghawin Switchgear, P.O.Box No.434, Alagpuram Post, Perumal Malai Adivaram, Salem- 636 004
8. M/s Essen Electricals Ent, @ 52, 4th Cross, SSI Area (Behind Ramkumar Mills), Rajajinagar, Bangalore- 10
9. M/s. HPL Socomec Ltd., 132/133, Pace City, Sector 37, Gurgaon, Mumbai.
10. M/s. STELMEC Limited, Ularia, Ahmedabad-Sanand Road, Taluka Sananda, Ahmedabad 382110.

Or other equivalent makes conforming to relevant B.S. Specifications

10. TRANSFORMERS

1. M/s BHEL, Mysore Road, Bangalore
2. M/s KAVIKA, Mysore Road, Bangalore
3. M/s Alstom Ltd., Naini Works, P.O. Naini, Allahabad (U.P.)
4. M/s.PETE Transformers, D- 7,IDA,Isnapur,Pasham Mailaram-502307. Medak Dist.
5. M/s Voltamp Transformers Pvt Ltd., N.H.8, Makarapura, Baroda- 390 014
6. M/s. Trinity Electrical Industries, No.5, Doddanna Industrial Estate, Peenya 2nd Stage, Bangalore- 560 091
7. M/s Kirloskar Electric Company, P.O.Box No.5555, Maleswaram West, Bangalore.
8. M/s. Southern Power Equipment Pvt. Ltd., No.42, Tumkur Road, Yeshwanthpur, Bangalore- 560 022
9. M/s Kamath Transformers Pvt. Ltd., B-124, I Stage, 3rd Cross, Peenya Industrial Estate, Bangalore – 560 058.

Or other equivalent makes conforming to relevant B.S. Specifications

11. RELAYS

1. M/s Control and Switchgear Co., Ltd., (Relays & Overload relays) C-59, Phase-II, G.B. Nagar, Noida- 201 305
2. M/s Havell's India Ltd., 14/3, Mathura Road, Faridabad- 121 002, Haryana
3. M/s Alstom Ltd., 19/1, GST Road, Pallavaram, Cheennai
4. M/s Easun Reyrolle Ltd., (Electromechanical relays & Micro processor based relays) 17/3, Arekere, Bannerghatta Road, Bangalore – 560076
5. M/s Asea Brown Boveri Ltd., (Overload Relays), No.A1,A2, 3rd Stage, Peenya Industrial Area, Bangalore- 560 058
6. M/s GE Power Control (I) Pvt Ltd., (Overload Relays), 42/1 & 45/14, Electronics city, Phase II, Bangalore 561 229
7. M/s Meghawin Switchgear, P.O.Box No.434, Alagpuram Post, Perumal Malai Adivaram, Salem- 636 004

Or other equivalent makes conforming to relevant B.S. Specifications

12. STARTERS

1. M/s. Havell's India Ltd., Havells India Limited, 14/3, Mathura Road, Faridabad- 121 002, Haryana.
2. M/s. Control and Switchgear Co., Ltd., C-59, Phase-II, G.B. Nagar, Noida- 201 305.
3. M/s. Kimo Electronics Pvt Ltd., 106, Sion Indl Area, Sion Koliwada Road, Sion, Mumbai-400022.
4. M/s. Bhartia Cutler Hammer, Bharatia Industries Ltd., 20/4, Matura Road, Faridabad - 121 006
5. M/s Innovative Technomics Pvt Ltd., EL34, J block, MIDC, Bhosari, Pune- 411 026.

6. M/s Schneider Electric India Pvt Ltd., No.58,MIDC, Satpur, Nasik– 422 007
7. M/s Jayashree Electron Pvt Ltd., EL34, J Block, MIDC, Bhosari, Pune- 411026
8. M/s Gujarat Electronics & Controls, 7, Adavani Market, Out side Delhi Gate, Ahamedabad- 380 004.
9. M/s. ESSEN Electricals Pvt. Ltd., 52, 4th Cross, SSI Area, Rajajinagar, Bangalore- 560 010

Or other equivalent makes conforming to relevant B.S. Specifications

13. PANELS

1. M/s. Havell's India Ltd., 14/3, Mathura Road, Faridabad- 121 002, Haryana
2. M/s.Control & Switchgear Co. Ltd., C-59, Phase-II, G.B. Nagar, Noida- 201 305
3. M/s Alstom Ltd., 19/1, GST Road, Pallavaram, Cheennai
4. M/s. Bhartia Cutler Hammer, Bharatia Industries Ltd., 20/4, Matura Road, Faridabad- 121 006
5. M/s. Crompton Greaves Ltd., Switchgear Complex, A-3, MIDC, Ambad, Nashik- 422010
6. M/s. Schneider Electric India Pvt Ltd., No.58,MIDC, Satpur, Nasik–422007
7. M/s. Lotus Powergear Pvt Ltd., 12/13 KM, Kanakapura Road, Doddakallasandra, Bangalore
8. M/s. Sunshine Controls, No.55, Bhikasipura Road, Behind J.C. Industrial Area, Yelachenahalli, Bangalore- 560 062
9. M/s. Gujarat Electronics and Controls, 7, Adavani Market, Out side Delhi Gate, Ahamedabad- 380 004
10. M/s.Adarsh Electricals, Avalahalli Main Road, 3rd Cross, G.E.F. Post, Bangalore- 560026.
11. M/s Meghawin Switchgear, P.O.Box No.434, Alagpuram Post, Perumal Malai Adivaram, Salem- 636 004.
12. M/s Powertek Controls, SP-45A, 3rd Main Road, Ambattur Industrial Estate, Chennai – 600 058.
13. M/s Standard Electricals Ltd., Jalandhar – 13.

Or other equivalent makes conforming to relevant B.S. Specifications

14. CONTACTORS

1. M/s. Havell's India Ltd., Havells India Limited, 14/3, Mathura Road, Faridabad- 121 02, Haryana.
2. M/s. Control and Switchgear Co. Ltd., 222, Okhla Industrial Estate, New Delhi- 110 020 and at Noida.
3. M/s. Bhartia Cutler Hammer, Bharatia Industries Ltd., 20/4, Matura Road, Faridabad- 121 006.
4. M/s. Crompton Greaves Ltd., Switchgear Complex, A-3, MIDC, Ambad, Nashik- 422 010
5. M/s. Schneider Electric India Pvt. ltd., No.58, MIDC, Satpur, Nashik- 422 007
6. M/s. Asea Brown Boveri Ltd., No. A-1, A-2, 3rd Stage, Peenya Industrial Area, Bangalore- 560 058.
7. M/s. GE Power Control (I) Pvt. Ltd., 42/1 & 45/14, Electronic City, Phase-II, Bangalore- 561 229.
8. M/s Meghawin Switchgear, P.O.Box No.434, Alagpuram Post, Perumal Malai Adivaram, Salem- 636 004
9. M/Standard Electricals Ltd., Jalandhar – 13.

Or other equivalent makes conforming to relevant B.S. Specifications

15. CIRCUIT BREAKERS

1. M/s Control & Switchgear Co., 222, Okhla Industrial Estate, New Delhi- 110 020. (ACB, MCCB)
2. M/s. Havell's India Ltd., 14/3, Mathura Road, Faridabad- 121 002, Haryana (MCCB)
3. M/s Bhartia Cutler Hammer, Bharatia Industries Ltd., 20/4, Matura Road, Faridabad - 121 006 (MCCB)
4. M/s Crompton Greaves Ltd., Switchgear Complex, A-3, MIDC, Ambad, Nashik- 422 010. (VCB)
5. M/s Schneider Electric India Pvt Ltd., No.58,MIDC, Satpur, Nasik -422007. (All Circuit Breakers)
6. M/s Alstom Ltd., Naini Works, P.O.Naini, Allahabad (U.P.) (VCB) PC
7. M/s Asea Brown Boveri Ltd., No.A1A2 3rd Stage, Penya Industrial Area, Bangalore- 560058 (All Circuit Breakers)
8. M/s GE Power Control (India) Pvt Ltd, 42/1 & 45/14, Electronics city, Phase II, Bangalore 561 229. (All Circuit Breakers)
9. M/s.HPL India Ltd., D-392, Sector X, Noida- 201 301. UP (MCB)
10. M/s Alstom Ltd, 19/1, GST Road, Pallavaram, Chennai (Circuit Breakers)
11. M/s Alstom Ltd, No1 and No. 58, Tharatala Road, Kolkata- 700024(VCB)
12. M/s.Standard Electricals Ltd., Jalandhar – 13.

Or other equivalent makes conforming to relevant B.S. Specifications

16. GENERATOR

K/W-4

1. M/s. Control and Switchgear Company Ltd., 222, Okhla Industrial Estate, New Delhi- 110 020 and C-59, Phase-II, G.B. Nagar, Noida- 201 305.
 2. M/s. Elgi Electric and Industries Ltd., Mettupalyam Village, Kovilpalyam P.O., Pollachi- 642 110, Coimbatore.
 3. M/s. Kirloskar Electric Company, Unit-I / Unit-III, Unit-V, Unit-XII in P.O. Box No.5555, Malleswaram West, Bangalore
Unit-II in U-2, Gokul Road, Hubli- 580 030
Unit-IV in Belavadi Industrial Area, Mysore- 570 018
- Or other equivalent makes conforming to relevant B.S. Specifications

17. CABLES

1. M/s. Ravin Cables Ltd., Gate No. 227/230, Alandi Markal Road, Markal Village, Pune- 412 105
2. M/s. Calama Industries Ltd., Ravi Tonape, # 7, Gaiwadi Industrial Estate, S.V. Road, Goregaon (West), Mumbai- 400 062.
3. M/s. Chandresh Cables Ltd., Plot No. 1108, Chhatral Tal., Kalol Dist., Gandhinagar- 382 729.
4. M/s. Nicco Corporation Ltd., Shamnagar Works, P.O. Athpur Shamnagar, Dist. 24 Paraganas (N), West Bengal and Cable Division: Hamilton Garden, Barivada Dist: Mayeerbhanj, Orissa- 757 001.
5. M/s. SBEE Cables, 29, JCW Industrial Estate, 11th KM, Kanakapur Road, Bangalore – 560 062.
6. M/s Myso- Tech Industries, No.36, 1st Cross, Avalahalli Main Road, New Timber Yard Layout, Mysore Road, Bangalore – 26.
7. M/s. Varsha Cables Pvt., Ltd., No.65-A-2, Hootagalli Industrial Area, DIC Layout, Mysore 570018.
8. M/s. GEMSCAB Industries Ltd., SP-1192/L&K, Phase-IV, RIICO Industrial Area, Bhilwadi Dist, ALwar (Rajasthan) 301019

Or other equivalent makes conforming to relevant B.S. Specifications

18. CHANGE OVER SWITCHES

1. M/s Havell's India Ltd., 14/3, Mathura Road, Faridabad- 121 002, Haryana
2. M/s.Control & Switchgear Co., Ltd., 222, Okhla Industrial Estate, New Delhi-110020 and
3. C-59, Phase- II, G.B. Nagar, Noida
4. M/s Standard Electricals Ltd., Jalandhar – 13.

Or other equivalent makes conforming to relevant B.S. Specifications

19. FUSES / FUSE SWITCH

1. M/s Havell's India Ltd., (Fuse switches) 14/3, Mathura Road, Faridabad- 121 002, Haryana
2. M/s Control and Switchgear Co., Ltd., (HRC Fuses, Switch Fuse unit) Ltd., 222, Okhla Industrial Estate, New Delhi- 110 020 and C-59, Phase- II, G.B. Nagar, Noida
3. M/s Bhartia Cutler Hammer, Bharatia Industries Ltd., (Switch Fuse unit), 20/4, Matura Road, Faridabad - 121 006
4. M/s Schneider Electric India Pvt Ltd., (Switch Fuse Unit) No.58,MIDC, Satpur, Nasik –422007
5. M/s Asea Brown Boveri Ltd., (Switch Fuse Unit) No.A1A2 3rd Stage,Penya Industrial Area, Bangalore- 560058
6. M/s GE Power Control (India) Pvt Ltd, (Fuse bases, LT & HT fuses, Switch dis-connector fuses) 42/1 & 45/14, Electronics city, Phase II, Bangalore 561 229
7. M/Standard Electricals Ltd., Jalandhar – 13.

Or other equivalent makes conforming to relevant B.S. Specifications

20. BATTERIES

1. M/s. Mysore Thermo Electric Pvt Ltd., 36, 4th main, III phase, Peenya Indl Area, Bangalore-560 058
2. Or other equivalent make.

21. UPS

1. Kirloskar Electric Company, Unit I/Unit-III, Unit-V, Unit-XII in P.O.Box No.5555, Maleswaram West, Bangalore
Unit-II in Unit-II in U-2, Gokul Road, Hubli 580 030,
Unit-IV in Belavadi Industrial Area, Mysore- 570 018
Or other equivalent makes conforming to relevant B.S. Specifications

22. PUSH BUTTONS

1. M/s. Control and Switchgear Co., Ltd., Ltd., 222, Okhla Industrial Estate, New Delhi- 110 020 and C-59, Phase- II, G.B. Nagar, Noida
2. M/s. Bhartia Cutler Hammer, Bharatia Industries Ltd., 20/4, Matura Road, Faridabad - 121 006

Or other equivalent makes conforming to relevant B.S. Specifications

23. WATER LEVEL CONTROLLERS

1. M/s. Hitech Systems and Services, White House, 119, Park Street, Kolkata- 700 016
2. M/s. Nivo Controls Pvt Ltd., 104-115, Electronic Complex, Indore- 452 010.
3. M/s. Gujarat Electronics and Controls, (Water level controllers & Water level guards) 7, Adavani Market, Out side Delhi Gate, Ahamedabad- 380 004.

Or other equivalent makes conforming to relevant B.S. Specifications

24. DIGITAL METERS

1. M/s. Prok Devices Pvt Ltd., No.9, Nugglipalya, Ullal Upanagar, Yeswanthpur Hobli, Bangalore North.
2. M/s Conzerve Systems Pvt. Ltd., 44P, Electronic City, Phase – II East, Hosur Road, Bangalore – 560 100.
3. M/s Elecon Measurements Pvt. Ltd., # 755, 4th Phase, 707, Yelahanka New Town, Bangalore – 560 064.M/s.
4. M/s Secure Meters Ltd.,G-421-432, RIICO Bama Shah Industrial Area, Udaipur

Or other equivalent makes conforming to relevant B.S. Specifications

25. ELECTRICAL ACTUATORS

1. M/s. Bhartia Cutler Hammer, Bharatia Industries Ltd., 20/4, Matura Road, Faridabad - 121 006
2. M/s. Limitorque, 15/4, Mile Stone, Mathura Road, Faridabad-121002
3. M/s AUMA
4. M/s Rotorque

Or other equivalent makes conforming to relevant B.S. Specifications

26. LAMP

1. M/s. Control and Switchgear Co., Ltd., Ltd., 222, Okhla Industrial Estate, New Delhi- 110 020 and C-59, Phase- II, G.B. Nagar, Noida
2. M/s. Bhartia Cutler Hammer, Bharatia Industries Ltd., 20/4, Matura Road, Faridabad -121 006

Or other equivalent makes conforming to relevant B.S. Specifications

27. ISOLATORS

1. M/s. Control and Switchgear Co., Ltd., Ltd., 222, Okhla Industrial Estate, New Delhi- 110 020 and C-59, Phase- II, G.B. Nagar, Noida
2. M/s. Asea Brown Boveri Ltd., No. A1 A2 3rd Stage, Peenya Industrial Area, Bangalore- 560058
3. M/s. Meghawin Switchgear, P.O. Box No. 434, Alagpuram Post, Perumal Malai Adivaram, Salem- 636004
4. Or other equivalent make.

28. PLUG AND SOCKET

1. M/s.Havell's India Ltd., 14/3, Mathura Road, Faridabad- 121 002, Haryana

Or other equivalent makes conforming to relevant B.S. Specifications

29. TIMERS

1. M/s Control and Switchgear Co., Ltd., Ltd., 222, Okhla Industrial Estate, New Delhi- 110 020 and C-59, Phase- II, G.B. Nagar, Noida

Or other equivalent makes conforming to relevant B.S. Specifications

30. CAPACITORS

1. M/s Epcos India Pvt., Ltd., Plot No E22-25, MIDC, Satpur, Nasik-2 (LT & HT)

Or other equivalent makes conforming to relevant B.S. Specifications

SECTION 6: CONTRACT DATA

The following documents are also part of the Contract	Requirement	Clause reference as per CC & SCC
The Schedule of Operating and Maintenance Manuals	-Applicable- The contractor shall submit the related documents within 30 days after completion and commissioning of the entrusted work.	48 of CC
The Methodology and Program of Construction	-Applicable- The Methodology and Program of construction should be submitted within 7 days from the site possession date and concurrence with Clause 1.13 of Section -3	25 of CC
Site Investigation Reports	Contractor has to make his own arrangement for the site investigation and sub strata exploration.	14 of CC
The Schedule of Key and Critical Equipment to be deployed on the work as per agreed program of construction	-Applicable-	25 of CC
The Employer Name is :	Commissioner, City Municipal Council, Udupi.	
Address:	City Municipal Council, KM Road, Udupi	1.1 of CC
Name of authorized Representative:	The Executive Engineer, PIU, KIUWMIP-Jalasiri, KUIDFC, Rajathadri Building, Manipal, Udupi - 576104, Near End Point	1.1 of CC
The Name and identification No of the Contract is	Improvement of Water Source for Udupi City	1.1 of CC
The start date	Shall be the date of issue of notice to proceed with the work.	1.1 of CC
The Intended Completion Date	For the whole of the Works is 33months including 3 months trial run with the following milestones	17,26 of CC

The scope of work under this contract shall include but not limited to the following and as specified in BOQ:

1. Construction of Coffor Dam
2. Construction of RCC M30 Intake Well
3. Laying of RCC NP-4 1000 mm dia Intake pipes for 75M
4. Construction of RCC M30 Jack well cum Pump House
5. Providing vertical turbine pumps of capacity 750 cum/hr against of total head of 97 m including 50% standby. (2W + 1S)
6. Laying of 864mm dia MS raw water pipe for 38.54 Kms with all required specials
7. Laying of pipe by Trenchless method for NH crossing

8. Construction of thrust blocks, RCC Valve Chambers
9. Providing Surge Anticipating Valve, Air Valve, Scour Valve, Electromagnetic flow meters, Flow control Valve, Butterfly Valve
10. Laying the pipe line below river bed with RCC M25 encasement for 5 river crossings
11. Road restoration works with WBM, Granular Sub base, Wet Mix, mix seal, BM, SDBC, 1:5:10 RCC sub base, M30 CC Pavement.
12. Diversion and dewatering of water course wherever required shall be taken up by the Contractor for laying pipe line and construction of other structures for which no extra cost will be paid.
13. Testing and commissioning the pipelines after laying and construction.
14. Providing National Highway crossing as per specifications and as directed by the Engineer
15. Construction of service road as per bill of quantities, as per drawings, specifications and as directed by the Engineer
16. Backfilling the trenches in layers of 150mm thick, well compacted using watering, ramming and mechanical compaction using plate/roller compactors without damaging the sewers to ensure that there will be no settlement of backfilling material after making good the surface and as directed by the Engineer. The bidder shall carry out tests for density of backfill at his own cost and that if the backfill is found to be unsatisfactory, it shall be ratified or the backfilling will be got done by the other agencies at the cost of Contractor.
17. Survey of water supply line alignment and submission of survey drawings showing L-Section, cross section at every 25 meters and additional cross sections wherever required and as directed by the engineer, strip plans showing details for approval from the employer, before execution of work. No extra payment will be made to the contractor for this. The bidder should include the cost of doing such contingent works in the amount of tender while quoting rates.
18. Maintenance of all the works for a period of one year after 3 months trial run and commissioning. During this period, the Contractor has to set right the defects of any kind in the manufacture, laying and jointing of sewer lines and its appurtenant works and other civil, electrical and mechanical works in the scope of work including replacement of defective items, labour and technical services if required and also making good the restored road surface as mentioned above in case of settlement.
19. Submission of As-built drawings of pipeline including L-section, Plan and Cross sections in Autocad format and shall be compatible to GIS to know the exact location on the satellite picture and road works
20. The scope also covers associated civil works including protective works, encasing of pipes with concrete and RCC NP3 pipes at drain and road crossings, Retaining wall, pitching works all safety measures etc and horizontal thrust boring for National Highway/Railway
21. All electrical works required for Pump house like 11 KV INDOOR MCVCB PANEL FOR TRANSFORMER AND LINE PROTECTION.
22. 3.3 KV INDOOR VCB PANEL FOR TRANSFORMER SECONDARY AND MOTOR FEEDER.
23. FCMA NEUTRAL SIDE SOFT STARTER PANEL
24. LT POWER MOTOR CONTROL CENTRE:
25. BATTERY CHARGER PANEL WITH DCDB, STATIONARY BATTERY BANK, Remote Control Panel, HT POWER CAPACITORS, Earthing, Area lighting

All work shall be done as per the specifications and as directed by Engineer. The work shall be executed on item rate basis and which is also inclusive of environmental and social safe guards as per the standards. Indicative Drawings related to the works to be done are given as in Drawings for guidance of the Contractor. For the execution of Works, exact details will be given in construction drawings based on the alignment drawings given by the Contractor. The prospective bidder is expected to visit the site of works at his own expense to fully study the local conditions and to familiarise with the working area and local conditions and include all such factors in his quoted rate.

Milestone dates:

Mile stone Number	Cumulative Physical works to be completed	Period from the date of issue of notice to proceed with the work
Mile stone 1	1.Providing & laying MS pipe for Raw water Raising main- 11566.2 Rmt 2.Construction of Intake well & Jack well – 30% 3.Construction of Operator room – 30% 4.Road restoration work - 11566.2 Rmt	10 month
Mile stone 2	Providing & laying MS pipe for Raw water Raising main – 25060.10 Rmt 2.Construction of Intake well & Jack well – 65% 3.Construction of Operator room - 65 % 4.Road restoration work- 25060.10 Rmt	20 months
Mile stone 3	Providing & laying MS pipe for Raw water Raising main – 38554 Rmt 2.Construction of Intake well & Jack well- 100 % 3.Construction of Operator room- 100% 4.Road restoration work- 38554 Rmt Completion, Trail run & Commissioning of all component- 100%	33 months

The Site Possession Date is 14 days from the notice to proceed with the work [21]

The Site is located in the vicinity of Udupi City [1.1]

The Defects Liability Period is 365 days. [31]

Insurance requirements are as under: [13]

	Type of Cover	Minimum cover for Insurance is 33 months.
(i)	Works and of Plant and materials	The sum stated in the Agreement plus 20%
(ii)	Loss or damage to equipment	Full replacement cost
(iii)	Loss or damage to property of Third Party	Full replacement cost
(iv)	Personal injury or death insurance (a) for Third Party	For normal works it could be Rs.100 lakhs to cover 20 persons @Rs.5 lakhs each
	(b) for Contractor's employees or labour	In accordance with the statutory requirements applicable to Karnataka.

Price Adjustment Formula;

[40]

R= Value of work as defined in Clause 40.1 of Conditions of Contract.

Price Adjustment Formula;

Adjustment for labour component:

- (i) Price adjustment for increase or decrease in the cost due to labour shall be paid in accordance with the following formula:

$$V_L = 0.85 \times P_L / 100 \times R \times (L_i - L_o) / L_o \text{ where,}$$

V_L = Increase or decrease in the cost of work during the quarter under consideration due to changes in rates for local labour;

L_o = The average consumer price index⁴ for industrial workers for Mangalore Centre for the quarter preceding the date of opening of tenders as published by the Labour Bureau, Ministry of Labour, Government of India;

L_i = The average consumer price index for industrial workers for Mangalore Centre for the quarter under consideration as published by Labour Bureau, Ministry of Labour, Government of India

P_L = Percentage of labour component of the work.

Note: The consumer price index is available in <http://labourbureau.nic.in>

Adjustment for Cement Component:

- (ii) Price adjustment for increase or decrease in the cost of cement component procured by the contractor shall be paid in accordance with the following formula.

$$V_C = 0.85 \times P_C / 100 \times R \times (C_i - C_o) / C_o, \text{ Where,}$$

V_C = Increase or decrease in the cost of the work during the quarter under consideration due to changes in the rates for cement;

C_o = The all India average wholesale price index for **OPC Cement** for the quarter preceding the date of opening of the tenders as published by the Office of Economic Advisor, Ministry of Commerce and Industry, Government of India, New Delhi;

C_i = The all India average wholesale price index for **OPC Cement** for the quarter under consideration as published by the Office of Economic Advisor, Ministry of Commerce and Industry, Government of India, New Delhi

P_C = Percentage of cement component of the work

Note: The index numbers are available in the website <http://eaindustry.nic.in>

Adjustment for Steel (for reinforcement, steel work) component:

- (iii) Price adjustment for increase or decrease in the cost of steel for reinforcement, steel for steel work and MS welded pipes procured by the contractor shall be paid in accordance with the following formula.

$$V_S = 0.85 \times P_S / 100 \times R \times (S_i - S_o) / S_o \text{ where,}$$

V_s = Increase or decrease in the cost of work during the quarter under consideration due to changes in the rates for steel (for reinforcement, steel work);

S_o = The all India average wholesale price index for **Steel: Mild steel flats & Sheets** for the quarter preceding the date of opening of Bids as published by the Office of Economic Advisor, Ministry of Commerce and Industry, Government of India, New Delhi

S_i = The all India average wholesale price index for **Steel: Mild steel flats & Sheets** for the quarter under consideration as published by the Office of Economic Advisor, Ministry of Commerce and Industry, New Delhi

P_s = Percentage of steel (for reinforcement, steel work) component of the work

Note: For the application of this clause, index of Steel: Mild steel flats & Sheets has been chosen to represent steel group.

Adjustment for Steel (for MS pipes) component:

- (iv) Price adjustment for increase or decrease in the cost of MS pipes work and procured by the contractor shall be paid in accordance with the following formula.

$$V_s = 0.85 \times P_s / 100 \times R \times (S_i - S_o) / S_o \text{ where,}$$

V_s = Increase or decrease in the cost of work during the quarter under consideration due to changes in the rates for steel (for MS pipes);

S_o = The all India average wholesale price index for **Steel Pipes, tubes and Poles** for MS pipes for the quarter preceding the date of opening of Bids as published by the Office of Economic Advisor, Ministry of Commerce and Industry, Government of India, New Delhi

S_i = The all India average wholesale price index for **Steel Pipes, tubes and Poles** for MS pipes for the quarter under consideration as published by the Office of Economic Advisor, Ministry of Commerce and Industry, New Delhi

P_s = Percentage of steel (for MS pipes) component of the work

Note: For the application of this clause, index of Steel Pipes, tubes and Poles for MS pipes has been chosen to represent steel group.

Adjustment for Iron Pipes (DI Pipes, CI Pipes and DI/CI Valves) component:

- (v) Price adjustment for increase or decrease in the cost of Iron Pipes (DI Pipes, CI Pipes and DI/CI Valves) procured by the contractor shall be paid in accordance with the following formula.

$$V_p = 0.85 \times P_p / 100 \times R \times (P_i - P_o) / P_o \text{ where,}$$

V_p = Increase or decrease in the cost of work during the quarter under consideration due to changes in the rates for Iron pipes (DI Pipes, CI Pipes, and DI/CI valves);

P_o = The all India average wholesale price index for **Pig Iron** for the quarter preceding the date of opening of Bids as published by the Office of Economic Advisor, Ministry of Commerce and Industry, Government of India, New Delhi

P_i = The all India average wholesale price index for **Pig Iron** for the quarter under consideration as published by the Office of Economic Advisor, Ministry of Commerce and Industry, New Delhi

P_p = Percentage of Pipes (DI pipes, CI Pipes and DI/CI valves) component of the work

Note: For the application of this clause, index of Pig Iron and Semis has been chosen to represent Pipe group.

Adjustment for HDPE pipes and materials component:

- (vi) Price adjustment for increase or decrease in the cost of HDPE pipe & materials procured by the contractor shall be paid in accordance with the following formula.

$$V_v = 0.85 \times P_v / 100 \times R \times (V_i - V_o) / V_o \text{ where,}$$

V_v = Increase or decrease in the cost of work during the quarter under consideration due to changes in rates for HDPE pipe & materials;

V_o = All India average wholesale price Index for **HDPE (polythene / plastic Granules)** for the quarter preceding the date of opening of Bids as published by the Office of Economic Adviser, Ministry of Commerce and Industry, Government of India, New Delhi;

V_i = All India average wholesale price Index for **HDPE (polythene / plastic Granules)** for the quarter under consideration as published by the Office of Economic Adviser, Ministry of Commerce and Industry, Government of India, New Delhi;

P_p = Percentage of HDPE pipe & materials component of the work

Note: The all India average whole sale price Indices are available in website <http://eaindstry.nic.in>

Adjustment of Bitumen Component:

- (vii) Price adjustment for increase or decrease in the cost of bitumen shall be paid in accordance with the following formula:

$$V_B = 0.85 \times P_B / 100 \times R \times (B_i - B_o) / B_o, \text{ Where}$$

V_B = Increase or decrease in the cost of work during the quarter under consideration due to changes in the rate for bitumen.

B_o = The official retail price of bitumen at the IOC /HPCL/BPL or any other depot at **Mangalore** on the day 30 days prior to the date of opening of Bids.

B_i = The official retail price of bitumen at the IOC/HPCL/BPL or any other depot at **Mangalore** for the 15th day of the middle calendar month of the quarter under consideration.

P_B = Percentage of bitumen component of the work.

Adjustment of Fuel and Lubricant component:

- (viii) Price adjustment for increase or decrease in cost of Fuel and Lubricants shall be paid in accordance with the following formula:

$$V_F = 0.85 \times P_F / 100 \times R \times (F_i - F_o) / F_o, \text{ Where,}$$

V_F = Increase or decrease in the cost of work during the quarter under consideration due to changes in the rates for Fuel and Lubricants.

F_o = The official retail price of High Speed Diesel (HSD) at the IOC/HPCL/BPL or other consumer pump at **Mangalore** on the day 30 days prior to the date of opening of Bids.

F_i = The official retail price of HSD at the IOC/HPCL/BPL or other consumer pump at **Mangalore** for the 15th day of the middle calendar month of the quarter under consideration.

P_F = Percentage of Fuel and Lubricant component of the work.

Note: For the application of this Clause the price of HSD has been chosen to represent Fuel and Lubricant Group

Adjustment for Plant, Machinery and Spares Component:

- (ix) Price adjustment for increase or decrease in the cost of plant, machinery and spares procured by the contractor shall be paid in accordance with the following formula:

$$V_{PS} = 0.85 \times P_{PS}/100 \times R \times (PS_i - PS_o)/PS_o, \text{ Where}$$

V_{PS} = Increase or decrease in the cost of work during the quarter under consideration due to changes in the rates for plant and machinery spares.

PS_o = The all India average wholesale price index for **Manufacture of machinery for mining, quarrying and construction** for the quarter preceding the date of opening of bids, as published by the Office of the Economic Advisor, Ministry of Commerce and Industry, Government of India, New Delhi

PS_i = The all India average wholesale price index for **Manufacture of machinery for mining, quarrying and construction** for the quarter under consideration as published by the Office of the Economic Advisor, Ministry of Commerce and Industry, Government of India, New Delhi

P_B = Percentage of Plant and Machinery Spares component of the work.

Note: For the application of this Clause index of Manufacture of machinery for mining, quarrying and construction has been chosen to represent the Plant, Machinery and Spares Group.

Adjustment for Other materials:

- (x) Price adjustment for increase or decrease in the cost of other materials other than Labour, Cement, Steel, Iron pipes, PVC pipes, Bitumen, Fuel and Lubricants, Plant, Machinery and Spares, procured by the contractor shall be paid in accordance with the following formula:

$$V_M = 0.85 \times P_M/100 \times R \times (M_i - M_o)/M_o, \text{ Where}$$

V_M = Increase or decrease in the cost of work during the quarter under consideration due to changes in the rates for local materials other than Labour, Cement, Steel, Iron pipes, PVC pipes, Bitumen, Fuel and Lubricants, Plant, Machinery and Spares

M_o = The all India average wholesale price index for **all commodities** for the quarter preceding the date of opening of bids, as published by the Office of the Economic Advisor, Ministry of

Commerce and Industry, Government of India, New Delhi

M_i = The all India average wholesale price index for **all commodities** for the quarter under consideration as published by the Office of the Economic Advisor, Ministry of Commerce and Industry, Government of India, New Delhi

P_M = Percentage of other material component (Other than labour, cement, steel, iron pipes, PVC pipes, bitumen, fuel and lubricants and plant, machinery and spares) of the work.

The following percentages will govern the price adjustment for the items of the contract:

1	Labour– P_L	23.67%
2	Cement – P_C	2.88%
3	Steel	2.89%
4	MS Pipes	57.80%
5	RCC pipes	0.65%
6	Plant & Machinery Spares– PF^{15}	2.65%
7	Fuel and Lubricant – PF^{14}	1.00%
8	Bitumen - P_B	1.47%
9	Other Materials – PM	6.99%
	Total	100 %

The liquidated damages for the whole of the works are 0.1% of contract price per day is Rs. 11,80,000/- and that for the milestones are as under:

For Milestone 1: **Rs. 177089/-** per day [41]

For Milestone 2: **Rs. 206603/-** per day

For Milestone 3: **Rs. 206603/-** per day

The maximum amount of liquidated damages for the whole of the works is Five percent of final contract price. [41]

The amounts of the advance payment are: [42]

<u>Nature of Advance</u>	<u>Amount (Rs.)</u>	<u>Conditions to be fulfilled</u>
1. Mobilization	10% of the Contract price	On submission of un-conditional Bank Guarantee. (to be drawn before end of 20% of Contract period) on interest free basis

2.Secured advance for non-perishable materials/ equipment/plant brought to site	60% of the quoted rate for the particular item of work.	(a) The materials/ equipment/ plant conform to the specifications for works; (b) Such materials/ equipment/ plant have been delivered to site of work and are properly stored and protected against damage or deterioration to the satisfaction of the Employer. The Contractor shall store the bulk material in measurable stacks; (c) The Contractor's records of the requirements, orders, receipt and use of materials/ equipment/ plant are kept in a form approved by the Employer and such records shall be available for inspection by the Employer or his authorized representative; (d) The Contractor has submitted with his monthly statement the estimated value of the materials/ equipment /plant on site together with such documents as may be required by the Employer for the purpose of valuation of the materials/ equipment/ plant and providing evidence of ownership and payments thereof; (e) Ownership of such materials/ equipment/ plant shall vest in the Employer for which the Contractor has submitted an indemnity bond in an acceptable format; and (f) The quantity of materials/ equipment are not excessive and shall be used within a reasonable time period as determined by the Employer. (g) The Contractor has submitted the Indemnity Bond for the Secured advance in the Form as given in Section 10. The quantum of material to be procured shall be with the prior approval of Engineer-in-Charge and the advance payment will be made to the materials procured based on the actual quantity required at site and obtaining the permission from the Engineer in charge.
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(The advance payment will be paid to the Contractor no later than 30 days after fulfillment of the above conditions).

Repayment of advance payment for mobilization : [42]

The advance loan shall be repaid with percentage deductions from the interim payments certified by the Engineer under the Contract. Deductions shall commence in the next Interim Payment Certificate following that in which the total of all such payments to the Contractor has reached not less than 15 percent of the Contract Price or Four Months from the date of payment of first installment of advance, whichever period concludes earlier, and shall be made at the rate of 10 % percent of the amounts of all Interim Payment Certificates until such time as the loan has been repaid, always provided that the loan shall be completely repaid prior to the expiry of the original time for completion pursuant to Clauses 17 and 26.

Repayment of secured advance:

The advance shall be repaid from each succeeding monthly payments to the extent materials/ equipment/ plant (for which the advance was previously paid pursuant to Clause of GCC and of Contract Data on pre page) have been incorporated into the works

The date by which "as-built" drawings (in scale 1:1000 or as directed) in 2 sets both in hard copy and

soft copy are required is within 30 days of issue of certificate of completion of Whole or Section of the Work. [48]

The date by which Operating and Maintenance Manuals are required is within 30 days of issue of certificate of completion of Whole or Section of the Work as the case may be. [48]

The date by which Operating and Maintenance Manuals are required is within 30 days of issue of certificate of completion of Whole or Section of the Work as the case may be. [48]

The amount to be withheld for failing to supply "as built" drawings or supply of Operation and Maintenance Manuals by the date required is Rs. 1% of contract value. [48]

The following events shall also be fundamental breach **of the contract:** [49.2]

1. The contractor has contravened Sub-clause 7.1 and Clause 9 of CC.
2. The contractor does not adhere to the agreed construction program and agreed environmental management plan and also fails to take satisfactory remedial action as per agreements reached in the management meetings (Clause 28) for a period of 60 days.
3. The contractor fails to carry out of the instructions of Employer within a reasonable time determined by the Employer in accordance with GCC Clause 23.1

The percentage to apply to the value of the work not completed representing the Employer's [50.1] additional cost for completing the Works shall be 30 percent.

SECTION 7: SPECIFICATION
(Enclosed Separately in E-Procurement Portal)

SECTION 8: DRAWINGS
(Enclosed Separately in E-Procurement Portal)

SECTION 9: BILL OF QUANTITIES

Form for the Bill of Quantities will be available online. The entry of rates for individual items of work shall be made by the bidder into the Bill of Quantities form online on e-procurement portal. All the items are mandatory

Sl. No.	Description of item (with brief specification and reference to Book of specification)	Quantity	Unit	Rate (Rs)		Amount (Rs)
				In figures	In words	
Total Tender Price (in figures)						
(in words)						

Note:

- (1) Item for which no rate or price has been entered in will not be paid for by the Employer when executed and shall be deemed covered by the other rates and prices in the Bill of Quantities (refer: ITB Clause 11.2 and CC Clause 37.2).
- (2) Unit rates and prices shall be quoted by the Tenderer in Indian Rupees.
- (3) Where there is a discrepancy between the rate in figures and words, the lower of the two will govern. [ITT Clause 24.1(a)]
- (4) Where there is a discrepancy between the unit rate and the line item total resulting from multiplying the unit rate by quantity, the unit rate quoted shall govern [ITT Clause 24.1 (b)]

SECTION 10: FORM OF SECURITIES

FORMAT OF EARNEST MONEY DEPOSIT (BANK GUARANTEE)

WHEREAS, _____ [name of Tenderer] hereinafter called “the Tenderer”) has submitted his Tender dated _____ [date] for the construction of _____ [name of Contract] (hereinafter called “the Tender”).

KNOW ALL PEOPLE by these presents that We _____ [name of bank] of _____ [name of country] having our registered office at _____ (hereinafter called “the Bank”) are bound unto _____ [name of Employer] (hereinafter called “the Employer”) in the sum of _____¹ for which payment well and truly to be made to the said Employer the Bank binds itself, his successors and assigns by these presents.

SEALED with the Common Seal of the said Bank this _____ day of _____ 201 ____.

THE CONDITIONS of this obligation are:

- (1) If after tender opening the Tenderer withdraws his tender during the period of Tender validity specified in the Form of Tender; *or*
- (2) If the Tenderer having been notified of the acceptance of his tender by the Employer during the period of tender validity:
 - (a) fails or refuses to execute the Form of Agreement in accordance with the Instructions to Bidders, if required; *or*
 - (b) fails or refuses to furnish the Performance Security, in accordance with the Instruction to Bidders;

We undertake to pay to the Employer up to the above amount upon receipt of his first written demand, without the Employer having to substantiate his demand, provided that in his demand the Employer will note that the amount claimed by him is due to him owing to the occurrence of one or any of the two conditions, specifying the occurred condition or conditions.

This Guarantee will remain in force up to and including the date _____² days after the deadline for submission of Bids as such deadline is stated in the Instructions to Bidders or as it may be extended by the Employer, notice of which extension(s) to the Bank is hereby waived. Any demand in respect of this guarantee should reach the Bank not later than the above date.

DATE _____ SIGNATURE OF THE BANK _____

WITNESS _____ SEAL _____

[signature, name, and address]

¹ The Bidder should insert the amount of the guarantee in words and figures denominated in Indian Rupees. This figure should be the same as shown in Clause 13.1 of the Instructions to Bidders.

² 45 days after the end of the validity period of the Tender. Date should be inserted by the Employer before the tender documents are uploaded on the e-procurement portal.

SECTION 10: FORMAT OF BANK GUARANTEE FOR SECURITY DEPOSIT
Irrevocable & Unconditional

To: _____ *[name of Employer]*
 _____ *[address of Employer]*

WHEREAS _____ *[name and address of Contractor]* (hereinafter called "the Contractor") has undertaken, in pursuance of Contract No. _____ dated _____ to execute _____ *[name of Contract and brief description of Works]* (hereinafter called "the Contract");

AND WHEREAS it has been stipulated by you in the said Contract that the Contractor shall furnish you with a Bank Guarantee by a recognized bank for the sum specified therein as security for compliance with his obligations in accordance with the Contract;

AND WHEREAS we have agreed to give the Contractor such a Bank Guarantee;

NOW THEREFORE we hereby affirm that we are the Guarantor and responsible to you, on behalf of the Contractor, up to a total of Rs. _____ *[amount of guarantee]*
³ _____ Rupees _____ *[in words]*, and we undertake to pay you, upon your first written demand and without cavil or argument, any sum or sums within the limits of _____ *[amount of guarantee]*⁴ as aforesaid without your needing to prove or to show grounds or reasons for your demand for the sum specified therein.

We hereby waive the necessity of your demanding the said debt from the Contractor before presenting us with the demand.

We further agree that no change or addition to or other modification of the terms of the Contract or of the Works to be performed there under or of any of the Contract documents which may be made between you and the Contractor shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition or modification.

This guarantee shall be valid until 30 days from the date of expiry of the Defects Liability Period.

Signature and seal of the guarantor _____
 Name of Bank _____
 Address _____
 Date _____

³ An amount shall be inserted by the Guarantor, representing the percentage of the Contract Price specified in the Contract

⁴ An amount shall be inserted by the Guarantor, representing the percentage of the Contract Price specified in the Contract

PERFORMANCE BANK GUARANTEE (for unbalanced items)
Irrevocable & Unconditional

To: _____ *[name of Employer]*
 _____ *[address of Employer]*

WHEREAS _____ *[name and address of Contractor]* (hereinafter called "the Contractor") has undertaken, in pursuance of Contract No. _____ dated _____ to execute _____ *[name of Contract and brief description of Works]* (hereinafter called "the Contract");

AND WHEREAS it has been stipulated by you in the said Contract that the Contractor shall furnish you with a Bank Guarantee by a recognized bank for the sum specified therein as security for compliance with his obligations in accordance with the Contract;

AND WHEREAS we have agreed to give the Contractor such a Bank Guarantee;

NOW THEREFORE we hereby affirm that we are the Guarantor and responsible to you, on behalf of the Contractor, up to a total of _____ *[amount of guarantee]*¹ _____ *[in words]*, such sum being payable in the types and proportions of currencies in which the Contract Price is payable, and we undertake to pay you, upon your first written demand and without cavil or argument, any sum or sums within the limits of _____ *[amount of guarantee]*¹ as aforesaid without your needing to prove or to show grounds or reasons for your demand for the sum specified therein.

We hereby waive the necessity of your demanding the said debt from the Contractor before presenting us with the demand.

We further agree that no change or addition to or other modification of the terms of the Contract or of the Works to be performed there under or of any of the Contract documents which may be made between you and the Contractor shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition or modification.

This guarantee shall be valid until (i.e.) 28 days from the date of issue of the certificate of completion of works.

Signature and seal of the guarantor _____
 Name of Bank _____
 Address _____
 Date _____

BANK GUARANTEE FOR ADVANCE PAYMENT
Irrevocable & Unconditional

To: _____ *[name of Employer]*
 _____ *[address of Employer]*
 _____ *[name of Contract]*

Gentlemen:

In accordance with the provisions of the Conditions of Contract, subclause 51.1 ("Advance Payment") of the above-mentioned Contract, _____ *[name and address of Contractor]* (hereinafter called "the Contractor") shall deposit with _____ *[name of Employer]* a bank guarantee to guarantee his proper and faithful performance under the said Clause of the Contract in an amount of _____ *[amount of guarantee]*⁵ _____ *[in words]*.

We, the _____ *[bank or financial institution]*, as instructed by the Contractor, agree unconditionally and irrevocably to guarantee as primary obligator and not as Surety merely, the payment to _____ *[name of Employer]* on his first demand without whatsoever right of objection on our part and without his first claim to the Contractor, in the amount not exceeding _____ *[amount of guarantee]*¹ _____ *[in words]*.

We further agree that no change or addition to or other modification of the terms of the Contract or of Works to be performed thereunder or of any of the Contract documents which may be made between _____ *[name of Employer]* and the Contractor, shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition or modification.

This guarantee shall remain valid and in full effect from the date of the advance payment under the Contract until _____ *[name of Employer]* receives full repayment of the same amount from the Contractor.

Yours truly,

Signature and seal: _____
 Name of Bank/Financial Institution: _____
 Address: _____
 Date: _____

⁵ An amount shall be inserted by the bank representing the amount of the Advance Payment, and denominated in Indian Rupees.

INDENTURE FOR SECURED ADVANCES
Irrevocable & Unconditional

THIS INDENTURE made the..... day of 201.. BETWEEN
 (herein after called the Contractor which expression shall where the context so
 admits or implies be deemed to include his executors, administrators and assigns) of the one part and the Chief
 Engineer..... , Karnataka Urban Infrastructure Development Finance Corporation or his authorized
 representative,(herein after called the Employer, which expression shall where the context so admits or implies
 be deemed to include his successors in office and assigns) of the other part.

WHEREAS by an agreement dated (herein after called the said agreement) the
 Contractor has agreed AND WHEREAS the Contractor has applied to the Employer that he may be allowed
 advances on the security of materials absolutely belonging to him and brought by him to the site of Works the
 subject of the said agreement for use in the construction of such of the works as he has undertaken to execute at
 rates fixed for the finished work (inclusive of the cost of materials, labour, plant, equipment and other charges)
 AND WHEREAS the Employer has agreed to advance to the Contractor the sum of
 Rupees..... on the security of materials, the quantities and other
 particulars of which are detailed in the accounts of Secured Advances attached to the Running Account Bill for
 the said works signed by the Contractor on,,,,,,,,,,,,,,,,,,,,,,,,,,,,, and the Employer has reserved to himself the
 option of making any further advance or advances on the security of other materials(such materials to include
 materials, plant, equipment etc) brought by the Contractor to the site of the said works.

NOW THIS INDENTURE WITNESSETH that in pursuance of the said agreement and in consideration of the
 sum of Rupees..... on or before the execution of these presents paid to the Contractor by
 the Employer (the receipt whereof the Contractor doth hereby acknowledge) and of such further advances (if any)
 as may be made to him as aforesaid the Contractor doth hereby covenant and agree with the Employer and declare
 as follows:

- (1) That the said sum of Rupees..... so advanced by the Employer to the
 Contractor as aforesaid and all or any further sum or sums advanced as aforesaid shall be employed by
 the Contractor in or towards expediting the execution of the said works and for no other purpose
 whatsoever;
- (2) That the materials detailed in the said Account of Secured Advances which have been offered to and
 accepted by the Employer as security are absolutely the Contractor's own property and free from
 encumbrances of any kind and the Contractor will not make any application for or receive a further
 advance on the security of materials which are not absolutely his own property and free from
 encumbrances of any kind and the Contractor indemnifies the Employer against all claims to any
 materials in respect of which an advance has been made to him as aforesaid;
- (3) That the materials detailed in the said Account of Secured Advances and all other materials on the
 security of which any further advance or advances may hereafter be made as aforesaid(herein after called
 the said materials) shall be used by the Contractor solely in the execution of the said works in accordance
 with the directions of the Employer and in the terms of the said agreement;
- (4) That the Contractor shall make at his own cost all necessary and adequate arrangements for the proper
 watch, safe custody and protection against all risks of the said materials and that until used in
 construction as aforesaid the said materials shall remain at the site of the said works in the Contractor's
 custody and on his own responsibility and shall at all times be open to inspection by the Employer or his
 authorized representatives. In the event of the said materials or any part thereof being stolen, destroyed
 or damaged or becoming deteriorated in a greater degree than is due to reasonable use and wear thereof
 the Contractor will forthwith replace the same with other materials of like quality or repair and make
 good the same as required by the Employer or his authorized representative;
- (5) That the said materials shall not on any account be removed from the site of the said works except with
 the permission of the Employer or his authorized representative on that behalf;

- (6) That the advances shall be repayable in full when or before the Contractor receives payment from the Employer of the price payable to him for the said works under the terms and provisions of the said agreement, provided that if any intermediate payments are made to the Contractor on account of the work done than on the occasion of each such payment the Employer will be at liberty to make a recovery from the Contractor's bill for such payment by deducting there from the value of the said materials then actually used in the construction and in respect of which recovery has not been made previously, the value for this purpose being determined in respect of each description of materials at the rates at which the amounts of the advances made under these presents were calculated;
- (7) That if the Contractor shall at any time make any default in the performance or observance in any respect of any of the terms and provisions of the said agreement or of these presents the total amount of the advance or advances that may still be owing to the Employer shall immediately on the happening of such default be repayable by the Contractor to the Employer together with interest thereon at twelve percent per annum from the date or respective dates of such advance or advances to the date of repayment and with all costs, charges, damages and expenses incurred by the Employer in or for the recovery thereof or the enforcement of this security or otherwise by the reason of the default of the Contractor and the Contractor hereby covenants and agrees with the Employer to repay and pay the same respectively to him accordingly;
- (8) That the Contractor hereby charges all the said materials with the repayment to the Employer of the said sum of Rupees and any further sum or sums advanced as aforesaid and all costs, charges, damages and expenses payable under these presents PROVIDED ALWAYS and it is hereby agreed and declared that notwithstanding anything in the said agreement and without prejudice to the powers contained therein if and whenever the covenant for payment and repayment herein before contained shall become enforceable and the money owing shall not be paid in accordance therewith the Employer may at any time thereafter adopt all or any of the following courses as he may deem fit:-
- (a) Seize and utilize the said materials or any part thereof in the completion of the said works on behalf of the Contractor in accordance with the provisions in that behalf contained in the said agreement debiting the Contractor with the actual cost of effecting such completion and the amount due in respect of advances under these presents and crediting the Contractor with the value of work done as if he had carried it out in accordance with the said agreement and at the rates thereby provided. If the balance is against the Contractor he is to pay same to the Employer on demand;
 - (b) Remove and sell by public auction the seized materials or any part thereof and out of the moneys arising from the sale retain all the aforesaid repayable or payable to the Employer under these presents and pay over the surplus (if any) to the Contractor;
 - (c) Deduct all or any part of the moneys owing out of the security deposit or any sum due to the Contractor under the said agreement.
- (9) That except in the event of such default on the part of the Contractor as aforesaid interest on the said advance shall not be payable;
- (10) That in the event of any conflict between the provision of these presents and the said agreement, the provisions of these presents shall prevail and in the event of any dispute or differences arising over the construction or effect of these presents, the settlement of which has not been herein before expressly provided for the same shall be referred to the Managing Director KUIDFC whose decision shall be final and provisions of the Indian Arbitration Act, 1996 shall apply to any such reference.

In witness whereof the said..... and by the order and under direction of the Employer have hereunto set their respective hands the day and year first above written.

Signed, sealed and delivered by.....
The said Contractor in the presence of:

Witness: Signature:
Name:
Address:.....

Signed by the order and direction of the Employer in the presence of :

Witness: Signature:
Name:
Address:.....